AUTHENTICATED U.S. GOVERNMENT INFORMATION GPO

THE NATIONAL ARCHIVES

FEDERAL REGISTER

VOLUME 23 NUMBER 59

Washington, Tuesday, March 25, 1958

TITLE 7—AGRICULTURE

Chapter IV—Federal Crop Insurance Corporation

PART 401—FEDERAL CROP INSURANCE

SUBPART—REGULATIONS FOR THE 1958 AND SUCCEEDING CROP YEARS

COUNTIES DESIGNATED FOR BARLEY CROP INSURANCE

Garfield County, Washington, is hereby added to the list of counties, published January 16, 1958 (23 F. R. 289), which were designated for barley crop insurance for the 1959 crop year pursuant to authority contained in paragraph (a) of § 401.1 of the above-identified regulations, as amended (22 F. R. 6557, 7210, 8473, 9515, 11024; 23 F. R. 289, 869).

(Secs. 506, 516, 52 Stat. 73, as amended, 77, as amended; 7 U. S. C. 1506, 1516. Interprets or applies secs. 507–509, 52 Stat. 73–75, as amended; 7 U. S. C. 1507–1509)

[SEAL] F. N. MCCARTNEY,
Manager,
Federal Crop Insurance Corporation.

[F. R. Doc. 58-2194; Filed, Mar. 24, 1958; 8:50 a. m.]

PART 401—FEDERAL CROP INSURANCE

SUBPART—REGULATIONS FOR THE 1958 AND SUCCEEDING CROP YEARS

COUNTIES DESIGNATED FOR WHEAT CROP INSURANCE

Garfield County, Washington, is hereby added to the list of counties, published January 16, 1958 (23 F. R. 290) which were designated for wheat crop insurance for the 1959 crop year pursuant to authority contained in paragraph (a) of § 401.1 of the above-identified regulations, as amended (22 F. R. 6557, 7210, 8473, 9515, 11024; 23 F. R. 289, 869).

(Secs. 506, 516, 52 Stat. 73, as amended, 77, as amended; 7 U. S. C. 1506, 1516. Interprets or applies secs. 507–509, 52 Stat. 73–75, as amended; 7 U. S. C. 1507–1509)

[SEAL] F. N. MCCARTNEY,
Manager,
Federal Crop Insurance Corporation.

[F. R. Doc. 58-2195; Filed, Mar. 24, 1958; 8:50 a. m.]

Chapter VIII—Commodity Stabilization Service (Sugar), Department of Agriculture

Subchapter B—Sugar Requirements and Quotas

PART 815—REQUIREMENTS RELATING TO MARKETING OF SUGAR AND LIQUID SUGAR PRODUCED FROM SUGAR BEETS AND SUGARCANE GROWN IN CONTINENTAL UNITED STATES

CROSS REFERENCE: For supersedure of Part 815 by revision of Part 816 of this subchapter, see F. R. Doc. 58-2192, *infra*.

[Sugar Reg. 816, Rev. 1]

PART 816—REQUIREMENTS RELATING TO MARKETING OF SUGAR AND LIQUID SUGAR PRODUCED FROM SUGAR BEETS AND SUGARCANE GROWN IN CONTINENTAL UNITED STATES AND MARKETING OF SUGAR FOR CONSUMPTION IN TERRITORY OF HAWAII AND PUERTO RICO

REVISION OF REGULATIONS

Basis and purpose. The regulations contained in §§ 816.1 through 816.9 are issued pursuant to section 403 (a) of the Sugar Act of 1948, as amended (61 Stat. 922, as amended), hereinafter called the "act".

Sugar Regulation 815, as effective January 1, 1955 (19 F. R. 7930), established a complete pattern to govern the handling of sugar and liquid sugar produced from sugar beets and sugarcane grown in the continental United States in relation to quotas and allotments established pursuant to section 202 and section 205 of the Sugar Act of 1948, as amended, and the prohibitions set forth in subsections (b) and (d) of section 209 of that act. The regulation was subsequently amended (20 F. R. 8807). After January 1, 1955, certain provisions of Sugar Regulation 816 (13 F. R. 127, 1076, 2063, 4590, 5903; 14 F. R. 466, 2163) remained in effect with respect to sugar or liquid sugar produced in the Territory of Hawaii and Puerto Rico. Additional changes are dictated by experience in administering the regulation, and by amendments to the Sugar Act by Public Law 545, 84th Congress, and are required

(Continued on next page)

CONTENTS

	Page
Agricultural Marketing Service	
Notices:	
Warehouses and warehousemen, licensed; changes in list	1971
Proposed rule making:	
Dates, domestic, produced or packed in Los Angeles and Riverside Counties, Calif.; handling	1960
Grapefruit, Arizona, Imperial County, Calif., and that part of Riverside County, Calif., situated south and east of San Gorgonio Pass; handling	1954
Oranges, navel, Arizona and designated part of California; handling	1952
Rules and regulations:	
Walnuts, California, Oregon, and Washington; revision of grade and size regulations for unshelled walnuts	1948
Agriculture Department	
See Agricultural Marketing Service; Commodity Stabilization Service.	
Civil Aeronautics Board	
Proposed rule making:	
Application of minimum performance standards for electronic equipment to all aircraft operating under IFR weather conditions	1962
Coast Guard	
Notices:	
Approval and termination of approval of equipment, installations, or materials; and change in address of manufacturer	1964
Commerce Department	
Notices:	
Statement of changes in business interests:	
Dueringer, Wilbur F	1973
Minetti, Al Serafin	1973
Taggert, Eubert F	1974
Vorzimer, Harold J	1974
Commodity Stabilization Service	
Notices:	
Areas of venue for marketing quota review committees, establishment of	1973

FEDERAL REGISTER

Published daily, except Sundays, Mondays, and days following official Federal holidays, by the Federal Register Division, National Archives and Records Service, General Services Administration, pursuant to the authority contained in the Federal Register Act, approved July 26, 1935 (49 Stat. 500, as amended; 44 U. S. C., ch. 8B), under regulations prescribed by the Administrative Committee of the Federal Register, approved by the President. Distribution is made only by the Superintendent of Documents, Government Printing Office, Washington 25, D. C.

The FEDERAL REGISTER will be furnished by mail to subscribers, free of postage, for $1.50 per month or $15.00 per year, payable in advance. The charge for individual copies (minimum 15 cents) varies in proportion to the size of the issue. Remit check or money order, made payable to the Superintendent of Documents, directly to the Government Printing Office, Washington 25, D. C.

The regulatory material appearing herein is keyed to the CODE OF FEDERAL REGULATIONS, which is published, under 50 titles, pursuant to section 11 of the Federal Register Act, as amended August 5, 1953. The CODE OF FEDERAL REGULATIONS is sold by the Superintendent of Documents. Prices of books and pocket supplements vary.

There are no restrictions on the republication of material appearing in the FEDERAL REGISTER, or the CODE OF FEDERAL REGULATIONS.

CFR SUPPLEMENTS
(As of January 1, 1958)

The following Supplements are now available:

Title 8, Rev. Jan. 1, 1958 ($3.25)
Title 9 ($0.75)
Titles 40–42 ($1.00)
Title 46, Parts 1–145 ($0.75)

Previously announced: Title 3, 1957 Supp. ($0.40); Titles 4–5 ($1.00); Titles 10–13 ($1.00); Title 17 ($0.65); Title 18 ($0.50); Title 20 ($1.00); Titles 30–31 ($1.50); Title 32, Part 1100 to end ($0.50); Titles 35–37 ($1.00); Title 39, ($0.60); Title 46, Parts 146–149, Rev. Jan. 1, 1958 ($5.50)

Order from Superintendent of Documents, Government Printing Office, Washington 25, D. C.

CONTENTS—Continued

Commodity Stabilization Service—Continued Page
Rules and regulations:
Sugar and liquid sugar produced from sugar beets and sugarcane grown in continental United States, requirements relating to marketing of; cross reference 1943

Commodity Stabilization Service—Continued Page
Rules and regulations—Con.
Sugar and liquid sugar produced from sugar beets and sugarcane grown in continental United States, requirements relating to marketing of, and marketing of sugar for consumption in Territories of Hawaii and Puerto Rico 1943

Federal Crop Insurance Corporation
Rules and regulations:
Federal crop insurance, 1958 and succeeding crop years, Garfield County, Wash.:
Barley 1943
Wheat 1943

Federal National Mortgage Association
Rules and regulations:
Mortgage purchases, servicing and sales; miscellaneous amendments; correction 1948

Federal Power Commission
Notices:
Hearings, etc.:
Cox, Edwin L. 1974
Coyle, John W., Jr., et al 1975
Davison, Leland, et al 1975
Kerr-McGee Oil Industries, Inc 1974

Housing and Home Finance Agency
See Federal National Mortgage Association.

Indian Affairs Bureau
Rules and regulations:
Osage Tribe, election of officers 1948

Interior Department
See Indian Affairs Bureau; Land Management Bureau.

Interstate Commerce Commission
Notices:
Fourth section applications for relief (2 documents) 1976, 1977
New York, Ontario and Western Railway; diversion or rerouting of traffic 1977
Proposed rule making:
Parts and accessories necessary:
Extension of date for filing statements in response to proposal to vacate and set aside certain motor carrier emergency equipment regulations 1963
Warning devices and gauges 1963

Land Management Bureau
Notices:
New Mexico; proposed withdrawal and reservation of lands 1970
Rules and regulations:
Public land orders:
Alaska 1951
Florida 1951

Securities and Exchange Commission Page
Notices:
Lewisohn Copper Corp.; permanent suspension of exemption and suspension of effectiveness of registration statement 1975

Tariff Commission
Notices:
Mercury (quicksilver); investigation 1976
Supplemental investigations:
Stainless steel table flatware 1976
Umbrella frames 1976

Treasury Department
See Coast Guard.

CODIFICATION GUIDE

A numerical list of the parts of the Code of Federal Regulations affected by documents published in this issue. Proposed rules, as opposed to final actions, are identified as such.

Title 3 Page
Chapter II (Executive orders):
Feb. 9, 1842, Fosters Bank, Florida (revoked by PLO 1603) 1951
8508 (revoked by PLO 1603) 1951

Title 7
Chapter IV:
Part 401 (2 documents) 1943
Chapter VIII:
Part 815 1943
Part 816 1943
Chapter IX:
Part 914 (proposed) 1952
Part 955 (proposed) 1954
Part 984 1948
Part 1003 (proposed) 1960

Title 14
Chapter I:
Part 18 (proposed) 1962
Part 42 (proposed) 1962
Part 43 (proposed) 1962

Title 24
Chapter IV:
Part 400 1948

Title 25
Chapter I:
Part 73 1948

Title 43
Chapter I:
Appendix (Public land orders):
693 (revoked in part by PLO 1604) 1951
1603 1951
1604 1951

Title 49
Chapter I:
Part 193 (proposed) (2 documents) 1963

to make the complete regulation apply to sugar and liquid sugar processed from sugarcane in the Territory of Hawaii or Puerto Rico for local consumption within such areas. Accordingly, the provisions of Part 815 and Part 816 previously in effect are superseded and the provisions thereof, as amended, are republished as a new Part 816. Changes in wording

have been made as needed for clarification.

Prior to preparing this revision public notice including the text of the proposed revision was published in the FEDERAL REGISTER (22 F. R. 9295) in accordance with the provisions of the Administrative Procedure Act (5 U. S. C. 1003), and within the limits permitted by the act, the views, data and recommendations submitted by interested persons have been duly considered. The provisions in §§ 816.1 through 816.9 are substantially the same as heretofore published in the public notice.

To the extent that these revised regulations differ in substance from those previously in effect, the result is generally to clarify requirements or facilitate compliance. Inasmuch as the quotas controlled by the regulations of this part apply to calendar years, practical application of this revision of regulations requires that it should be effective as soon after January 1, 1958, as possible. Accordingly, it is hereby found that compliance with the 30-day effective date requirements of the Administrative Procedure Act (60 Stat. 237) is impracticable and not in the public interest and, consequently, the regulations as revised and amended herein shall be effective when published in the FEDERAL REGISTER.

Part 815 of this subchapter (19 F. R. 7930; 20 F. R. 8807) and Part 816 of this subchapter (14 F. R. 2163) are hereby amended, revised and superseded by the following regulations which are issued to appear under Part 816 of this subchapter and to read as follows:

Sec.
816.1 Purpose and persons affected.
816.2 Definitions.
816.3 Restrictions on marketings.
816.4 When a marketing occurs.
816.5 Effect of marketings on quotas and allotments.
816.6 Production of sugar for livestock feed.
816.7 Bond requirements.
816.8 Records and reports.
816.9 Delegation of authority.

AUTHORITY: §§ 816.1 to 816.9 issued under sec. 403, 61 Stat. 932; 7 U. S. C. 1153. Interpret or apply secs. 101, 205, 209, 211, 212, 301; 61 Stat. 922, as amended, 926, as amended, 928, 929, as amended; 7 U. S. C. 1101, 1115, 1119, 1121, 1122, 1131.

§ 816.1 *Purpose and persons affected.* (a) The regulations in §§ 816.1 through 816.9 issued pursuant to the Sugar Act of 1948, as amended, govern the handling of sugar or liquid sugar produced from domestic sugar beets and mainland sugarcane, or produced from sugarcane in the Territory of Hawaii and in Puerto Rico and marketed for local consumption in relation to quotas and allotments established under sections 202, 203 and 205 of the act, and the prohibitions set forth in subsections (b), (c) and (d) of section 209 of the act. They also provide the method for exempting sugar produced from such sugar beets or sugarcane from quotas pursuant to Item (4) of section 212 of the Sugar Act of 1948, as amended.

(b) The regulations in this part apply to processors and refiners with respect to all sugar and liquid sugar which they produce or refine from domestic sugar beets and mainland sugarcane or which they produce from Hawaiian or Puerto Rican sugarcane and market for consumption in such areas. It also extends records and reports requirements to all sugar and liquid sugar coming under the ownership and control of such persons in order to assure proper accounting for mainland and local sugar. The regulations in this part also apply to any person who acquires such sugar or liquid sugar for the distillation of alcohol or for livestock feed or for the production of livestock feed, or to any person who acquires such sugar or liquid sugar as a result of a sale or transfer thereof pursuant to a pledge, mortgage or other agreement, or a judgment, decree, writ or order of a court, if such sugar or liquid sugar has not previously been marketed as provided in § 816.4.

§ 816.2 *Definitions.* As used in this part:

(a) The term "act" means the Sugar Act of 1948, as amended (61 Stat. 922, as amended).

(b) The term "person" means an individual, partnership, corporation, association, estate, trust or other business enterprise or legal entity, and, wherever applicable, a unit of government or an instrumentality or agency thereof.

(c) The term "mainland sugar" means all sugar or liquid sugar as defined in section 101 of the act, processed from any sugar beets grown in the Domestic Beet Sugar Area or from any sugarcane grown in the Mainland Cane Sugar Area. Whenever a processor has commingled mainland sugar, as heretofore defined, that has not been marketed pursuant to § 816.4, and sugar acquired within a quota, that portion of the total commingled quantity designated by such processor, equivalent in quantity to such mainland sugar, shall be deemed to be mainland sugar within the definition of that term.

(d) The term "local sugar" means sugar as defined in section 101 of the act, processed from sugarcane grown in the Territory of Hawaii or Puerto Rico which is marketed for consumption within such area. The term also includes sugar processed in the Territory of Hawaii or Puerto Rico for livestock feed or the production of livestock feed from sugarcane grown in Hawaii or Puerto Rico, respectively, in excess of the proportionate shares determined pursuant to section 301 (b) of the act, and sugar processed and refined in Puerto Rico from sugarcane grown in Puerto Rico which is ultimately consumed in the Virgin Islands.

(e) The term "processor" means any person who manufactures "mainland sugar" or "local sugar" as defined in this part or any person for whose account mainland or local sugar is manufactured by another person and includes all persons who acquire control over such mainland sugar or local sugar if such sugar has not previously been marketed as provided in § 816.4.

(f) The term "refiner" means any person who acquires mainland or local raw sugar from a processor for refining or otherwise improving the quality of such mainland or local sugar. (The same person may be both a "processor" and such a "refiner").

(g) The term "Department" means the United States Department of Agriculture.

(h) The term "Secretary" means the Secretary of Agriculture or any officer or employee of the Department to whom the Secretary has delegated authority, or to whom authority may be delegated, to act in his stead.

(i) The term "Sugar Division" means the Sugar Division of the Commodity Stabilization Service of the Department, Washington 25, D. C., or any other organizational unit within the Department to which administration of the Sugar Act may hereafter be delegated.

(j) The term "quota" means any calendar year quota established in Part 811 or in Part 812 of this subchapter.

(k) The term "allotment" means the portion of a quota established for a processor in Part 813, 814 or 815 of this subchapter.

§ 816.3 *Restrictions on marketings.* Subject to the provisions of § 816.5 each processor is hereby prohibited from marketing a quantity of mainland or local sugar in excess of the quantity determined in Part 813, 814 or 815 of this subchapter to be the allotment of such processor: *Provided*, That the Secretary may permit marketings to be made by one allottee, or other person within the allotment established for another allottee upon relinquishment by the latter allottee of an equivalent quantity of its allotment and upon receipt of evidence satisfactory to the Secretary that (a) a merger, consolidation, transfer of sugar-processing facilities, or other action of similar effect upon the allottees or persons involved has occurred, or (b) the allottee receiving such permission will process sugar beets or sugarcane which the allottee relinquishing an allotment or portion thereof has become unable to process.

§ 816.4 *When a marketing occurs.* (a) Except as provided in paragraphs (b) through (e) of this section, mainland sugar or local sugar shall be deemed to be marketed whenever pursuant to a contract of sale, or by a gift, barter or exchange, other than an exchange for an equivalent quantity of sugar previously marketed by the processor, one of the following actions first occurs:

(1) The processor physically delivers mainland or local sugar to another person.

(2) The processor physically delivers mainland or local sugar to a carrier for shipment to another person.

(3) The processor endorses and delivers to another person a negotiable warehouse receipt issued by a public warehouseman or an order bill of lading issued by a public carrier covering mainland or local sugar.

(4) A public warehouseman issues and delivers to another person at the processor's request a warehouse receipt (negotiable or non-negotiable) or a warehouse delivery advice covering mainland or local sugar.

(5) The processor transfers and delivers to another person a non-negotiable warehouse receipt issued by a public

warehouseman covering mainland or local sugar, and the warehouseman acknowledges to such person that he is holding such sugar for the account of such other person.

(6) The processor and another person on or before December 31 of any year certify to the Secretary on a form prescribed by him that a specified quantity of mainland or local sugar in exclusive actual possession of the processor at the close of business on December 31 will be held for the account of such other person and will be physically delivered to such other person or to a carrier for shipment to such other person prior to March 1 of the year immediately following, and such physical delivery (those actions described in subparagraph (1) or (2), not those in subparagraph (3), (4), or (5) of this paragraph) is made prior to March 1.

(b) Mainland or local sugar used by the processor or caused to be used in activities under his control for food or feed, or for the production or manufacture of food or feed or other articles for commerce shall be deemed to be marketed at the time that such use occurs.

(c) Mainland sugar sold to a processor in the form of beet molasses and used for the production of direct-consumption sugar as defined in section 101 (e) of the act, shall be deemed to be marketed when the direct-consumption sugar so produced is first subjected to one of the actions described in paragraphs (a) and (b) of this section.

(d) Mainland or local sugar delivered to a sugar marketing cooperative corporation or association (legally constituted and operated as a cooperative) by a processor who is a member thereof shall be deemed to be marketed when the cooperative corporation or association, with respect to such sugar, first takes any of the actions provided for in paragraphs (a) through (c) or in paragraph (e) of this section which, if taken by a processor, would constitute a marketing.

(e) Sugar or liquid sugar processed from sugarcane grown in the Territory of Hawaii or Puerto Rico which is imported into the continental United States, pursuant to the provisions of Part 817 of this subchapter, only to be further refined and improved in quality or repackaged, and subsequently returned to the area of origin for consumption therein, shall be deemed to be local sugar and to be marketed at the time such sugar is imported into the continental United States.

§ 816.5 *Effect of marketings on quotas and allotments.* Each marketing of mainland or local sugar as provided in § 816.4 shall be effective for the purpose of filling the applicable quota and allotment at the time it occurs except as follows:

(a) A marketing of mainland or local sugar for further processing, refining and storage with respect to which an obligation has been established under a bond pursuant to § 816.7, shall, upon release of the bond, be effective for the purpose of filling the applicable quota and allotment in effect at the time of the release of the bond, or, in the event the Secretary determines that a default in a condition of such a bond has occurred, the quantity of sugar or liquid sugar involved in such default shall, at the time of such determination, be applied to the applicable quota and allotment in effect at the time the sugar was marketed pursuant to § 816.4.

(b) A marketing of mainland or local sugar for the distillation of alcohol, or for livestock feed or for the production of livestock feed with respect to which an obligation has been established under a bond pursuant to § 816.7, shall be effective for the purpose of filling an applicable quota and allotment only when the Secretary determines that a default in a condition of the bond has occurred, and at the time of such determination, the quantity of sugar or liquid sugar involved in such default shall be applied to the applicable quota and allotment in effect at the time that the sugar was marketed pursuant to § 816.4.

(c) A marketing of mainland sugar which is consigned by the processor to points outside the continental United States shall not be effective for the purpose of filling a quota established for the Mainland Cane Sugar Area or the Domestic Beet Sugar Area, or allotments thereof.

§ 816.6 *Production of sugar for livestock feed.* Prior to the processing of sugar beets or sugarcane in excess of proportionate shares received from producers for the production of mainland or local sugar for use as livestock feed or for use in the production of livestock feed pursuant to the exception in section 301 (b) of the act, an obligation for such use of the sugar shall have been established under a bond accepted in accordance with the provisions of § 816.7.

§ 816.7 *Bond requirements*—(a) *General.* Bonds furnished to cover the production and marketing of mainland or local sugar for the purposes stated in paragraphs (a) and (b) of § 816.5 and in § 816.6 shall meet all of the requirements of this section pertaining thereto, shall be executed in triplicate on Form SU–76, and shall be submitted to the Sugar Division for acceptance prior to approval of Applications to Market (Forms SU–77 or SU–79) as provided in paragraph (c) of this section. The Secretary may accept a bond to cover Applications to Market which may be made during the period of time specified in the bond or for a specific application. Any Application to Market for further processing, refining and storage of mainland or local sugar shall be made (on Form SU–77) jointly by the principal (refiner) named on the bond and the processor of the sugar, shall identify the refinery at which the sugar is to be further processed, and shall be submitted and approved prior to the marketing of such sugar. Applications to Market for any purpose provided for in paragraph (b) of § 816.5, exclusive of applications to establish an obligation under a bond as required under § 816.6, shall be made (on Form SU–77) by the principal named on the bond and shall be submitted and approved prior to marketing the mainland or local sugar for such purpose. An Application to Market to establish an obligation under a bond as required under § 816.6 with respect to processing sugar beets or sugarcane in excess of proportionate shares shall be made (on Form SU–79) by the principal named on the bond and shall be submitted and approved prior to the processing of such sugar beets or sugarcane.

(b) *Principal and surety.* To cover marketings of mainland or local sugar for further processing, refining and storage, the principal named on the bond shall be a refiner. To cover marketings of mainland or local sugar for the distillation of alcohol, and for the marketing or production and marketing of mainland or local sugar for livestock feed or the production of livestock feed, the principal named on a bond shall be the processor of the sugar. The surety or sureties shall be among those listed by the Secretary of the Treasury as acceptable on a Federal bond.

(c) *Obligation*—(1) *Establishment and effective date.* The obligation under a bond shall be made effective and be established by the Secretary's approval of an Application to Market submitted by the principal named on the bond to cover under the bond the marketing or use of a quantity of mainland or local sugar for the purpose stated in the application, which purpose shall be among those provided for in paragraph (a) or (b) of § 816.5 or in § 816.6.

(2) *Amount.* The monetary amount of the obligation under the bond shall not be less than the sum of the amounts applicable to all quantities of sugar or liquid sugar covered at any one time by approved Applications to Market and made subject to the bond by virtue of such approval, and such amount of obligation shall be effective whether or not the surety receives notice from the Secretary of the approval of any such application. The amount applicable to each quantity of sugar covered by each approved Application to Market and made subject to a bond accepted under this part shall be the weight in pounds of sugar determined pursuant to paragraph (d) of this section multiplied by the "Spot Quotation (Cuban in bond equivalent)" per pound of raw sugar for consumption in the continental United States established by the New York Coffee and Sugar Exchange for the last business day before the date of application. The amount applicable to each quantity of liquid sugar covered by each approved Application to Market and made subject to a bond accepted under this part shall be computed upon the basis of the same price per pound, ascertained as heretofore stated in this paragraph, multiplied by the pounds of the "total sugar content," as defined in section 101 (i) of the act, contained in the quantity of liquid sugar determined as provided in paragraph (d) of this section.

(d) *Quantity of sugar covered by an application.* For the purposes of the foregoing paragraph (c) of this section, the quantity of sugar or liquid sugar

covered by each approved Application to Market shall be determined as follows:

(1) The quantity covered by an Application to Market approved to establish an obligation under a bond to market mainland or local sugar to a refiner who is the principal under such bond, for further processing, refining and storage as referred to in paragraph (a) of § 816.5 shall be the quantity stated in the application, or, if different, the quantity actually marketed pursuant to such application as determined by the Secretary.

(2) The quantity covered by an Application to Market approved to establish an obligation under a bond to market mainland or local sugar for the distillation of alcohol, for livestock feed or for the production of livestock feed as referred to in paragraph (b) of § 816.5, shall be the quantity stated in the application, or if smaller, the quantity actually marketed pursuant to the approved application as determined by the Secretary.

(3) The quantity covered by an Application to Market approved to establish an obligation under a bond to produce and market from sugar beets or sugarcane in excess of proportionate shares, as referred to in § 816.6, mainland or local sugar for use as livestock feed or the production of livestock feed shall be the quantity stated in the initial application until a revised Application to Market is approved at which time the quantity covered shall be that stated in the revised application. The quantity stated in the initial application should be the maximum quantity of sugar or liquid sugar which the principal (processor) may produce from the total of the maximum number of tons of sugar beets or sugarcane expected to be received from each producer named in the application. In the revised application the quantity stated shall be the quantity produced determined as hereinafter provided in this subparagraph. If sugar beets or sugarcane received for processing pursuant to an approved application are processed during a period when no other sugar beets or sugarcane are being processed, the quantity of sugar or liquid sugar produced shall be determined directly from the factory production records applicable to the sugar beets or sugarcane processed pursuant to the application. If the sugar beets or sugarcane received for processing pursuant to an approved application are processed simultaneously with the processing of other sugar beets or sugarcane, the quantity of sugar or liquid sugar produced shall be based on the sugar or liquid sugar produced from all sugar beets or sugarcane processed during the factory run period or periods in which the sugar beets or sugarcane received for processing pursuant to an approved application were processed determined as follows:

(i) For sugar beets, the sugar content in pounds of beets received for processing pursuant to the approved application multiplied by the average yield of sugar per pound of sugar content from all sugar beets of the same crop processed in the same factory, during the period used for computing the yield, adjusted for the sugar recoverable by desugarization of the molasses produced.

(ii) For sugarcane produced in the Mainland Cane Sugar Area, the number of tons of standard cane determined pursuant to the applicable determination of fair and reasonable prices for the same crop (Parts 873 and 874 of this subchapter) received for processing pursuant to an approved application multiplied by the yield in pounds of sugar made and estimated per ton of all standard sugarcane of the same crop processed in the same factory during the period or periods used for computing the yield which is reported and accepted on Form SU-123.

(iii) For sugarcane produced in Hawaii, Puerto Rico, or the Virgin Islands, the pounds of sugar commercially recoverable determined pursuant to the applicable determination of sugar commercially recoverable (Parts 836, 837 and 838 of this subchapter) from the sugarcane received pursuant to the application initially approved.

(e) *Conditions.* Any bond accepted pursuant to this part shall provide for the following conditions to apply to mainland sugar or local sugar made subject to the bond by approval of Applications to Market such sugar.

(1) In the case of an Application to Market covering a quantity of mainland or local sugar for further processing, refining and storage, the principal shall hold and store the raw value equivalent of the sugar or liquid sugar covered by the approved Application to Market until release thereof is authorized by the Secretary. Such raw value equivalent as raw sugar may be held at or be in transit to the refinery identified in the Application to Market or at such other location from which such raw sugar will be shipped to such refinery. After refining such raw value equivalent must be held at the refinery identified in the Application to Market or be in transit to or at other places of storage: *Provided, however,* That if such raw value equivalent is in transit to or held at other storage facilities, it must be placed in such transit or storage after the mainland or local sugar identified with the approved application was marketed for further processing, refining and storage.

(2) In the case of an application to market a quantity of mainland or local sugar for use in the distillation of alcohol or for use as livestock feed or in the production of livestock feed, and in the case of an application to produce and market a quantity of mainland or local sugar for use as livestock feed or in the production of livestock feed, the raw value equivalent of the quantity of mainland or local sugar covered by the approved application shall be so used within one year after the date of approval by the Secretary of the application, and the principal on the bond shall transmit to the Sugar Division no later than 30 days after the expiration of the performance period under the bond certificates executed by the persons who used the quantity of sugar covered by the application showing the following information:

(i) Total quantity of sugar used between the first day of the month in which the sugar to which this certificate applies was acquired and the date of execution of this certification:

Livestock feed ____ cwt.
Production of livestock feed ____ cwt.
Distillation of alcohol ____ cwt.

(ii) Part of total (subdivision (i) of this subparagraph) so used which was or is to be covered by other certificates (certificates previously executed or to be executed to cover sugar acquired from other suppliers or processors) ____ cwt.

(iii) Quantity of sugar to which this certificate applies ____ cwt.

Each certificate shall be endorsed by the principal of the bond acknowledging that the use of the sugar to which the certificate applies is to apply to the fulfillment of the conditions of the bond on which he is the principal and the bond shall be identified on the endorsement.

(3) Any bond furnished pursuant to this part shall provide that the obligation established thereunder will remain in full force and effect until the Secretary notifies the principal and surety of release thereof. The Secretary may release all or any part of the monetary amount of the obligation of the bond which is applicable to the quantity of sugar or liquid sugar covered by an approved application with respect to which quantity the applicable conditions set forth in subparagraphs (1) and (2) of this paragraph have been fulfilled: *Provided:* That nothing in this section shall preclude the Secretary from: (i) Determining that any of the conditions provided in subparagraph (1) or (2) of this paragraph have been fulfilled by virtue of the destruction or other disposition of sugar or liquid sugar having an effect for quota purposes as if the applicable conditions set forth in such subparagraphs have been fulfilled, or (ii) extending at his discretion the time for fulfillment of any of the conditions set forth in subparagraph (1) or (2) of this paragraph upon the written request of and for good cause shown by the principal named on the bond and without notice to the surety on such bond.

(4) Upon default in any applicable condition heretofore set forth, and the expiration of any extension of time for fulfillment thereof that may be granted in writing by the Secretary, payment shall be made to the United States of America of a sum equal to the full amount of the obligation, determined as prescribed in paragraph (c) of this section, which is applicable to the quantity of sugar or liquid sugar covered by an approved application and with respect to which quantity the default occurred in whole or in part.

(f) The payment or the acceptance of any payment made to the United States of America pursuant to this paragraph shall not be deemed to preclude or to constitute a waiver of recovery of any forfeiture, penalty or liability provided for by the act or any other provision of law.

§ 816.8 *Records and reports.* (a) For the purpose of this part, mainland or local sugar manufactured as crystalline sugar and subsequently converted into and marketed as liquid sugar shall be reported as the quantities of crystalline sugar so converted and the raw value thereof shall be determined as prescribed in paragraph (1), (2) or (3), section 101 (h) of the act, whichever paragraph is applicable to the crystalline sugar so converted. Liquid sugar for which the quantities of converted crystalline sugar are unknown shall be reported in terms of the total sugar content and the raw value thereof shall be determined by multiplying the total sugar content by the factor 1.07.

(b) Each person subject to the provisions of this part shall keep and preserve, for a period of two years following the end of the calendar year in which the mainland or local sugar is marketed, an accurate record of his processings, receipts and marketings of all sugar and liquid sugar. Upon request by any employee of the Department of Agriculture authorized in writing by the Secretary, such records shall be made freely available for examination by such employee during regular working hours of any business day.

(c) Each person subject to the provisions of this part shall report information as and when required by the Secretary on forms specified by him with such approval by the Bureau of the Budget as may be applicable under the Federal Reports Act of 1942. In addition to the applications and reports otherwise specifically referred to in this part, this requirement shall include but is not necessarily limited to, the information prescribed on Form SU–70 for sugar beet processors, Form SU–71, SU–72 or SU–73 for mainland sugarcane processors, Form SU–74 for refiners and Form SU–80 for processors and refiners in Puerto Rico.

§ 816.9 *Delegation of authority.* The Director or Deputy Director of the Sugar Division, or the Chief or Acting Chief of the Quota and Allotment Branch thereof, Commodity Stabilization Service of the Department, is authorized to act for and on behalf of the Secretary in administering this part.

Application of §§ 816.1 to 816.9 and prior regulations. Upon the effective date thereof, the regulations in §§ 816.1 to 816.9 shall supersede Sugar Regulations 815 (19 F. R. 7930, 20 F. R. 8807, Part 815 of this subchapter) and 816 (14 F. R. 2163, Part 816 of this subchapter), except that actions with respect to mainland and local sugar taken prior to such effective date and pursuant to Sugar Regulations 815 (19 F. R. 7930, 20 F. R. 8807) and 816 (14 F. R. 2163) shall be subject to and governed by such sugar regulations.

Issued at Washington, D. C., this 19th day of March 1958.

[SEAL] WALTER C. BERGER,
Administrator,
Commodity Stabilization Service.

[F. R. Doc. 58–2192; Filed, Mar. 24, 1958; 8:49 a. m.]

Chapter IX—Agricultural Marketing Service (Marketing Agreements and Orders), Department of Agriculture

PART 984—WALNUTS GROWN IN CALIFORNIA, OREGON, AND WASHINGTON

ORDER ESTABLISHING REVISED GRADE AND SIZE REGULATIONS FOR UNSHELLED WALNUTS; CORRECTION

The limiting dimension as to diameter for large size Eureka variety and type walnuts set forth in § 984.403 (b) (1) (iii) published in the FEDERAL REGISTER of March 12, 1958 (23 F. R. 1691) which reads "$^{7}\%_{64}$ inches" is hereby corrected to read "$^{7}\%_{64}$ inches." As so corrected, said subdivision reads as follows:

(iii) *Large size.* Walnuts of which not over 12 percent, by count, pass through a round opening $^{7}\%_{64}$ inches in diameter, except that, for walnuts of the Eureka variety and type, such limiting dimension as to diameter shall be $^{7}\%_{64}$ inches.

Dated: March 20, 1958.

[SEAL] ORIS V. WELLS,
Administrator,
Agricultural Marketing Service.

[F. R. Doc. 58–2191; Filed, Mar. 24, 1958; 8:49 a. m.]

TITLE 24—HOUSING AND HOUSING CREDIT

Chapter IV—Federal National Mortgage Association, Housing and Home Finance Agency

PART 400—MORTGAGE PURCHASES, SERVICING AND SALES

MISCELLANEOUS AMENDMENTS

Correction

In F. R. Doc. 58–1900, appearing at page 1758 of the issue for Friday, March 14, 1958, the following change should be made:

In the second sentence of § 400.62, the figure "$6,500" should read "$6,650".

TITLE 25—INDIANS

Chapter I—Bureau of Indian Affairs, Department of the Interior

Subchapter G—Tribal Government

PART 73—ELECTION OF OFFICERS OF THE OSAGE TRIBE

REVISION OF REGULATIONS

There was published in the FEDERAL REGISTER on February 19, 1958 (23 F. R. 1076) notice of intention to revise 25 CFR Part 73 to provide proportionate voting by persons owning interests in the Osage Tribal Estate and to change the present system of absentee voting so that an absent voter will send his ballot directly to the Supervisor of the election board instead of casting it through another voter not an election official.

Interested persons were invited to participate in the proposed rule making by presenting their views, data and arguments in writing to the Commissioner of Indian Affairs, Department of the Interior, Washington 25, D. C., within thirty days of the date of publication. The views and arguments received have been considered. The revision of 25 CFR Part 73 is substantially the same as proposed. The principal changes are in §§ 73.35 and 73.40. Section 73.35 has been changed to permit inspection, by any person eligible under § 73.21 to vote, of a special list showing voters, their addresses and the headright interest of each. The provision for numbering ballots has been deleted from § 73.40.

A new § 73.33, *Watchers and challengers,* has been added which provides that any candidate or political party may appoint in writing a person to act as watcher and challenger.

The act of June 28, 1906 (34 Stat. 539), as amended, requires that there be a quadrennial election of officers of the Osage Tribe on June 2, 1958. In order to permit proper preparation for the election and to give reasonable notice to the voters, the revision of 25 CFR, Part 73 set out below is adopted and is effective the date of this publication.

HATFIELD CHILSON,
Acting Secretary of the Interior.

MARCH 21, 1958.

GENERAL

Sec.
73.1 Definitions.
73.2 Statutory provisions.

ELIGIBILITY

73.21 General.

ELECTIONS

73.31 Applicability.
73.32 Election board.
73.33 Watchers and challengers.
73.35 List of voters.
73.36 Disputes on eligibility of voters.
73.37 Election notices.
73.38 Opening and closing of polls.
73.39 Voters to announce name and residence.
73.40 Ballots.
73.41 Absentee voting.
73.42 Absentee ballots.
73.43 Canvass of election returns.
73.44 Interpreters.
73.45 Electioneering.
73.46 Notification of election of tribal officers.
73.47 Contesting elections.
73.48 Notice of contest.
73.49 Expenses of elections.
73.51 Nominating conventions and petitions.

AUTHORITY: §§ 73.1 to 73.51 issued under sec. 9, 34 Stat. 539, sec. 7, 45 Stat. 1478, 71 Stat 471.

§ 73.1 *Definitions.* As used in this part:

(a) The term "supervisor" means the tribal election official chosen and appointed by the Principal Chief or Assistant Principal Chief to act as chairman of the election board and shall in the absence of the supervisor denote the Assistant Supervisor.

§ 73.2 *Statutory provisions.* Section 7 of the act of March 2, 1929 (45 Stat. 1481) provides in part as follows:

That there shall be a quadrennial election of officers of the Osage Tribe as follows: A principal chief, an assistant principal chief, and eight members of the Osage tribal council, to succeed the officers elected in the year 1928, said officers to be elected at a general election to be held in the town of Pawhuska,

Oklahoma, on the first Monday in June 1930 and on the first Monday in June each four years thereafter, in the manner to be prescribed by the Commissioner of Indian Affairs, and said officers shall be elected for a period of four years commencing on the 1st day of July following said elections. * * *

ELIGIBILITY

§ 73.21 *General.* Only members of the Osage Tribe, who will be twenty-one years of age or over on election day and whose names appear on the quarterly annuity roll at the Osage Agency as of the last quarterly payment immediately preceding the date of election will be entitled to hold office or vote for any tribal officers. Each such voter shall be entitled to cast one ballot and each ballot shall have exactly the same value as the voter's headright interest shown on the last quarterly annuity roll.

ELECTIONS

§ 73.31 *Applicability.* The manner of carrying out elections to be held under the act of June 28, 1906 (34 Stat. 539), as amended by the act of March 2, 1929 (45 Stat. 1478), as amended by the act of August 28, 1957 (71 Stat. 471), is covered in the regulations set forth in this part. The next election will be held on the first Monday in June 1958 and subsequent elections will be held on the first Monday in June each four years thereafter.

§ 73.32 *Election Board.* The Principal Chief, or in his absence the Assistant Principal Chief shall, not more than sixty-five days nor less than forty-five days preceding the day appointed by law for the holding of an election of officers of the Osage Tribe issue in the form and manner prescribed in § 73.37, an election notice and appoint an election board consisting of a supervisor who shall be chairman, assistant supervisor, five judges, four clerks and two interpreters whose duties shall be to conduct the election as provided in the regulations in this part: *Provided further,* That the Superintendent on the recommendation of the election board may designate extra clerical assistants. Prior to the date of the election, the election board shall assemble and make necessary arrangements for the election in a building to be designated by the Superintendent of the Osage Agency as the polling site and make the necessary preparation for receiving prospective voters, for receiving absentee ballots, and see to it that voting booths are arranged to afford privacy. Members of the election board, and any extra clerical assistants designated by the Superintendent under authority contained in this section, other than employees of the Osage Agency, when duly appointed as provided for in this part may be compensated for conducting each quadrennial election at rates to be fixed by the Osage tribal council. If a member of the election board desires to be relieved from duty for any cause he shall notify the Principal Chief or in his absence the Assistant Principal Chief, in writing to that effect and the Principal Chief, or in his absence the Assistant Principal Chief shall designate someone else to serve as a member of the election board. The supervisor, or in his absence the assistant supervisor, shall see that the rules prescribed for conducting the election are faithfully carried out. The ballots shall be handed out by a judge to the voters as they present themselves to vote, after being identified by a clerk who shall be supplied with a copy of the list of voters prepared pursuant to § 73.35. The judge before handing out a ballot shall remove the detachable portion. A judge shall receive the ballot after the voter has indicated his choice thereon by placing an "X" mark opposite the name of each candidate for whom he desires his vote counted and shall deposit same in the ballot box. The duties of the remaining judges in conjunction with the supervisor and interpreters will be to read the names on the ballot when requested so as to identify the candidates or furnish such other information as may be desired in that connection and also to assist prospective voters unable because of language difficulties or physical incapacity to cast votes for candidates of their choice, and to undertake such other duties as may be assigned by the supervisor.

§ 73.33 *Watchers and challengers.* Any candidate or political party may name a person to act as watcher and challenger at any election provided for by the regulations in this part. Each watcher and challenger shall be appointed in writing by the candidate or political party he or she represents. The watchers and challengers shall have the right to be present in the polling place but outside the voting booths and to watch the election officials, the balloting, the call, the tally, and the recording of the result of the vote. It shall be the duty of the watcher to watch, listen, and observe the count for all candidates voted for and to insist upon an honest and fair count but shall have no further authority than to have the election judges and clerks note of record any objections to the count and to challenge the result thereof. The challenger shall have the right to question any voter and his right to vote. Watchers shall not divulge or give out any intimation or information as to the count prior to announcement by the election board. A watcher or challenger shall receive no compensation for his services.

§ 73.35 *List of voters.* The Superintendent of the Osage Agency shall compile a list of the voters of the Tribe who are qualified under § 73.21. Such list shall set forth only the name and last known address of each voter. The Superintendent shall furnish copies of the list to the Supervisor of the Election Board and shall post copies at the headquarters of the Osage Agency at Pawhuska, Oklahoma, and such other places, as the Election Board may determine to be appropriate. The compilation, posting and distribution of copies to the Supervisor of the Election Board shall be done as soon as possible after preparation of the last quarterly annuity roll immediately preceding the election. Copies of the list shall also be made available for the purpose of checking off the name of each voter as his ballot is cast and for determining, in the event of question, the right of any individual to vote. In addition to the above list of voters the Superintendent shall prepare and have available in the Agency office a special list of voters showing only the name, last known address and the value of each voter's headright interest. Any person eligible under § 73.21 to vote shall have the right to inspect the special list of voters at the Osage Agency during regular hours of business.

§ 73.36 *Disputes on eligibility of voters.* (a) The election board shall fix a date not less than five days before the election at which time all complaints will be heard. The election board shall, at least three days before the date of election, determine any claim or challenge as to the right of any person to be listed on the roll of eligible voters.

(b) Any voter of the tribe shall have the right to challenge any person presenting himself to vote and it shall be the duty of the supervisor and a judge of the board to make such investigation then and there as they deem essential, and decide the question of whether or not a person is a listed voter.

§ 73.37 *Election notices.* The election notice shall set forth the place, date and time for holding the election, qualification of voters, method of nominating candidates, and closing date for same, method of locating each name on the ballot and the names of each member of the election board. As soon as possible a copy of the notice of the election, after approval by the Superintendent of the Osage Agency, shall be mailed to each qualified voter at his last known address.

§ 73.38 *Opening and closing of polls.* The polls shall remain open without intermission from 8 a. m. to 8 p. m. on the date of the election. When all else is in readiness for the opening of the polls the supervisor shall open the ballot box in view of the other election officers, shall turn same top down to show that no ballots are contained therein, and shall then lock the box and retain the key in his possession until after the polls are closed and the count of the ballots is started.

§ 73.39 *Voters to announce name and residence.* Each voter shall upon presenting himself to vote announce to the clerk his name, and address.

§ 73.40 *Ballots.* The Superintendent of the Osage Agency shall have ballots printed showing the name and the office for which each candidate has been nominated and there shall be space for writing in names of any individuals qualified to hold office, whose names do not appear on the ballot and also space for showing the value of the respective ballots. The Superintendent shall have recorded on a detachable portion of each ballot the name of the voter. The value of each voter's ballot shall be recorded on the principal portion of the respective ballots. Any faction or group has the right to nominate any candidate it chooses, in accordance with the regulations prescribed in this part. The names of such candidates shall be printed on

the ballot in the manner set forth as follows:

Under the heading, Principal Chief, with notation to vote for one, shall appear names of all candidates for that office. Similarly for Assistant Chief. Under the heading, Members of Council, with notation to vote for eight, shall appear names of all candidates for Council. Names of candidates for office shall appear only once on ballot, regardless of the fact that they may have been nominated on more than one ticket. The order in which names of qualified candidates for office will be placed on the ballot shall be by lot method of drawing, in a manner to be determined by the Tribal Council, and to be free from or regardless of party or factional affiliations. A record shall be kept of any ballots that may be mutilated, canceled, or used as samples.

Upon each ballot will be a space in which the clerk prior to issuing the ballot shall see that the value of the ballot shall be exactly the same value as the voter's headright interest as shown on the last quarterly annuity roll. As verification the clerk shall initial the ballot so numbered in the margin. In addition each ballot shall be stamped "Official Ballot" (facsimile signature Supervisor Osage Election Board). Should any voter spoil or mutilate his ballot in his effort to vote he may surrender the ballot to the Supervisor who shall give the voter in lieu thereof another ballot which shall show its appropriate value. The spoiled or mutilated ballot shall be retained with other records pertaining to the election.

§ 73.41 *Absentee voting.* (a) Any eligible voter who will be unable to appear at the polls in Pawhuska on election day shall be entitled to vote by absentee ballot and his ballot shall have exactly the same value as the voter's headright interest shown on the annuity roll. All applications for absentee ballots shall be made in writing by the absent voter to the supervisor. It shall be the duty of the supervisor, upon receipt of such an application to forward to such absent voter an envelope enclosing a ballot (after removing the detachable portion). There shall also be enclosed the below described form of affidavit, an outer and an inner envelope. This shall be done not more than 30 days before any election provided for in this part, except that supplies, affidavits, and ballots may be mailed to absent voters residing outside the continental limits of the United States at any time after the issuance of the election notice. Each ballot shall indicate the value of the votes to which each voter is entitled. The supervisor shall maintain a file of all applications received together with a record of the names and addresses of all persons to whom absentee ballots are mailed, including date of mailing and shall write, mark, stamp or print in a margin of each such ballot the words "Absentee Ballot," and the date of issuance.

(b) The absent voter shall prepare and fold the ballot and enclose it in the "inner envelope" supplied to him by the supervisor. He shall execute the affidavit supplied which shall be in the following form:

I, do solemnly swear (or affirm) that I am a member of the Osage Tribe of Indians; that I will be twenty-one years of age or over at the election date; that I am now a resident of _____; and will be unable to appear at the polls in Pawhuska, Oklahoma, on election day.

_____

Subscribed and sworn to before me this _____ day of _____, 19__.

(c) The absentee voter shall enclose only his ballot in the inner envelope. The inner envelope shall then be sealed. The voter shall then enclose the sealed inner envelope and the executed affidavit in the outer envelope (mailing envelope). It shall be incumbent on the voter to affix the necessary postal stamps. The outer pre-addressed envelope shall be printed to show address as follows: (1) Supervisor, Osage Election Board, (2) The post office lock box number; (3) Pawhuska, Oklahoma.

§ 73.42 *Absentee ballots.* The absentee ballots shall remain in the locked box in the Post Office, Pawhuska, Oklahoma, until 2:00 p. m. on the day of election at which time, the Supervisor or Assistant Supervisor of the Election Board, accompanied by the Superintendent of the Osage Agency or his designated representative, shall receive the locked box from the post office and shall personally transport same to the polling site where it shall be delivered immediately still locked to the Supervisor or Assistant Supervisor of the Election Board. No absentee ballots will be received at any time or by other means than provided for in this section. The Supervisor or Assistant Supervisor in the presence of the Judges shall immediately unlock the locked box containing the absentee ballots and then open each outer envelope, but shall not open the inner envelope; shall then determine whether the person whose name which is signed to the affidavit is a duly qualified voter of the Osage Tribe and check said voter against and off the poll list. The sealed inner envelope shall then be dropped in the official ballot box and remain there until count of all ballots is commenced. The ballot, contained in any inner envelope which shall have been opened or unsealed before it has been delivered to the judges shall be rejected and not deposited in the official ballot box nor counted.

§ 73.43 *Canvass of election returns.* Promptly at one minute past 8:00 o'clock p. m. the supervisor in the presence of the election board shall open the official ballot box and move the slide on inside of box closing the slot and thereafter shall immediately and in the presence of said board close and lock the ballot box until the count of the ballot is to be started. The supervisor shall then in the presence of the election board unlock and open ballot box, after which the count shall be started. The inner envelopes containing absentee ballots shall be opened, the absentee ballots extracted therefrom, said absentee ballots then to be mingled with all other ballots. The supervisor and not less than two of the judges shall remain continuously in the room until the ballots are finally counted. Two judges shall act as official counters and the clerks shall record the value of each vote. These figures shall be recorded on a sheet or sheets opposite the name of each candidate for whom the voter expressed his choice and shall continue this manner of recording until all votes have been recorded. The duties of the remaining officials of the election board will be to assist in the correct counting and recording of the value of each vote cast and the totaling of the values of the votes for each candidate. After the recording from each ballot is completed that ballot shall be pierced by a needle and string and after all ballots have been so treated the ends of the string shall be tied together and the ballots deposited with the list of names of voters kept by the clerk during the election in the ballot box which shall then again be locked and the keys retained by the supervisor. After the ballot box is securely locked the supervisor shall not again open it, but shall deliver said box in that condition to the Superintendent of the Osage Agency, and the box shall be retained in a safe place by said Superintendent, until opened by order of the supervisor or the election board in the event a contest is filed. In no event shall the ballots be destroyed for a period of at least 180 days after the election is held. A statement shall be prepared by the supervisor pertaining to the conduct of the election and correctness of vote tallied opposite each candidate, in which shall be incorporated the names of each candidate declared to have been elected, with designation of office and total value of votes credited each, and duly acknowledged before an officer qualified to administer oaths, which instrument shall, with the keys to the ballot box, be delivered by the supervisor to the Superintendent of the Osage Agency for appropriate disposition.

§ 73.44 *Interpreters.* Interpreters may be provided to explain the execution of the ballot to such Indians as may need instruction. Assistance may be provided for those unable to execute their own ballots, but all necessary precautions shall be taken to insure that the voter is not influenced in casting his ballot.

§ 73.45 *Electioneering.* No person shall be allowed to electioneer within the building where and when the election is in progress and it will be the duty of the supervisor to request the detail of a police officer to assist him in maintaining order about the building during the progress of the election.

§ 73.46 *Notification of election of tribal officers.* The Superintendent of the Osage Indian Agency shall in due time give written notice to candidates of their election to the various tribal offices and as soon thereafter as practicable such tribal officers shall appear and subscribe to oath of office before an officer qualified to administer oaths and such oaths shall be delivered to the Superintendent and by him transmitted to the Commissioner of Indian Affairs.

§ 73.47 *Contesting elections.* Any candidate for the office of Principal Chief,

Assistant Principal Chief, or the Osage Tribal Council may, at any time before noon on Monday next following the tribal election, file with the supervisor, or in his absence the assistant supervisor, a challenge of the correctness of the announced results of said tribal election and request a recount of the ballots and shall accompany his application with the sum of $60.00. It shall then be the duty of the election board or the supervisor to order said recount and proceed with the same as provided in this part. Said deposits shall be used by the said board to defray, or partially defray the actual expenses of said recount and any balance not so used shall be returned to said contestant.

§ 73.48 *Notice of contest.* It shall be the duty of the supervisor, to serve upon the contestee, or contestees, directly affected by such challenge or contest, a true copy of said written application, the original of which is required to be filed with the supervisor. Said service shall be made in person, where possible, within twenty-four hours after the filing of said original challenge or contest, and where personal service is impossible within such time, on account of the absence of contestee, or contestees, from Osage County, or for any other reason, it is hereby made the duty of the supervisor to serve a true copy upon the Superintendent of the Osage Indian Agency: *Provided*, That for the purpose of such constructive service, the Superintendent is hereby made and constituted the service agent of each and every candidate in all tribal elections, and by filing petition as a candidate, such candidate shall thereby be presumed conclusively to have accepted the terms and provisions hereof and specifically the constructive service as aforesaid.

§ 73.49 *Expenses of elections.* All expenses of elections including compensation to the members of the election board and any clerical assistants designated by the Superintendent under § 73.32, stationery supplies, printing and postage shall be borne by the Osage Tribe.

§ 73.51 *Nominating conventions and petitions.* Conventions shall be held in Osage County, Oklahoma, on or before the first Monday in April of the year in which a quadrennial election is held, and there shall be written reports of such conventions, duly certified by the secretary or presiding officer, showing total number of qualified voters in attendance, together with the names of candidates nominated for the various offices: *Provided*, That at least 25 qualified voters shall have been in attendance at any such convention; also, names of any independent candidates nominated by petition of not less than 25 qualified voters, each signature to be witnessed by two persons, shall be filed with the supervisor not later than 5:00 p. m. on the first Monday in April of the year in which a quadrennial election is held in order that such names may be placed on the official ballot.

[F. R. Doc. 58-2218; Filed, Mar. 24, 1958; 8:50 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix—Public Land Orders

[Public Land Order 1603]

[1812740]

[BLM 043659]

FLORIDA

REVOKING EXECUTIVE ORDER OF FEBRUARY 9, 1842, AND EXECUTIVE ORDER NO. 8508 OF AUGUST 8, 1940, WITHDRAWING PORTION OF RELEASED LANDS FOR USE OF DEPARTMENT OF NAVY FOR NAVAL PURPOSES

By virtue of the authority vested in the President by section 1 of the act of July 9, 1918 (40 Stat. 845, 848; 10 U. S. C. 1341) and otherwise, and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. The Executive Order of February 9, 1842 and Executive Order No. 8508 of August 8, 1940, which withdrew the following-described lands in Florida for use of the War Department for military purposes, are hereby revoked:

(a) In the Executive Order of February 9, 1842:

A tract of land on the easterly end of Fosters Bank, together with the former Robertson Island now connected thereto, located in fractional sections 33 and 34, T. 3 S., R. 31 W., Tallahassee Meridian.

The tracts described aggregate approximately 135 acres.

(b) In Executive Order No. 8508:

T. 3 S., R. 31 W.,
Sec. 24, lot 3;
Sec. 25, lot 2;
Sec. 28, lot 1 and 2;
Sec. 30, lot 2.
The areas described aggregate 195.26 acres.

2. Subject to valid existing rights, the following-described lands, which are the lands released from withdrawal by paragraph 1 (a) of this order, are hereby withdrawn from all forms of appropriation under the public-land laws, including the mining and mineral-leasing laws, and reserved for use of the Department of the Navy for naval purposes, provided, however, that the withdrawn minerals in the lands shall remain under the jurisdiction of the Department of the Interior, and no disposition shall be made of such minerals except under the applicable United States mining and mineral-leasing laws, and then only after such modification of the provisions of this order as may be necessary to permit such disposition:

TALLAHASSEE MERIDIAN

T. 3 S., R. 31 W.,
Sec. 34, lot 1;
Secs. 33 and 34, the former Robertson Island, now connected to lot 1, sec. 34, unsurveyed.
The tracts described aggregate approximately 135 acres.

3. The lands described in paragraph 1 (b) of this order aggregating approximately 195.26 acres, are hereby classified for disposal pursuant to the act of June 14, 1926 (44 Stat. 741) as amended by the act of June 4, 1954 (68 Stat. 173; 43 U. S. C. 869). This classification precludes the appropriation of the lands under any other public land law except under the provisions prescribed by the act.

[SEAL] FRED G. AANDAHL,
Assistant Secretary of the Interior.

MARCH 18, 1958.

[F. R. Doc. 58-2169; Filed, Mar. 24, 1958; 8:45 a. m.]

[Public Land Order 1604]

[53592]

ALASKA

PARTIALLY REVOKING PLO 693 OF DECEMBER 12, 1950, WHICH WITHDREW PUBLIC LANDS FOR USE OF DEPARTMENT OF AIR FORCE FOR MILITARY PURPOSES

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Public Land Order No. 693 of December 12, 1950, which withdrew public lands in Alaska for use of the Department of the Air Force for military purposes, is hereby revoked so far as it affects any land not included in the following-described portion of Parcel A of that order:

PARCEL A

Beginning at the point of intersection of latitude 64°57'45" N., and longitude 148°20' W., thence
South, 4560' approximately along longitudinal line;
West, 6480' approximately along latitude 64°57' N.;
North, 4560' approximately along longitude 148°22'30" W.;
East, 6480' approximately along latitude 64°57'45" N., to point of beginning.
The tract described contains approximately 679 acres.

2. This order shall not affect the lands included in Parcel B of Public Land Order No. 693.

3. Subject to any existing valid rights and the requirements of applicable law, the restored lands are hereby opened to settlement and to filing of such applications, selections, and locations as are allowable on unsurveyed lands in accordance with the following:

a. Subject to the applications and claims described in paragraph b (1) below, the lands, beginning at 10:00 a. m. on April 24, 1958, will be subject to settlement under the Homestead and Alaska Home Site Laws by qualified veterans of World War II or of the Korean Conflict, and by others entitled to preference rights under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284) as amended. Beginning at 10:00 a. m. on July 24, 1958, any remaining lands will be subject to settlement under these laws by other qualified persons.

b. Applications and selections under the nonmineral public land laws and applications and offers under the mineral-leasing laws may be presented to the Manager mentioned below, beginning on

the date of this order. Such applications, selections, and offers will be considered as filed on the hour and respective dates shown for the various classes enumerated in the following paragraphs:

(1) Applications by persons having preference rights conferred by existing laws or equitable claims subject to allowance and confirmation will be adjudicated on the facts presented in support of each claim or right. All applications presented by persons other than those referred to in this paragraph will be subject to the applications and claims mentioned in this paragraph.

(2) All valid applications under the Small Tract Laws by qualified veterans of World War II or of the Korean Conflict, and by others entitled to preference rights under the act of September 27, 1944 (58 Stat. 747; 43 U. S. C. 279–284) as amended, presented prior to 10:00 a. m. on April 24, 1958, will be considered as simultaneously filed at that hour. Rights under such preference right applications after that hour and before 10:00 a. m. on July 24, 1958, will be governed by the time of filing.

(3) All valid applications and selections under the nonmineral public land laws, other than those coming under paragraphs (1) and (2) above, and applications and offers under the mineral leasing laws, presented prior to 10:00 a. m. on July 24, 1958, will be considered as simultaneously filed at that hour. Rights under such applications and selections filed after that hour will be governed by the time of filing.

c. The lands will be open to location under the United States mining laws, beginning at 10:00 a. m. on July 24, 1958.

4. Persons claiming veterans' preference rights under paragraph 3b (2) above must enclose with their applications proper evidence of military or naval service, preferably a complete photostatic copy of the certificate of honorable discharge. Persons claiming preference rights based upon statutory preference or equitable claims must enclose properly corroborated statements in support of their applications, setting forth all facts relevant to their claims. Detailed rules and regulations governing applications which may be filed pursuant to this notice can be found in Title 43 of the Code of Federal Regulations.

5. The Territory of Alaska has elected not to exercise the preference right of selection granted it by section 202 (b) of the Alaska Mental Health Enabling Act of July 28, 1956 (70 Stat. 711; 48 U. S. C. 46.3 (b)).

Inquiries concerning the lands shall be addressed to the Manager, Land Office, Bureau of Land Management, Fairbanks, Alaska.

[SEAL] FRED G. AANDAHL,
Assistant Secretary of the Interior.

MARCH 19, 1958.

[F. R. Doc. 58-2170; Filed, Mar. 24, 1958; 8:46 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF AGRICULTURE

Agricultural Marketing Service

[7 CFR Part 914]

[Docket No. AO-245-A3]

NAVEL ORANGES GROWN IN ARIZONA AND DESIGNATED PART OF CALIFORNIA

NOTICE OF RECOMMENDED DECISION AND OPPORTUNITY TO FILE WRITTEN EXCEPTIONS WITH RESPECT TO PROPOSED AMENDMENT OF AMENDED MARKETING AGREEMENT AND ORDER REGULATING HANDLING

Pursuant to the rules of practice and procedure, as amended, governing proceedings to formulate marketing agreements and marketing orders (7 CFR Part 900), notice is hereby given of the filing with the Hearing Clerk of the recommended decision of the Administrator, Agricultural Marketing Service, United States Department of Agriculture, with respect to the proposed amendment of the marketing agreement, as amended, and Order No. 14, as amended (7 CFR Part 914), hereinafter referred to collectively as the "order," regulating the handling of navel oranges grown in Arizona and designated part of California, to be made effective pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (48 Stat. 31, as amended; 7 U. S. C. 601 et seq.; 68 Stat. 906, 1047), hereinafter referred to as the "act." Interested parties may file written exceptions to this recommended decision with the Hearing Clerk, United States Department of Agriculture, Room 112, Administration Building, Washington 25, D. C., not later than the close of business of the twentieth day after publication thereof in the FEDERAL REGISTER. Exceptions should be filed in quadruplicate.

Preliminary statement. The public hearing, on the record of which the proposed amendment of the order is formulated, was initiated by the Agricultural Marketing Service as a result of proposals submitted jointly by American National Foods, Inc., Pure Gold, Inc., and Sunkist Growers, Inc. In accordance with the applicable provisions of the aforesaid rules of practice and procedure, a notice that such public hearing would be held on October 25, 1957, in Room 810, Federal Building, 312 North Spring Street, Los Angeles, California, was published in the FEDERAL REGISTER (22 F. R. 7563) on September 24, 1957.

Material issues. The material issues presented on the record of the hearing were concerned with amending the order to:

(1) Authorize grade regulation of navel orange shipments and require inspection and certification of such shipments when grade regulations are effective;

(2) Permit growers who also are handlers, or employees of handlers or central marketing organizations, to serve as grower members of the Navel Orange Administrative Committee;

(3) Revise the provisions relating to the granting of short life allotment so that handlers controlling short life oranges will receive allotment during the entire portion of the marketing year that they have available marketable oranges; and

(4) Require that the mandatory biennial referenda to determine whether continuance of the order is favored by producers be held upon recommendation of the committee.

Findings and conclusions. The findings and conclusions on the material issues, all of which are based upon the evidence adduced at the hearing and the record thereof, are as follows:

(1) The provisions of the order should be amended to extend the scope of regulations by authorizing grade limitations and requiring inspection of navel orange shipments whenever grade limitations are in effect. The production of navel oranges in California and Arizona is in excess of the quantity which can be marketed in fresh fruit channels without unduly depressing the prices received for such fruit. Production of navel oranges in California and Arizona during the past four seasons (1953–54 through 1956–57) has ranged between 15 and 15.8 million boxes, or an average production of approximately 33,000 carloads. During this same period, regulation of the flow of fresh market shipments of navel oranges has been carried out under the order so as to establish and maintain orderly marketing conditions for such fruit. Navel orange shipments in fresh market channels averaged about 28,000 carloads during such period. Thus, approximately 5,000 carloads of navel oranges have been available each of these years in excess of the quantity that it has been possible to market in fresh fruit channels without substantially lowering returns to growers.

The order does not contain any provision for regulating or controlling the disposition of the oranges that are in excess of the quantity necessary to supply the normal demand in the fresh market channels or for restricting the quality, except as quality may be reflected by size, of the oranges marketed in such channels. The prices received for oranges of the lower grades are, in general, substantially lower than those received for the best quality of oranges; and it was testified that the sale of such lower grade oranges, at the lower prices, tends also to lower the prices received for the best grades. The diversion of such lower grades of oranges to outlets other than the fresh fruit market would tend to increase grower returns and would also provide consumers with a better average quality of fresh oranges. However, there is a tendency for some handlers to ship in fresh market channels

oranges of the less desired grades. With the weekly volume of shipments of navel oranges limited by regulation under the order, prices received in fresh market channels for the lower grades, while lower than the prices of the better quality oranges, often will exceed the returns that may be realized from the diversion of such oranges to other outlets. Such sales apparently are made in the belief that a higher return is realized for such fruit when, in fact, the overall market price is depressed and, if the total supply of oranges is in excess of the fresh market demand, these lower grade oranges displace in the fresh market an equivalent quantity of the better quality fruit. Consequently, some of the better quality oranges later must be diverted to outlets other than the fresh market.

The evidence presented at the hearing shows that the demand for particular grades and sizes of oranges varies depending upon the grade and size composition of the oranges shipped to the fresh markets from the production area and from other areas in competition with navel oranges. For example, a desirable size of oranges of only average quality, if in limited supply in the fresh market, may command a higher price than the best quality of oranges of a less desirable size. Also, only a portion of the total quantity of a grade of oranges may, at times, be desired by the fresh markets. The order should be amended, therefore, to provide authorization for regulation of the grades of navel oranges handled, including authorization to limit a portion of a particular grade or grades of oranges by specifying the sizes of the particular grade that may be handled, during any period for which it is determined that the supply and demand conditions warrant.

Recommendations for, and issuance of, grade regulations should be made on the basis of the prorate districts established in the order. Normally a grade regulation should apply uniformly to all districts shipping oranges at the same time since the shipment of a quantity of a particular grade of orange should have the same market effect regardless of the district from which it is shipped. However, the grade composition of the available supplies of oranges in the respective prorate districts may vary materially during some seasons or a portion of a season and uniform grade restrictions for the production area as a whole, under such circumstances, may result in substantial restrictions in one district and little, if any, restriction in another district. Also, the respective prorate districts do not begin shipments at the same time, and it may be desirable to establish grade regulations in one district before the time when it is possible to determine the appropriate regulation for another district.

In arriving at its recommendation for grade regulation of navel oranges, the committee should carefully consider all available information on the factors affecting marketing conditions, including market prices, availability, composition, and anticipated utilization of supplies, and other related factors, in order to assure that the recommendation is arrived at on a sound economic basis.

Provision should be made in the order to require all oranges handled, during any period when grade restrictions are effective, to be inspected by the Federal or Federal-State Inspection Service and certified as complying with such restrictions. Inspection and certification of all oranges handled during periods of grade regulation are essential to the effective supervision of such regulations as it is only through such inspection and certification that compliance with the restrictions may be ascertained.

Responsibility for obtaining inspection and certification of oranges should be placed upon each person who handles them. Handlers are responsible for complying with the regulations under the order, and it is reasonable to require the handler of each particular lot of oranges to have the lot inspected since he is the only one in a position to request the inspection. However, should a particular lot of oranges previously have been inspected and certified, this requirement obviously should not be applied to the subsequent handler.

The Federal and Federal-State Inspection Services are the logical agencies to perform the required inspection and certification. Handlers are familiar with such services, and the use of such agencies is desired by the industry. However, these inspection agencies have not been utilized, in the past, in connection with the majority of the shipments of navel oranges. Consequently, there are some problems of inspection of navel orange shipments that are not present for other fruit and vegetable commodities. These problems relate, primarily, to the recruiting and maintaining of a sufficient force to inspect all oranges handled whenever grade regulations are in effect. It is necessary, therefore, for the order to authorize the committee to enter into an agreement with the inspection services with respect to the cost of inspection and to collect from handlers their pro rata shares of such costs. In this way, inspection may be made available to handlers at cost, whereas the inspection agencies otherwise would be required to fix fees sufficiently high that losses would not be incurred.

Whenever inspection is required in connection with a grade regulation and size restrictions also are in effect the inspection and certification should be extended to require certification of the sizes of the oranges contained in each lot handled. The committee currently is conducting compliance checks in connection with size regulations which readily may be performed by the inspectors during inspection and certification of the grade of the oranges handled.

(2) The current membership of the Navel Orange Administrative Committee includes four members who are handlers or employees of handlers and six members who are growers not engaged in the handling of oranges nor employed by handlers or central marketing organizations. The requirement that the grower members not be handlers or employees of handlers or central marketing organizations has unduly restricted the selection of the grower members. There has been an increasing tendency for growers, particularly the younger progressive growers, to engage in handler activities. Thus, many of the most qualified growers, from the standpoint of ability and experience, have been unavailable for service on the committee as grower members.

Over 80 percent of the navel orange crop is marketed by cooperative marketing organizations, and approximately 70 percent of the total grower and handler membership is nominated by, and represent, cooperative marketing organizations. Since these grower and handler members all are primarily concerned with advancing the interests of growers, there appears to be no cogent reason for limiting grower membership on the committee to persons who are growers only. The order should be amended, therefore, as hereinafter set forth.

(3) The current provisions of the order relating to the allocation of allotment to handlers when volume regulations are in effect provide for the withholding of allotment from all handlers so as to permit accelerated movement of oranges by handlers of short life oranges. A handler of short life oranges is a handler whose oranges are of such keeping quality that he would be unable to handle, over the normal marketing period for the oranges grown in the particular prorate district, as large a proportion of his oranges as the average that will be handled by all handlers in such district. In the operation of this provision, the committee has determined the amount of additional allotment required by a handler of short life oranges and, each week, issued to the handler allotment designed to provide such handler with an opportunity to ship, by a specified date, oranges in an amount equal to the average shipments of oranges to be made by all handlers during the marketing season. Thereafter, no allotment is issued to such handler of short life oranges; and the allotment that such handler would have received in the absence of the accelerated movement is divided among all the other handlers.

It was advanced at the hearing that the so-called "short life" provisions of the order should be amended since there are handlers who have short life oranges (i. e., oranges without sufficient keeping qualities to permit such handlers to make shipments equal to the industry average) but some of such handlers' oranges could be marketed as late in the marketing year as those of any other handler. Such handlers have been in the position of either foregoing the accelerated movement permitted under the short life provisions or completing shipments of his oranges before end of the marketing season. Thus, it was stated, the short life provisions should authorize accelerated movement for such handlers during a portion of the marketing season and the continued issuance of some allotments to such handlers throughout the marketing season.

Short life allotments should be issued to such handlers in the manner proposed. However, no amendment of the order is required in this connection.

The current short life provisions of the order require the committee to determine the extent to which a handler needs short life allotment. While it is also provided that such allotments be allocated at a uniform weekly rate insofar as practicable, this is not mandatory. The only mandatory requirement is that such short life allotments shall not permit a handler to receive more allotment proportionately than the average allotment issued to all handlers. No change in this provision was proposed. In fact, it was asserted at the hearing that this limitation should be continued. Consequently, there is nothing in the current provisions of the order to prevent the committee from issuing short life allotments in the manner proposed.

(4) The order currently provides for a biennial referendum to ascertain whether growers favor continuation of the order. Two of these referenda have been conducted since the order was issued in 1953. Over 90 percent of the growers, in each instance, voted in favor of continuing the order. Therefore, the expenditures necessary to the conduct of such referenda every two years do not appear to be warranted, particularly since the Secretary is required under the act to terminate the order whenever he finds such action is supported by the requisite number of growers. The order should be amended, therefore, to make such referenda mandatory only when requested by the committee. The requirements of the act concerning grower sentiment would, of course, continue to apply.

General findings. (1) The marketing agreement, as amended, and as hereby proposed to be amended, and the order, as amended, and as hereby proposed to be amended, and all of the terms and conditions thereof, will tend to effectuate the declared policy of the act;

(2) The marketing agreement, as amended, and as hereby proposed to be amended, and the order, as amended, and as hereby proposed to be amended, regulate the handling of Navel oranges grown in the designated production area in the same manner as, and are applicable only to persons in the respective classes of industrial or commercial activity specified in, the marketing agreement and order upon which hearings have been held;

(3) The marketing agreement, as amended, and as hereby proposed to be amended, and the order, as amended, and as hereby proposed to be amended, are limited in their application to the smallest regional production area that is practicable consistently with carrying out the declared policy of the act;

(4) The marketing agreement, as amended, and as hereby proposed to be amended, and the order, as amended, and as hereby proposed to be amended, prescribe, so far as practicable, such different terms, applicable to different parts of the production area, as are necessary to give due recognition to differences in the production and marketing of naval oranges; and

(5) All handling of navel oranges grown in the designated production area is in the current of interstate or foreign commerce or directly burdens, obstructs, or affects such commerce.

Rulings on proposed findings and conclusions. December 16, 1957, was fixed as the latest date for the filing of briefs with respect to the facts presented in evidence at the hearing and the conclusions which should be drawn therefrom. No brief was filed.

Recommended amendment of the amended marketing agreement and order. The following amendment of the amended marketing agreement and order is recommended as the detailed means by which the aforesaid conclusions may be carried out:

1. Amend § 914.20 as follows:

a. Delete from the second sentence of such section the phrase "who shall not be handlers, or employees of handlers, or employees of central marketing organizations."

b. Delete from the fifth sentence of such section the phrase "and who shall not be handlers, or employees of handlers, or employees of central marketing organizations."

2. Delete § 914.63 and insert, in lieu thereof, the following:

§ 914.63 *Recommendations for grade and size regulation.* (a) Whenever the Committee finds that the supply and demand conditions for grades or sizes of oranges make it advisable to regulate, during any period, the handling of grades or sizes of oranges grown in any prorate district, it shall recommend to the Secretary the grades or sizes of such oranges which it deems advisable to be handled during such period. The Committee shall promptly submit such findings and recommendations, together with supporting information, to the Secretary.

(b) In making its recommendations, the Committee shall give due consideration to the factors referred to in § 914.51 (b).

3. Delete § 914.64 and insert, in lieu thereof, the following:

§ 914.64 *Issuance of grade or size regulation.* Whenever the Secretary shall find, from the findings, recommendations and information submitted by the Committee, or from other available information, that to limit the handling of oranges grown in any prorate district by grades or sizes, or both, would tend to effectuate the declared policy of the act, he shall fix the grades or sizes, or both, of oranges grown in such prorate district which may be handled during the specified period. When any such size regulation restricts the handling of a portion of a specified size, the quantity of such size that may be handled by a handler during a particular week shall be established as a percentage of (a) the weekly allotment issued to such handler when volume regulation is in effect, and (b) the total weekly volume handled by such handler when volume regulation is not in effect. The Committee shall be informed immediately of any such regulation issued by the Secretary, and the Committee shall promptly give adequate notice thereof to all handlers.

4. Revise the first sentence in § 914.65 to read as follows: "In the event that oranges are regulated as to size pursuant to § 914.64 the committee shall issue one or more exemption certificates to any producer who furnishes evidence, satisfactory to the committee, that he will be prevented by reason of such size regulation from having as large a proportion of oranges handled as the average proportion of all oranges which may be handled by all other producers in the same prorate district."

5. Add a new § 914.68 as follows:

§ 914.68 *Inspection and certification.* (a) Unless otherwise provided in this part, wherever a regulation issued pursuant to § 914.64 limits the grades of oranges, grown in a prorate district, that may be handled, each handler shall, prior to the handling of any lot of oranges grown in such district, cause such lot to be inspected by a duly authorized representative of the Federal or Federal-State Inspection Service and certified by such inspection service as meeting all applicable requirements of such regulation and of any size limitation that may then be in effect pursuant to such section: *Provided,* That such inspection and certification shall not be required if the particular lot of oranges previously had been so inspected and certified.

(b) The Committee may enter into an agreement with the Federal and Federal State Inspection Services with respect to the costs of the inspection and certification required by paragraph (a) of this section and may collect from handlers their respective pro rata shares of such costs.

(c) Whenever oranges are inspected pursuant to the requirements of this section, a copy of each inspection certificate issued shall promptly be furnished to the committee by the inspection service.

6. Amend § 914.83 (c) (3) to read as follows:

(3) Upon recommendation of the committee, received not later than January 15, of an odd-numbered year, the Secretary shall conduct a referendum prior to March 15 of such year to ascertain whether continuance of this part is favored by producers.

Dated: March 20, 1958.

[SEAL] ORIS V. WELLS,
Administrator,
Agricultural Marketing Service.

[F. R. Doc. 58-2190; Filed, Mar. 24, 1958; 8:49 a. m.]

[7 CFR Part 955]

[Docket No. AO-143-A2]

GRAPEFRUIT GROWN IN ARIZONA; IN IMPERIAL COUNTY, CALIF.; AND IN THAT PART OF RIVERSIDE COUNTY, CALIF., SITUATED SOUTH AND EAST OF THE SAN GORGONIO PASS

NOTICE OF RECOMMENDED DECISION AND OPPORTUNITY TO FILE WRITTEN EXCEPTIONS WITH RESPECT TO PROPOSED AMENDMENT OF AMENDED MARKETING AGREEMENT AND ORDER REGULATING HANDLING

Pursuant to the rules of practice and procedure, as amended, governing pro-

ceedings to formulate marketing agreements and marketing orders (7 CFR Part 900), notice is hereby given of the filing with the Hearing Clerk of the recommended decision of the Administrator, Agricultural Marketing Service, United States Department of Agriculture, with respect to the proposed amendment of the marketing agreement, as amended, and Order No. 55, as amended (7 CFR Part 955), hereinafter referred to collectively as the "order," regulating the handling of grapefruit grown in Arizona; in Imperial County, California; and in that part of Riverside County, California, situated south and east of the San Gorgonio Pass, to be made effective pursuant to the provisions of the Agricultural Marketing Agreement Act of 1937, as amended (48 Stat. 31, as amended; 7 U. S. C. 601 et seq.; 68 Stat. 906, 1047), hereinafter referred to as the "act." Interested parties may file written exceptions to this recommended decision with the Hearing Clerk, United States Department of Agriculture, Room 112, Administration Building, Washington 25, D. C., not later than the close of business of the fifteenth day after publication thereof in the FEDERAL REGISTER. Exceptions should be filed in quadruplicate.

Preliminary statement. The public hearing, on the record of which the proposed amendment of the order is formulated, was initiated by the Agricultural Marketing Service as a result of proposals submitted by the Administrative Committee, established pursuant to the order. In accordance with the applicable provisions of the aforesaid rules of practice and procedure, a notice that such public hearing would be held on October 31, 1957, in the Coachella Valley County Water Office, Coachella, California, was published in the FEDERAL REGISTER (22 F. R. 8262) on October 19, 1957.

Material issues. The material issues presented on the record of the hearing were concerned with amending the order to:

(1) Redefine the term "ship" and revise the regulatory provisions so as to make regulations applicable to all exports of grapefruit except those shipped directly to Mexico;

(2) Redefine the other terms set forth in §§ 955.1 through 955.7, and in §§ 955.9 and 955.11 so as to clarify and bring up to date such terms;

(3) Provide that each district's representation on the Administrative Committee, during any fiscal period, shall be determined on the basis of the production of grapefruit in such district;

(4) Clarify the duties of the Administrative Committee with respect to determinations of production, growing, handling, and marketing conditions;

(5) Revise the provisions relating to assessments to permit the establishment of an operating reserve fund and to authorize specifically the collection of assessments for the maintenance and functioning of the committee during any period of suspended activities;

(6) Redesignate the agency performing the inspection of grapefruit, required under the order, and authorize the Administrative Committee to contract with the inspection agency for such service and to collect from handlers the funds to cover the costs of such service; and

(7) Revise and clarify the provisions relating to shipments which may be made exempt from regulation.

Findings and conclusions. The findings and conclusions on the material issues, all of which are based upon the evidence adduced at the hearing and the record thereof, are as follows:

(1) The provisions of the order should be amended to extend the scope of regulation to the handling of grapefruit to additional export markets. Under the current provisions of the order, the only export shipments that are regulated are those to Canada, the principal export market for California-Arizona grapefruit at the time the order was issued. Over the past several years, an increasing volume of California-Arizona grapefruit has been exported to markets other than Canada. Approximately 135,000 boxes of such grapefruit were so exported during the 1956–57 marketing season, as compared to about 35,000 boxes during the 1949–50 season. During the seasons 1949–50 through 1955–56, exports of grapefruit to most western European markets were made under an export diversion program which specified that the fruit be inspected and meet specified quality and other requirements. This program was instrumental in improving the quality of the grapefruit exported, thereby substantially increasing the demand for such fruit. However, the export diversion program has been discontinued, and it was the consensus of those testifying at the hearing that regulation of exports of grapefruit under the order is essential if the increased demand resulting from the requirements of the export diversion program is to be retained and expanded.

In the recommendation and establishment of regulations under the order, consideration should be given to differences in the demand in domestic and export markets. Grapefruit of a size that may be sold only at discounts in the domestic markets often may be a desired size and sell at favorable prices in the export markets. The current provisions of the order recognize this difference in the demand for sizes of grapefruit in domestic and Canadian markets, and authority to specify different size regulations applicable to domestic and export shipments of grapefruit should be continued.

It was testified, without opposition, that regulations under the order should not apply to shipments made directly to Mexico. There currently is a small volume of grapefruit of the less desirable quality and sizes which is marketed in Mexico. This fruit is sold at a price which, while lower than that received for the better quality and sizes, provides a higher return than if the fruit were disposed of for the manufacture of products. However, the market in Mexico is such that little, if any, of the higher-priced, better quality and sizes of grapefruit would be purchased by the Mexican buyers. Thus, it was contended that regulation of shipments to Mexico would, for all practical purposes, result in loss of this market. The exemption from regulation relating to shipments to Mexico should provide specifically, however, that it applies only to shipments made directly to Mexico. Otherwise the exemption would provide avenues for circumventing the regulation which it would not be possible reasonably to prevent.

(2) Certain terms defined in the order should be revised so as to make their respective meanings specific and more easily understood. The definition of the term "Secretary" should make it clear that, as used in the order, this term includes any official or employee of the Department of Agriculture to whom there has been delegated authority to act for the Secretary. It obviously is physically impossible for the Secretary of Agriculture personally to perform all of the functions and duties assigned to him by law in connection with programs of this nature. Supervision of these functions and duties necessarily is carried out by officials who are delegated authority to act for the Secretary.

There have been several amendments to the act since the time this term was defined in the order. The definition of this term should be revised, therefore, to make it clear that the term "act," as used in the order, includes all of these amendments.

The term "person" currently is defined in the order as "an individual, partnership, corporation, association, legal representative, or any organized group of individuals." Redefining this term, as proposed, to mean "any individual, partnership, corporation, association, or any other business unit" constitutes only a slight change in language. However, such change is desirable in that it will assure that the term person, as used in the order, has the same meaning as when it is used in the act.

For the purpose of clarification, a definition of the term "grapefruit" should be included in the order in lieu of the definition of "fruit" currently set forth therein. Grapefruit is the only commodity covered by the order and the substitution of "grapefruit" for "fruit" in the definitions and throughout the order provisions would tend to make the order more easily understood by those not too familiar with it. The definition of "grapefruit" should follow that now set forth for the definition of "fruit" so that the coverage of the order would be unchanged. However, it should be made clear that all varieties of grapefruit are included. When the current definition of "fruit" was incorporated into the order, the colored fleshed varieties were referred to as "pink" grapefruit. Some deeper colored varieties have since been propagated, however, and these varieties generally are called "red" grapefruit. The definition of grapefruit should, therefore, reflect this change. Also, substitution of "White Water, California" for "San Gorgonio Pass" would make the definition more specific inasmuch as the town of White Water is a definite point and the Pass covers an extended area. There are no plantings of grapefruit in or nearby San Gorgonio Pass or White Water, so this change would not alter the coverage of the order.

The foregoing changes in definitions make necessary conforming changes in the definitions (currently in the order) of "district," "producer," "handler," "ship," and "variety" and throughout the order provisions, so that the provisions will be consistent. In addition, the term "producer" currently is defined in the order as "any person engaged in the production of fruit for market." It was not intended to include as a "producer" a laborer or other person who works for a fee in producing grapefruit, although the definition might be so construed. The revised definition of "producer" should encompass only those persons, engaged in the commercial production of grapefruit, who have ownership interest in the fruit produced, since it is essential to the proper administration of the order that only such persons be eligible to vote for, and serve as, members of the committee.

A definition of the term "carton" should be included in the order in lieu of the definition of "box" currently set forth therein so as to identify the common unit of measure now used for grapefruit in California and Arizona. Formerly, nearly all of the grapefruit grown in California and Arizona was marketed in the box now defined in the order. Recently, however, two cartons described in section 828.83 of the Agricultural Code of California, as amended, as standard container No. 58 and standard container No. 59, each having a capacity of approximately 32 pounds of grapefruit, have come into general use. Approximately 85 percent of the grapefruit handled during the 1956–57 season was shipped in these containers; and their use is expected to increase. It is necessary to provide for the equivalent of a carton so that grapefruit marketed in other containers may be dealt with on an equal basis. Also, provision should be made for the committee, with the approval of the Secretary, to revise this definition in the event another container should become the common unit of measure for the handling of grapefruit.

(3) The current provisions of the order provide for an administrative committee of 8 members representing the four districts as follows: Phoenix District, 3 members; Yuma District, 1 member; Imperial District, 2 members; and Coachella District, 2 members. At the time the order was issued, such representation approximated the relative production in the districts and provided an equal number of members from Arizona and California. There has been a substantial change in the portion of the total crop that is produced in each district, and trends in plantings indicate further shifts in production in the future. The provisions of the order should be amended, therefore, to provide a method of determining the membership of the committee and the representation from each district in a manner so as to reflect such shifts in grapefruit production. This may be accomplished by providing that each district shall be allotted 1 member for each 1 million cartons, or fraction thereof, of grapefruit produced in the fiscal period preceding the one in which nominations for membership on the committee are made. In order to avoid a membership on the committee so large that it might become unwieldly, the number of members from any one district should not exceed 3, regardless of production. This would assure a committee of not to exceed 12 members. Likewise, the provision for 1 member for any fraction of ½ million cartons would provide at least 1 member from each district. It is believed that a committee membership selected on this basis would provide a committee that can operate efficiently and effectively and give each district fair representation. The immediate effect of this change, based upon production in the 1956–57 season, would be to increase the current representation of Yuma District to 2 members and reduce that of the Imperial District to 1 member. For other districts and the total membership, there would be no change. Current trends in production indicate that, after 4 or 5 years, production in the Coachella District may increase sufficiently that this district would be afforded 1 additional member with the total membership of the committee increasing to 9.

In order that a reduction of 25 percent or more in the production of a district during a season, as compared to the prior season, not unduly penalize that district, provision should be made for using average production during the 3 preceding seasons to determine such district's representation. Any such substantial reduction in production would result from freezing temperatures, or similar causes, and would be of a temporary nature. Under such circumstances, the district's representation on the committee should not be changed materially, since normal production could be expected for the season in which the members would be serving. Also, should freezing temperatures cause a marked reduction in all districts during the same season, the membership of the committee conceivably could be reduced below that which would be considered adequate effectively to carry out its responsibilities.

The current provisions of the order require that one-half of the nominees elected by the producers in the two Arizona districts and one-half of the nominees elected by the producers in the two California districts be affiliated with cooperative marketing organizations, with the others not so affiliated. Similarly, one-half the members representing the two Arizona districts and one-half the members representing the two California districts are required to be affiliated with cooperative marketing organizations with the other members not so affiliated. With the foregoing changes in representation on the committee, there will not necessarily be an even number of members on the committee now representing the two California and Arizona districts. In order to maintain, insofar as practicable, the past division of membership on the committee between those affiliated with cooperatives and those not so affiliated, the order should provide that, for districts with an even number of committee members, the number of producers nominated and selected for membership on the committee should be divided equally between the two groups. For those districts with an odd number of committee members, the number of producers nominated and selected for membership on the committee should be prescribed in such manner as to provide each year as near equal representation between the two groups as may be attained. If the application of the foregoing method of determining the number of members on the committee, or to represent each district, results in an odd number of members, the majority representation between cooperatives and noncooperatives should alternate between the two groups.

In order to assure as wide a representation in each district as is practicable, the order should provide that not more than one nominee for member and one nominee for alternate member may be affiliated with the same packing house. All nominations should be submitted to the Secretary by July 1 so as to afford ample time for appointment of the committee that is to begin serving on the following August 1.

Provision should be made in the order for the Secretary to select any qualified person as a member or alternate member of the committee. Such provision is necessary to enable the Secretary to select such persons to serve on the committee as may be necessary to assure proper administration of the program, a responsibility charged to him under the act. Also, should nominations not be made in any district or by any group in accordance with the prescribed procedure, the Secretary should be authorized to make his selections without regard to nominations. It is conceivable, of course, for nearly all of the producers in a district to affiliate with either cooperative or noncooperative marketing organizations. In such circumstances, division of the membership of the committee between the two groups should be changed accordingly and the order should so provide.

(4) Certain of the duties of the committee should be clarified and made more specific. The order currently requires that the committee provide an adequate system for determining the total crop of grapefruit, including determination as to the grades and sizes. The important duty, of course, is to make, during each season, as accurate determinations as possible of the total crop of grapefruit and the grade and size composition of the crop, rather than to provide a system for doing so. Also, experience in the administration of the program has shown that the committee should investigate the growing, handling, and marketing conditions with respect to grapefruit, and to assemble data in connection therewith, so that it will be in a position to recommend regulations which will be most beneficial to the industry.

The committee has not recently performed any duties in connection with the administration of section 32 of Public Law 320, 74th Congress; nor is it expected that it will do so in the future. This duty should, therefore, be deleted.

(5) The current provisions of the order provide that any assessments col-

lected during a fiscal period which are in excess of the expenses incurred during such period shall be credited, pro rata, to the account of the handlers from whom collected. Also, any such handler may demand payment of his share of the excessive assessments and it shall be paid to him. Because of these provisions, the committee has not been able to accumulate funds needed at the beginning of the fiscal period when assessment income is lower than expenses. The fiscal period begins on August 1, but volume shipments of grapefruit are not under way until approximately 3 months later. The committee must operate, therefore, during one-fourth of the fiscal period before assessment income equals current expenses and over a greater portion of the fiscal period before cumulative expenses are equaled. In the past, the committee has financed its operations early in the fiscal period by requesting handlers to make advance payments of assessments. Such advance payments are voluntary, however, and it would be desirable to establish a better method of financing operations during this portion of the year. The order should be amended, therefore, to authorize the committee to withhold immediate distribution of the excess funds available at the end of the fiscal period. Such excess funds should be available as an operating reserve for use during any portion of a fiscal period when assessment income is less than expenses.

In order that such reserve fund not be accumulated beyond a reasonable amount, a maximum of not to exceed approximately one fiscal period's expenses should be prescribed. The evidence of record indicates such an amount would be sufficient to cover any foreseeable need. After the reserve has been built up to that amount, it should be handled as a "revolving fund" with the excess assessments placed in this reserve the first year after its establishment being returned to the handlers from whom it was collected and the excess assessments of the latest fiscal period being added to the reserve. Establishment of an operating reserve fund, which would be handled in the manner described, would not result in any change from the current provision of the order except that refunding of excess assessments would be delayed for the period of time required for the reserve to reach the maximum level.

This marketing order program has operated continuously since it was made effective in 1941. It does not appear likely, considering the prospective supply and demand conditions for citrus fruits, that a temporary suspension of the provisions of the program would occur in the foreseeable future. It was testified, however, that it was conceivable that freezing temperatures or other conditions could reduce or damage the crop sufficiently that operation under the program would be suspended temporarily. In such event, it would be necessary for the committee to continue its activities, at least on a limited basis, during any such period so as to keep current information relating to supply and demand conditions for grapefruit and to be prepared to resume all of its duties, without undue delay, upon termination of the suspension. The act authorizes the collection of assessments for specified purposes during periods when provisions of a marketing order are temporarily suspended, and the order should be amended accordingly.

(6) The current provisions of the order require that prior to the shipment of any grapefruit, it must be inspected by the Federal-State Inspection Service. However, the inspection agency in the State of Arizona is not so designated. The Arizona inspection agency and the Federal-State Inspection Service in the State of California each are representative of the Fresh Products Standardization and Inspection Branch of the Department; and a redesignation of the inspection agency as either the Federal or Federal-State Inspection Service should be set forth in the amended order. Also, the order should be amended specifically to authorize the committee to enter into an agreement with the inspection agency relative to the costs of inspection and the collection from handlers of their proportionate shares of such costs. The committee, for many years, has been performing this service at the request of the industry. Under the agreements that have been entered into in the past, inspection has been made available to handlers at cost. This has benefited growers and handlers and has had the added advantage of enabling handlers to make payment of the assessments under the order and the costs of inspection in one transaction.

(7) The provisions of the order relating to shipments of grapefruit not subject to regulation should be revised and clarified. Such provisions currently exempt from regulation exports of grapefruit to all countries except Canada. Inasmuch as the order should now provide authority, as heretofore discussed, for regulating all exports of grapefruit, other than directly to Mexico, this exemption should be changed. The evidence of record indicates that the current exemption from regulation of grapefruit used for specific by-products should include all commercially produced products of grapefruit rather than only those which are preserved by canning or freezing.

The current provisions of the order also exempt from regulation shipments of grapefruit by express or parcel post. This exemption was initially designed to permit unregulated movement of so-called "gift packages" which are shipped directly to the consumer. At the time the order was issued, practically all of the gift packages were shipped by Railway Express. However, a substantial volume of the gift packages now are consolidated for shipment by trucks and common carriers to the larger cities and thereafter distributed to the recipients of the gifts. Since these shipments differ only in the mode of transportation employed, equal treatment should be accorded them under the order. The original exemption for gift packages is in terms of individual shipments of 5 boxes or less since the "box" was the usual container used for this purpose. As indicated heretofore, the carton has replaced the box as the usual container and gift package shipments generally are made in a container no larger than the carton. Individual shipments of gift packages do not ordinarily exceed 5 cartons, so it is not necessary to change the number of units that may be included in the individual exempt shipments.

General findings. (1) The marketing agreement, as amended, and as hereby proposed to be amended, and the order, as amended and as hereby proposed to be amended, and all of the terms and conditions thereof, will tend to effectuate the declared policy of the act;

(2) The marketing agreement, as amended, and as hereby proposed to be amended, and the order, as amended, and as hereby proposed to be amended, regulate the handling of grapefruit grown in the State of Arizona; in Imperial County, California; and in that part of Riverside County, California, situated south and east of White Water, California, in the same manner as, and are applicable only to persons in the respective classes of industrial or commercial activity specified in, the marketing agreement and order upon which hearings have been held;

(3) The marketing agreement, as amended, and as hereby proposed to be amended, and the order, as amended, and as hereby proposed to be amended, are limited in their application to the smallest regional production area that is practicable consistently with carrying out the declared policy of the act;

(4) The marketing agreement, as amended, and as hereby proposed to be amended, and the order, as amended, and as hereby proposed to be amended, prescribe, so far as practicable, such different terms as are necessary to give due recognition to differences in the production and marketing of the grapefruit grown in the area covered thereunder.

Rulings on proposed findings and conclusions. December 2, 1957, was fixed as the latest date for the filing of briefs with respect to the facts presented in evidence at the hearing and the conclusions which should be drawn therefrom. No brief was filed.

Recommended amendment of the amended marketing agreement and order. The following amendment of the amended marketing agreement and order is recommended as the detailed means by which the aforesaid conclusions may be carried out:

1. Delete the provisions of §§ 955.1 through 955.4 and substitute in lieu thereof the following:

§ 955.1 *Secretary.* "Secretary" means the Secretary of Agriculture of the United States, or any officer or employee of the Department to whom authority has heretofore been delegated, or to whom authority may hereafter be delegated, to act in his stead.

§ 955.2 *Act.* "Act" means Public Law No. 10, 73d Congress (May 12, 1933), as amended and as reenacted and amended by the Agricultural Marketing Agreement Act of 1937, as amended (48 Stat. 31, as amended; 7 U. S. C. 601 et seq., 68 Stat. 906, 1047).

§ 955.3 *Person.* "Person" means any individual, partnership, corporation, association or any other business unit.

§ 955.4 *Grapefruit.* "Grapefruit" means grapefruit grown in the State of Arizona; in Imperial County, California; and in that part of Riverside County, California, situated south and east of White Water, California.

2. Amend the provisions of paragraph (b) of § 955.5 by deleting therefrom the words "the San Gorgonio Pass" and inserting in lieu thereof the words "White Water, California."

3. Delete the provisions of §§ 955.6 through 955.9 and substitute in lieu thereof the following:

§ 955.6 *Producer.* "Producer" means any person engaged in a proprietary capacity in the commercial production of grapefruit.

§ 955.7 *Handler.* "Handler" means any person (except a common or contract carrier of grapefruit owned by another person) who handles grapefruit in fresh form.

§ 955.8 *Handle.* "Handle" means to transport, ship, sell, or in any other way to place grapefruit in the current of commerce between the State of California and any point outside thereof, or between the State of Arizona and any point outside thereof.

§ 955.9 *Carton.* "Carton" means either standard container No. 58 or standard container No. 59 as described in section 828.23 of the Agricultural Code of California, as amended, having a capacity of approximately 32 pounds of grapefruit, or such other container and capacity as may be established by the committee with the approval of the Secretary, or the equivalent thereof.

4. Delete the provisions of § 955.11 and substitute in lieu thereof the following:

§ 955.11 *Variety.* "Variety" or "varieties" means either or both of the following classifications or groupings of grapefruit: (a) White seeded grapefruit, and white seedless grapefruit, and (b) pink or red seeded grapefruit, and pink or red seedless grapefruit.

5. Delete the provisions of §§ 955.20 through 955.22 and substitute in lieu thereof the following:

§ 955.20 *Establishment and membership.* (a) An Administrative Committee, consisting of the number of members prescribed in paragraph (c) of this section, is hereby established for the 1958–59 fiscal period and for each fiscal period thereafter. There shall be an alternate member for each member of the committee, who shall have the same qualifications as the member. Each such member and alternate member shall be a producer.

(b) The members and alternate members shall hold office for a period of one year commencing on the first day of August and continuing for one year, or until their successors are selected and have qualified. The members, alternate members, and their respective successors shall be nominated by producers and shall be selected by the Secretary, as provided in §§ 955.21 and 955.22.

(c) Each district shall be represented on the committee by one member for each million cartons, or fraction thereof, of production of grapefruit in such district during the fiscal period preceding the date on which the nomination meetings for members and alternate members are held: *Provided,* That no district shall be represented by more than three members, regardless of the production of grapefruit in such district. If production in any district during such fiscal period is less than for the preceding fiscal period by 25 percent or more, the average production during the three fiscal periods preceding such nomination meetings shall be used to determine the representation from such district.

§ 955.21 *Nomination.* (a) The Secretary shall cause to be held each year a meeting or meetings of the producers in each of the several districts for the purpose of making nominations for members and alternate members of the Administrative Committee.

(b) In those districts entitled to two members on the Administrative Committee, one nominee for member and one nominee for alternate member shall be affiliated with a cooperative marketing organization, and one nominee for member and one nominee for alternate member shall not be affiliated with a cooperative marketing organization.

(c) In those districts entitled to one member on the Administrative Committee, the nominees for member and alternate member shall, in odd-numbered years, be affiliated with a cooperative marketing organization, and the nominees for member and alternate member shall, in even numbered years, not be affiliated with a cooperative marketing organization.

(d) In those districts entitled to three members on the Administrative Committee, two nominees for members and two nominees for alternate members shall, in even numbered years, be affiliated with a cooperative marketing organization, and two nominees for members and two nominees for alternate members shall, in odd numbered years, not be affiliated with a cooperative marketing organization.

(e) Not more than one nominee for member and not more than one nominee for alternate member of the Administrative Committee from each district may be affiliated with the same packing house.

(f) Only producers affiliated with cooperative marketing organizations may elect the nominees affiliated with such organizations; and only producers not affiliated with cooperative marketing organizations may elect the nominees not so affiliated. At least one nominee shall be elected for each member and alternate member position to be filled. If nominations are not made by a particular group of producers in a district, as provided in this section, the producers of the other group may make nominations for all the positions to be filled in such district and, in such event, any limitations as to the affiliation of the nominees shall not apply.

(g) The committee may, with the approval of the Secretary, change the representation on the committee with respect to the number of nominees affiliated with cooperative marketing organizations and those not affiliated with cooperative marketing organizations in the event there is a substantial change in the number of producers affiliated with cooperative marketing organizations in any district.

(h) In voting for nominees each producer shall be entitled to vote in only one district, regardless of the number of districts in which he is producing grapefruit. Each vote shall be cast on behalf of himself, his agents, partners, subsidiaries, affiliates, and representatives. Producers who are affiliated with cooperative marketing organizations may cast one vote for each of the nominees, from the district in which the producers are producing grapefruit, who are affiliated with cooperative marketing organizations. Producers who are not affiliated with cooperative marketing organizations may cast one vote for each of the nominees, from the district in which the producers are producing grapefruit who are not affiliated with cooperative marketing organizations.

(i) Nominations shall be submitted to the Secretary on or before July 1 each year.

§ 955.22 *Selection.* From the nominations made pursuant to § 955.21, or from other qualified producers, the Secretary shall select the members and alternate members from each district. If a district is represented by two members, the Secretary shall select one member and one alternate member who are affiliated with cooperative marketing organizations and one member and one alternate member who are not affiliated with cooperative marketing organizations. If a district is represented by one member, the Secretary shall, in odd numbered years, select a member and an alternate member who are affiliated with cooperative marketing organizations, and, in even numbered years, select a member and an alternate member who are not affiliated with cooperative marketing organizations. If a district is represented by three members, the Secretary shall, in even numbered years, select two members and two alternate members who are affiliated with cooperative marketing organizations, and, in odd numbered years, select two members and two alternate members who are not affiliated with cooperative marketing organizations. In the event nominations are not made in accordance with the provisions of paragraphs (b), (c), and (d) of § 955.21, the Secretary may select the members and alternate members without regard to their affiliation.

6. Delete from § 955.23 the reference to "§ 955.21 (e)" and substitute in lieu thereof "§ 955.21 (i)."

7. Delete the provisions of paragraphs (h) and (i) of § 955.28 and substitute in lieu thereof the following:

(h) To determine as near as practicable the total crop of grapefruit, and to make such determinations, including determinations by grade and size as it

may deem necessary, or as may be prescribed by the Secretary, in connection with the administration of this part; and

(i) To investigate the growing, handling and marketing conditions with respect to grapefruit and to assemble data in connection therewith.

8. Delete the provisions of paragraphs (a), (b), and (d) of § 955.31 and substitute in lieu thereof the following:

§ 955.31 *Procedure.* (a) Three-fourths of the members of the Administrative Committee shall be necessary to constitute a quorum of the committee.

(b) For any decision of the Administrative Committee to be valid, three-fourths of the members of the Administrative Committee must cast a concurring vote. At all assembled meetings each vote must be cast in person.

* * * * *

(d) Except at an assembled meeting, the Administrative Committee may vote by telephone, telegraph, or other means, and any such vote so cast shall be confirmed promptly in writing.

9. Delete the provisions of § 955.41 and substitute in lieu thereof the following:

§ 955.41 *Assessments.* (a) Each handler who first handles grapefruit shall, with respect to the grapefruit so handled by him, pay to the Administrative Committee, upon demand, such handler's pro rata share of the expenses which the Secretary finds will be necessarily incurred by the said committee for its maintenance and functioning during each fiscal period. Such handler's pro rata share of such expenses shall be equal to the ratio between the total quantity of grapefruit handled by him as the first handler thereof, during the applicable fiscal period, and the total quantity of grapefruit so handled by all handlers during the same fiscal period.

(b) The Secretary shall fix the rate of assessment to be paid by handlers. At any time during or after the fiscal period, the Secretary may increase the rate of assessment in order to secure sufficient funds to cover any later finding by the Secretary relative to the expenses of the Administrative Committee. Any such increase shall be applied to all grapefruit handled during the given fiscal period. In order to provide funds to carry out the functions of the Administrative Committee, handlers may make advance payment of assessments.

(c) The payment of assessments for the maintenance and functioning of the Administrative Committee may be required under this part throughout the period it is in effect, irrespective of whether regulations are established by the Secretary, or whether particular provisions thereof are suspended or become inoperative.

10. Re-letter paragraph (b) of § 955.42 as paragraph (c) and insert a new paragraph (b) as follows:

(b) Notwithstanding the provisions of paragraph (a) of this section, the Administrative Committee may, with the approval of the Secretary, establish an operating reserve from funds remaining at the end of a fiscal period, which are in excess of expenses incurred during such period. Such operating reserve shall be accumulated over such period of time as the committee determines is fair and equitable to all handlers and shall not exceed an amount in excess of the preceding year's budget. The reserve shall be managed as a revolving fund and the credits and refunds provided in paragraph (a) of this section deferred until such time as the reserve reaches the amount prescribed by the committee.

11. Delete the provisions of paragraph (a) of § 955.51 and substitute in lieu thereof the following:

(a) It shall be the duty of the Administrative Committee to investigate the supply and demand conditions for grades and sizes of the varieties of grapefruit. Whenever the committee finds that such conditions make it advisable to regulate the handling of particular grades or sizes of any variety of grapefruit during any period, it shall recommend the particular grades or sizes thereof deemed advisable by it to be handled during such period, and any such recommendation may include a proposal that the handling of such variety in export, including Canada, shall be limited to sizes different from the proposed size limitation applicable to the handling of the same variety in interstate commerce. Thereafter, the committee shall promptly report such findings and recommendations, together with supporting information, to the Secretary.

12. Delete the words "shipment" and "fruit" wherever they appear in §§ 955.50 and 955.52 and in paragraph (b) of §§ 955.51 and 955.53 and substitute in lieu thereof the words "handling" and "grapefruit," respectively.

13. Delete the provisions of paragraph (a) of § 955.53 and substitute in lieu thereof the following:

§ 955.53 *Issuance of regulations.* (a) Whenever the Secretary shall find, from the recommendation and information submitted by the Administrative Committee or from other available information, that to limit the handling of any variety or varieties of grapefruit to particular grades and sizes thereof would tend to effectuate the declared policy of the act, he shall so limit the handling of such variety or varieties during a specified period; and any such regulation may provide that shipments of any such variety or varieties in export, including Canada, shall be limited to sizes different from the limitation applicable to the handling of the same variety or varieties in interstate commerce. The Administrative Committee shall be informed immediately of any such regulation issued by the Secretary, and the said committee shall promptly give adequate notice thereof to handlers.

14. Delete the provisions of § 955.55 and substitute in lieu thereof the following:

§ 955.55 *Inspection and certification.* (a) During any period in which the Secretary has regulated the handling of any variety or varieties of grapefruit pursuant to § 955.53, each handler shall, prior to the handling of any lot of such variety or varieties, cause such lot to be inspected by an authorized representative of the Federal or Federal-State Inspection Service. Promptly thereafter, such handler shall submit to the Administrative Committee a copy of the inspection certificate issued thereon. The provisions of this section shall not be applicable to a handler who handles any lot which has been so inspected and a copy of such inspection certificate has been submitted to the Administrative Committee.

(b) The Administrative Committee may enter into an agreement with the Federal and Federal-State Inspection Services with respect to the costs of the inspection required by paragraph (a) of this section, and may collect from handlers their respective pro rata shares of such costs.

15. Delete from § 955.60 the words "standard box" and substitute in lieu thereof the word "carton".

16. Delete the words "fruit" and "shipped" wherever they appear in §§ 955.61 and 955.74 and substitute in lieu thereof the words "grapefruit" and "handled," respectively.

17. Delete the provisions of § 955.70 and substitute in lieu thereof the following:

§ 955.70 *Grapefruit not subject to regulation.* Nothing contained in this subpart shall be construed to authorize any limitation of the right of any person to handle grapefruit (a) by express, parcel post, or common or contract carrier in units of five cartons or less; (b) for consumption by charitable institutions or distribution by relief agencies; (c) for conversion into by-products; or (d) directly to a destination in Mexico. No assessment shall be levied on grapefruit handled under the exemptions provided in this section. The committee may prescribe adequate safeguards to prevent grapefruit handled for the purposes designated in this section from entering commercial fresh fruit channels of trade contrary to the provisions of this subpart. The term "by-products" as used in this section includes all processed and manufactured products of grapefruit, including canned or bottled grapefruit or grapefruit juices.

18. Delete the provisions of § 955.71 and substitute in lieu thereof the following:

§ 995.71 *Compliance.* Except as provided in this subpart, no handler shall handle any variety of grapefruit, the handling of which has been prohibited by the Secretary in accordance with the provisions of this subpart; and no handler shall handle any variety of grapefruit except in conformity with the provisions of this subpart.

Dated: March 20, 1958.

[SEAL] ORIS V. WELLS,
Administrator,
Agricultural Marketing Service.

[F. R. Doc. 58-2189; Filed, Mar. 24, 1958; 8:49 a. m.]

[7 CFR Part 1003]

[Docket No. AO 269-A1]

DOMESTIC DATES PRODUCED OR PACKED IN LOS ANGELES AND RIVERSIDE COUNTIES, CALIF.

NOTICE OF HEARING WITH RESPECT TO PROPOSED AMENDMENT OF MARKETING AGREEMENT AND ORDER

Pursuant to the applicable provisions of the Agricultural Marketing Agreement Act of 1937, as amended (48 Stat. 31, as amended; 7 U. S. C. 601 et seq.), and in accordance with the applicable rules of practice and procedure governing proceedings to formulate marketing agreement and orders (7 CFR Part 900), notice is hereby given of a public hearing to be held in the Coachella Valley County Water Office, Coachella, California, beginning at 9:30 a. m., P. s. t., April 10, 1958, with respect to a proposed amendment of Marketing Agreement No. 127 and Order No. 103 (7 CFR Part 1003), hereinafter referred to as the "marketing agreement" and "order", respectively, regulating handling of domestic dates produced or packed in Los Angeles and Riverside Counties of California. The proposals have not received the approval of the Secretary of Agriculture.

The public hearing is for the purpose of receiving evidence with respect to the proposals which are hereinafter set forth, or appropriate modifications thereof.

The following have been proposed by the Date Administrative Committee, the administrative agency for conducting operations under the marketing agreement and order:

1. Insert in § 1003.4 ", Orange, San Bernardino," between the words "Riverside" and "and."

2. Insert in § 1003.9 the phrase, "or the movement of dates by a handler to storage for his account within the area of production" between the words "production" and "shall."

3. Delete from § 1003.11 the words "the quantity of marketable" and insert, in lieu thereof, the words "the aggregate quantity of whole dates and pitted."

4. Delete from § 1003.12 the phrase, "minimum grade permitted to be handled by the regulations imposed by this part," and insert, in lieu thereof, the phrase, "applicable minimum grade effective pursuant to § 1003.39 and additional requirements as may be effective for restricted dates of any variety pursuant to § 1003.40."

5. Add a new § 1003.15 as follows:

§ 1003.15 *Substandard dates.* "Substandard dates" means those dates which are not marketable dates.

6. Renumber § 1003.15 as §1003.16

7. Renumber § 1003.16 as § 1003.17

8. Renumber § 1003.17 as § 1003.18 and insert therein ", Orange, San Bernardino," between the words "Los Angeles" and "and."

9. Delete §§ 1003.21, 1003.22, 1003.23 and 1003.24 and insert, in lieu thereof, the following:

§ 1003.21 *Establishment of Date Administrative Committee.* A Date Administrative Committee, composed of the number of members determined pursuant to § 1003.22 with an alternate member for each such member, is hereby established to administer the terms and conditions of this part.

§ 1003.22 *Membership representation.* Members and alternate members for the 1958–59 season and until such time as a realignment of the committee membership is effected shall be selected by the Secretary from each of the following groups and on the following basis:

(a) One to represent handlers, each producing at least 51 percent of the volume handled by him and producers, each delivering at least 50 percent of his handler deliveries to such handlers.

(b) Three to represent cooperative handlers of which one is to represent such handlers and two are to represent the producer members of the cooperative handlers.

(c) Three to represent all other producers and handlers of which two are to represent the other handlers and one is to represent the producers, each delivering at least 50 percent of his handler deliveries to such other handlers.

The foregoing representation is based on each member representing approximately 14.28 percent of the tonnage handled. Whenever the Secretary finds that any change in tonnage handled in any such group is equivalent to more than one-half the tonnage necessary for a member, he shall so notify the committee and thereafter nominations and selections of members and alternates in that group shall be on such new basis as the Secretary may determine: *Provided,* That each group shall be entitled to at least one member and alternate. Any increase or decrease of representation of a group shall not be dependent upon a change in membership representation of any other group nor shall any increase or decrease in the total members on the committee change the percentage basis herein established for tonnage representation for members in all groups. Except for the group in paragraph (c), any change in the nomination and selection of members for any group shall be made so as to keep producer members and handler members in balance insofar as possible.

§ 1003.23 *Term of office.* The members and alternate members shall serve until May 15 of each year; and if eligible, each such member and alternate shall continue to serve until his respective successors has been selected and has qualified.

§ 1003.24 *Nominations.* Each group specified in § 1003.22 may nominate members and alternates for such members at nomination meetings, to be held on or before April 15 of each year. At such meetings each producer and each producer-handler casting a vote in the nomination of the member and alternate in the group in paragraph (a) shall be entitled to one vote, for each position to be filled. Each handler (including cooperative handlers) casting a vote in the nominations of the handler members and alternates in the groups in paragraphs (b) and (c) or for cooperative producer members in the group in paragraph (b) shall be entitled to one vote for each position to be filled except that each vote shall be weighted by the tonnage of dates acquired from producers and certified for handling through February 28 of the then current crop year. Each producer casting a vote for the nomination of the producer member and the alternate producer member in the group in paragraph (c) shall be entitled to one vote for each position to be filled for each 100,000 pounds, or fraction thereof, of dates produced and delivered by him to handlers in the group in paragraph (c) by February 28 of the then current crop year. No person may vote for the members and alternate members in other than his respective group. The individual receiving the highest number of votes shall be the nominee. Immediately after the completion of such meetings the committee shall report to the Secretary the nominees for each position together with a certificate of all necessary tonnage data and other information deemed by the committee to be pertinent or which is requested by the Secretary. In the event nominations for any position on the committee are not received within a reasonable time, the Secretary may select members or their alternates without regard to nominations but such selections shall be on the basis prescribed in § 1003.22.

10. Delete from § 1003.31 the second and third sentences and insert, in lieu thereof, the following two sentences: "All decisions of the committee shall be by an affirmative vote of at least two-thirds (in case of fractional numbers, rounded to the nearest whole number) of the members of the committee. The presence of two-thirds (in case of fractional numbers, rounded to the nearest whole number) of the members of the committee shall be required to constitute a quorum."

11. Delete from § 1003.39 the first sentence and insert, in lieu thereof, the following sentence: "In order to effectuate the declared policy of the act all whole and pitted dates handled under this subpart shall meet the requirements of U. S. Grade C or, if for further processing, U. S. Grade C (Dry), of the effective United States Standards for Grades of Dates: *Provided,* That the Secretary may, upon recommendation of the committee, prescribe other minimum standards of quality."

12. Delete from § 1003.39 the last sentence and insert, in lieu thereof, the following two sentences: "Notice of the minimum standard regulation shall be sent by the committee to all handlers of record. No handler shall handle dates except in accordance with such minimum standards."

13. Delete § 1003.40 and insert, in lieu thereof, the following:

§ 1003.40 *Additional grade or size regulations.* Whenever the committee deems it advisable to establish grade or size regulations for any variety in addition to those provided by the minimum standards pursuant to § 1003.39, to govern shipments of dates or dates eligible for restricted obligation, it shall recommend to the Secretary controls based on

the effective United States Standards for Grades of Dates or any modification thereof. If the Secretary finds, upon the basis of such recommendation or other information available to him, that such additional grade or size regulations, or both, will tend to effectuate the declared policy of the act he shall establish such regulations. Notice thereof, showing the effective date, shall be sent by the committee to all handlers of record. No handler shall handle dates except in accordance with such grade and/or size regulations and other requirements of this part.

14. Insert in § 1003.41 (a) the words "and size" between the words "grade" and "regulations."

15. Delete § 1003.41 (b) and insert, in lieu thereof, the following:

(b) *Dates for further processing.* Prior to each shipment of dates for further processing each handler shall, at his own expense, cause an inspection and certification to be made that the dates so shipped by him meet the applicable requirements effective pursuant to §§ 1003.39 and 1003.40, except for character associated with moisture: *Provided,* That this inspection and certification requirement shall not apply to interhandler transfers within the area of production of field run or graded dates.

16. Consider what rights or obligations under the marketing agreement and order should arise upon a certification for handling or for further processing. Specifically, delete from § 1003.45 (a) the first sentence and insert, in lieu thereof, the following sentence: "Whenever a regulation has been established for a crop year by the Secretary in accordance with § 1003.44, each handler, before or upon shipping dates or certifying dates for handling or further processing shall have withheld from shipment a quantity of marketable dates of the same variety, or their equivalent in graded dates, having a weight equal to the restricted percentage referable to such shipment or certification."

17. Insert after § 1003.45 (b) a new paragraph (c) as follows:

(c) A handler, on request to the committee and with its approval, may, as provided in this paragraph and pursuant to rules and regulations prescribed by the committee with the approval of the Secretary, pledge graded dates or field run dates with the committee with respect to any of such handler's deferred restricted obligations. Any dates so pledged shall be in such amount as will assure a quantity of dates equal at least to the applicable requirements effective for restricted dates pursuant to §§ 1003.39 and 1003.40 and equal to the quantity of such deferred restricted obligation. Any dates so pledged shall be owned by such handler, free and clear of all incumbrances. In pledging such dates, the handler shall agree in writing that they will be held separate from other dates, that they will be maintained in the same condition as when pledged, that inspection by the committee will be permitted at any reasonable time, and that in case of default, the committee is authorized to sell the pledged dates, and that the handler will surrender to the committee pledged dates to the extent necessary to cover the default. The committee shall dispose of any pledged dates which it receives at the best price obtainable and after deducting the necessary costs incurred in connection with the default and disposition, shall pay the remainder of the amount received to the defaulting handler. Any such dates that are field run dates shall be graded, or disposed of in accordance with paragraph (d) of this section by March 31 of the then current crop year."

18. Insert after new § 1003.45 (c) a new paragraph (d) as follows:

(d) A handler on request to the committee and with its approval may meet his restricted obligation by disposing of field run dates in the cull outlets prescribed by § 1003.56. Upon disposal such handler shall be credited with satisfaction of his restricted obligations to the extent of the dates meeting the applicable minimum grade and size for restricted dates. The disposition, and crediting for restricted obligations, shall be pursuant to rules and regulations prescribed by the committee with the approval of the Secretary.

19. Reletter existing paragraphs (c) and (d) of § 1003.45 as paragraphs (e) and (f), respectively.

20. Add a new § 1003.48 as follows:

§ 1003.48 *Container regulation.* Whenever the committee deems it advisable to establish a container regulation for any variety of dates, it shall recommend to the Secretary a method for fixing the size, capacity, weight, dimensions, or pack of the container, or containers, which may be used in the handling or packaging of dates, or both. If the Secretary finds upon the basis of such recommendation or other information available to him that such container regulation would tend to effectuate the declared policy of the act he shall establish such regulation and notice thereof showing the effective date shall be sent by the committee to all handlers of record. After the effective date of such regulation no handler shall handle dates of such variety that are not packed in accordance with such regulation.

21. Delete from § 1003.51 the first sentence and insert, in lieu thereof, the following: "Transfers of dates may be made from one handler to another and the committee shall be notified immediately upon the completion of such transfers."

22. Delete §§ 1003.55, 1003.56 and 1003.57 and insert, in lieu thereof, the following:

§ 1003.55 *Outlets for restricted dates.* Restricted dates and any certified dates of like or better quality may be disposed of only through exportation to such countries as the committee may approve or by diversion in such form as rings, chunks, pieces, butter, macerated, or paste, or any other products which the committee concludes to be appropriate and which will result in the dates moving into consumption in a form other than that of whole or pitted dates.

§ 1003.56 *Outlets for substandard and cull dates.* Substandard dates may be disposed of only in feed, non-table syrup, alcohol, brandy, or such other outlets as the committee concludes are non-competitive with the outlets for free and restricted dates. Disposition of cull dates shall be limited to products not destined for human consumption as food.

§ 1003.57 *Approval of manufacturers for diversion of restricted, substandard, and cull dates.* Any diversion, pursuant to § 1003.55 or § 1003.56, of restricted, substandard, or cull dates shall be accomplished by manufacturers (which may include handlers) approved by the committee. The approval by the committee of any such manufacturers shall be in accordance with rules, regulations, and safeguards prescribed by the committee pursuant to § 1003.58 (proposed to be renumbered as § 1003.59), including, but not being limited to, a provision that no such approval shall be given unless the manufacturer agrees in writing to furnish to the committee the information required pursuant to § 1003.65 (identified as proposal 26) to be submitted by approved manufacturers of date products.

§ 1003.58 *Terminal dates.* Dates covered by §§ 1003.55 and 1003.56 shall

(a) Be disposed of or diverted, or

(b) Be converted from their whole or pitted form or firmly committed to disposition in the prescribed outlets,

by September 30 of the subsequent crop year. The committee may prescribe, with the approval of the Secretary, such rules and regulations as are needed to assure the disposition of such dates.

23. Renumber existing § 1003.58 as § 1003.59.

24. Delete § 1003.61 and insert, in lieu thereof, the following:

§ 1003.61 *Reports of handler carryover.* Each handler shall file with the committee written reports of his carryover of dates as of January 1, June 1, and August 1 of any crop year and at such other times as the committee may prescribe. Such reports shall be filed within 15 days of the respective dates.

25. Delete § 1003.64 and insert, in lieu thereof, the following:

§ 1003.64 *Reports on disposition of restricted, substandard and cull dates.* Each handler disposing of any quantity of restricted, substandard, or cull dates held by him shall report such disposition to the committee immediately thereafter in such form as the committee may prescribe.

26. Add a new § 1003.65 as follows:

§ 1003.65 *Reports by approved manufacturers of date products.* Each approved manufacturer of date products shall submit to the committee in such form and at such intervals as the committee may prescribe reports showing with respect to particular periods: The net weight of restricted dates acquired from handlers; the quantity of such

dates held by the manufacturer; the quantity of restricted dates utilized in the manufacture of date products, identifying such products; the quantities of the respective date products sold by the manufacturer; and such other pertinent information as the committee may specify.

27. Renumber § 1003.65 as § 1003.66.
28. Renumber § 1003.66 as § 1003.67.
29. Renumber § 1003.67 as § 1003.68.
30. Renumber § 1003.68 as § 1003.69.
31. Delete from § 1003.72 the fourth sentence.
32. Delete § 1003.74 and insert, in lieu thereof, the following:

§ 1003.74 *Refunds.* Excess funds held by the committee at the conclusion of a crop year may be used to defray expenses for no more than the ensuing four months and thereafter, within a reasonable time, the committee shall credit or, upon demand, refund the aforesaid excess to each handler. Each handler's share of such excess funds shall be the amount he paid (as assessments) in excess of his actual pro rata share of the expenses of the committee.

33. Make such other changes in the marketing agreement and order as may be necessary to make the entire marketing agreement and order conform with any amendment thereto which may result from this hearing.

Copies of this notice of hearing may be obtained from the offices of the Date Administrative Committee, Room 112, 82-845 Miles Avenue, Indio, California; the Hearing Clerk, United States Department of Agriculture, Room 112, Administration Building, Washington, D. C.; or the Western Marketing Field Office, Fruit and Vegetable Division, AMS, USDA, 1031 South Broadway, Room 1005, Los Angeles 15, California.

Dated: March 20, 1958.

[SEAL] ORIS V. WELLS,
Administrator,
Agricultural Marketing Service.

[F. R. Doc. 58-2188; Filed, Mar. 24, 1958; 8:49 a. m.]

CIVIL AERONAUTICS BOARD

[14 CFR Parts 18, 42, 43]

[Draft Release 58-5]

APPLICATION OF MINIMUM PERFORMANCE STANDARDS FOR ELECTRONIC EQUIPMENT TO ALL AIRCRAFT OPERATING UNDER IFR WEATHER CONDITIONS

NOTICE OF PROPOSED RULE MAKING

Pursuant to authority delegated by the Civil Aeronautics Board to the Bureau of Safety, notice is hereby given that the Bureau will propose to the Board the adoption of amendments to Parts 18, 42, and 43 of the Civil Air Regulations as hereinafter set forth.

Interested persons may participate in the making of the proposed rules by submitting such written data, views, or arguments as they may desire. Communications should be submitted in duplicate to the Civil Aeronautics Board, attention Bureau of Safety, Washington 25, D. C. In order to insure their consideration by the Board before taking further action on the proposed rules, communications must be received by May 26, 1958. Copies of such communications will be available after May 28, 1958, for examination by interested persons at the Docket Section of the Board, Room 5412, Department of Commerce Building, Washington, D. C.

Aircraft operated under Part 40 of the Civil Air Regulations are required to carry electronic radio communication and navigational equipment which has been approved by the Administrator. All Part 41 operators are required to have approved electronic radio communication and navigational equipment by the provisions of their operation specifications. Maintenance of this equipment is accomplished by methods and facilities approved by the Administrator. Present Part 42 requires all large aircraft to carry approved radio communication and navigational equipment but requires small aircraft to carry two-way radio communication and navigational equipment appropriate to the ground facilities to be used only when operated under instrument flight rules. Present Part 43 requires only aircraft operating under instrument flight rules to carry two-way radio communication and navigational equipment.

There are no minimum standards of performance for radio or navigational equipment which is used in small aircraft operated under Part 42 or for any aircraft operated under Part 43, other than for VOR equipment. Maintenance, repair, and alteration of this radio communication and navigational equipment may be accomplished by any aircraft mechanic with an airframe rating or any other person working under his supervision.

Aircraft engaged in IFR flight under the provisions for small aircraft in Part 42 and all aircraft engaged in IFR flight under Part 43 utilize the same airways which are used by Part 40 and Part 41 aircraft and large aircraft under Part 42. It is essential, therefore, that reasonable insurance exist that aircraft will be so equipped that the pilot can accurately determine his position in order to permit effective air traffic control. This can best be accomplished by requiring that electronic radio communication and navigational equipment used in these operations be approved by the Administrator, meet uniform standards of performance, and be in proper operating order.

The CAA has recommended that all electronic radio communication and navigational equipment used in IFR operations be approved by the Administrator as to minimum performance standards and that all major repairs and alterations made to such equipment be performed by a certificated radio repair station.

The standards for approved electronic equipment used in Part 40 and Part 41 operations and for large aircraft operated under Part 42 are found in the Technical Standard Orders of the Administrator of Civil Aeronautics. These standards were formulated and developed by a special committee of the Radio Technical Committee for Aeronautics (RTCA). RTCA is composed of government and industry representatives, including manufacturers, operational agencies, regulating agencies, and the military, and constitutes a forum of experts in this field. It is proposed that these same Technical Standard Orders be made applicable to all electronic radio communication and navigational equipment used while operating under instrument flight rules. However, some reduction in the operating temperature requirements for equipment used by small aircraft operating under Part 42 and aircraft operated under Part 43 would be made.

The Bureau is aware that a fair and equitable period will be required for the replacement or modification of the unapproved equipment prior to the effective date of a mandatory requirement for such approved equipment. It is the Bureau's opinion that a period of 2 years from the date of adoption of such an amendment would provide a fair and reasonable period of time for such replacement or modification.

Part 18 of the Civil Air Regulations contains rules governing the maintenance and repair of airframes, powerplants, propellers, and appliances. Section 18.1 "Definitions," does not contain a specific definition of "radio." The only reference to such equipment is found in the definition sections of Parts 52 and 53 of the Civil Air Regulations which contain the provisions and requirements for repair station certificates and mechanic school certificates, respectively. In order to more clearly define those electronic devices which come under the purview of electronic radio communication and navigational equipment, it is proposed to expressly define "radio" in the definition section of Part 18.

Section 18.10 of Part 18 currently permits a certificated mechanic or a person working under the direct supervision of such a mechanic to perform maintenance, repair, and alterations to aircraft, aircraft components, and related appliances appropriate to the mechanic's certificate and rating. During the revision of Parts 18, 24, 52, and 53 of the Civil Air Regulations in 1952, it was recognized that although provisions for the certification of radio repair stations were made in Part 52, it would be some time before such repair stations could be certificated in sufficient numbers to adequately serve the industry. Therefore, from 1952 to the present date, maintenance, repair, and alteration of electronic radio communication and navigational equipment have been authorized by persons holding an aircraft mechanic certificate with an airframe rating or persons working under the supervision of such a mechanic. In reviewing this situation, we have been advised by the Administrator that there presently exist in strategic places sufficient numbers of certificated repair stations to approve major repairs to this equipment.

In view of advanced designs and the highly technical aspects of present-day electronic radio communication and navigational equipment, instruments, equipment, and technical knowledge for

proper maintenance and repair are required which are beyond the capabilities of an individual mechanic. It is proposed, therefore, to amend § 18.10 so as to require all major repairs or alterations and any installation of such equipment to be performed by a certificated radio repair station.

The Bureau recognizes the problems which would be inherent in any regulation which would require that all maintenance or repairs to electronic radio communication and navigational equipment be accomplished by a certificated radio repair station. It is the Bureau's opinion, therefore, that all major repairs or alterations of electronic radio communication and navigational equipment required for IFR operations should be accomplished by a certificated radio repair station. The proposed amendment, therefore, would apply only to installation, major repairs, and alterations; other maintenance, repairs, or alterations of a minor nature could still be accomplished by a certificated aircraft mechanic with an airframe rating or other person working under his supervision, as provided for in Part 18.

In view of the foregoing, notice is hereby given that the Bureau proposes to recommend to the Board that Parts 18, 42, and 43 of the Civil Air Regulations be amended as follows:

1. By amending § 18.1 of Part 18 by adding the following new definition:

§ 18.1 *Definitions.* * * *

Radio. Radio means an appliance and related apparatus for the transmission and/or reception of radio signals, including electronic appliances used for intercommunication.

2. By amending § 18.10 (a) by adding the words "and radios" after the word "propellers".

3. By amending § 42.21 (c) (2) of Part 42 by adding the word "Approved" at the beginning thereof.

4. By amending § 43.30 (c) (2) of Part 43 by adding the word "Approved" at the beginning thereof.

These amendments are proposed under the authority of Title VI of the Civil Aeronautics Act of 1938, as amended. The proposals may be changed in the light of comment received in response to this notice of proposed rule making.

(Sec. 205, 52 Stat. 984; 49 U. S. C. 425. Interpret or apply secs. 601–610, 52 Stat. 1007, 1012, as amended; 49 U. S. C. 551–560)

Dated at Washington, D. C., March 17, 1958.

By the Bureau of Safety.

[SEAL] OSCAR BAKKE, *Director.*

[F. R. Doc. 58-2186; Filed, Mar. 24, 1958; 8:49 a. m.]

INTERSTATE COMMERCE COMMISSION

[49 CFR Part 193]

[Ex Parte MC-40]

PARTS AND ACCESSORIES NECESSARY FOR SAFE OPERATION

WARNING DEVICES AND GAUGES

At a general session of the Interstate Commerce Commission, held at its office in Washington, D. C., on the 14th day of March A. D. 1958.

The matter of parts and accessories necessary for safe operation under the Motor Carrier Safety Regulations prescribed by order of April 14, 1952, as amended, being under consideration; and

It appearing that continuing study and investigation has established facts which warrant some amendment of § 193.51 of said regulations relating to brake warning signal devices; and good cause appearing therefor:

It is ordered, That pursuant to section 4 (a) of the Administrative Procedure Act (60 Stat. 237, 5 U. S. C. 1003), notice is hereby given of the Commission's proposal to amend § 193.51 of the Motor Carrier Safety Regulations, *Warning devices*, adopted April 14, 1952, as amended. (49 CFR Part 193), (49 Stat. 546, as amended, 49 U. S. C. 304) by substituting the following rule in lieu of the rule now in effect.

§ 193.51 *Warning devices and gauges.* Every powered motor vehicle using compressed air or vacuum for the operation of its own brakes or the brakes on any towed vehicle shall be equipped with a warning signal readily audible or visible to the driver which will operate at and below one-half the compressor governor cut-out pressure for air brakes and a warning signal readily audible or visible to the driver which will operate at and below 10 inches of mercury for vacuum brakes provided that a single signal may be arranged to serve both purposes where desired. In addition, each such vehicle shall be equipped with a pressure gauge arranged to indicate the pressure available for braking in pounds per square inch for air brakes and with a vacuum gauge arranged to indicate the vacuum available for braking in inches of mercury for vacuum brakes, which gauges shall be maintained in operative condition.

It is further ordered, That interested persons may on or before May 12, 1958, submit written statements containing data, views, or arguments, verified under oath by a person having knowledge of such data, views, or arguments, and that thereafter consideration will be given to the proposed amendments, or some revision thereof, in the light of the statements which may be submitted.

It is further ordered, That one signed copy and 14 additional copies of such statements be furnished for the use of the Commission by mailing to the Secretary of the Interstate Commerce Commission, Washington, D. C. No oral hearing is contemplated, but any request for such hearing shall be supported by an explanation as to why the evidence to be presented cannot reasonably be submitted in the form heretofore provided. The Commission thereafter will determine whether or not assignment of the matter for oral hearing is necessary or desirable.

And it is further ordered, That notice of this proposed rule modification shall be given to motor carriers, other persons of interest, and to the general public by depositing a copy thereof in the office of the Secretary of the Interstate Commerce Commission, Washington, D. C., and by filing a copy with the Director, Division of the Federal Register.

By the Commission.

[SEAL] HAROLD D. McCOY, *Secretary.*

[F. R. Doc. 58-2177; Filed, Mar. 24, 1958; 8:47 a. m.]

[49 CFR Part 193]

[Ex Parte MC-40]

PARTS AND ACCESSORIES NECESSARY FOR SAFE OPERATION

EXTENSION OF DATE FOR FILING STATEMENTS IN RESPONSE TO PROPOSAL TO VACATE AND SET ASIDE CERTAIN OF THE MOTOR CARRIER EMERGENCY EQUIPMENT REGULATIONS

Upon consideration of the record in the above-entitled proceeding, and request of the American Trucking Associations, Inc., for an extension of time within which to file statements in response to the order and notice of rule making, dated February 20, 1958; and good cause appearing therefor:

It is ordered, That the time within which such statements may be filed, be, and it is hereby, extended to April 15, 1958.

Dated at Washington, D. C., this 17th day of March A. D. 1958.

By the Commission, Chairman Freas.

[SEAL] HAROLD D. McCOY, *Secretary.*

[F. R. Doc. 58-2178; Filed, Mar. 24, 1958; 8:47 a. m.]

NOTICES

DEPARTMENT OF THE TREASURY

United States Coast Guard

[CGFR 58-7]

APPROVAL AND TERMINATION OF APPROVAL OF EQUIPMENT, INSTALLATIONS, OR MATERIALS; AND CHANGE IN ADDRESS OF MANUFACTURER

1. Various items of lifesaving, firefighting, and miscellaneous equipment, installations, and materials used on merchant vessels subject to Coast Guard inspection or on certain motorboats and other pleasure craft are required by law and various regulations in 46 CFR Chapter I to be of types approved by the Commandant, United States Coast Guard. The procedures governing the granting of approvals and termination of approvals are set forth in 46 CFR 2.75–1 to 2.75–50, inclusive. For certain types of equipment, installations, and materials specifications have been also prescribed by the Commandant and are published in 46 CFR Parts 160 to 164, inclusive (Subchapter Q—Specifications).

2. By virtue of the authority vested in me as Commandant, United States Coast Guard, by Treasury Department Order Nos. 120, dated July 31, 1950 (15 F. R. 6521), 167–14, dated November 26, 1954 (19 F. R. 8026), 167–20, dated June 18, 1956 (21 F. R. 4894), and CGFR 56–28, dated July 24, 1956 (21 F. R. 5659), and R. S. 4405, as amended, 4462, as amended, 4491, as amended, sections 1, 2, 49 Stat. 1544, as amended, section 17, 54 Stat. 166, as amended, and section 3, 54 Stat. 346, as amended, section 3, 70 Stat. 152 (46 U. S. C. 405, 416, 489, 367, 526p, 1333, 390b), and section 3 (c) of the act of August 9, 1954 (50 U. S. C. 198), and implementing regulations in 46 CFR Chapter I: *It is ordered*, That:

a. All the approvals listed in Part I of this document which extend approvals previously published in the FEDERAL REGISTER are prescribed and shall be in effect for a period of five years from their respective dates as indicated at the end of each approval, unless sooner canceled or suspended by proper authority; and

b. All the other approvals listed in Part I of this document (which are not covered by paragraph a above) are prescribed and shall be in effect for a period of five years from the date of publication of this document in the FEDERAL REGISTER, unless sooner canceled or suspended by proper authority; and

c. All the approvals listed in Part II of this document are terminated because (1) the manufacturer is no longer in business; or (2) the manufacturer does not desire to retain the approval; or (3) the item is no longer being manufactured; or (4) the item of equipment no longer complies with present Coast Guard requirements; or (5) the approval has expired. Except for those approvals which have expired, all other terminations of approvals made by this document shall be made effective upon the thirty-first day after the date of publication of this document in the FEDERAL REGISTER. Notwithstanding this termination of approval of any item of equipment as listed in Part II of this document, such equipment in service may be continued in use so long as such equipment is in good and serviceable condition.

d. The change in address of the manufacturer of approved equipment shall be made as indicated in Part III of this document.

PART I—APPROVALS OF EQUIPMENT, INSTALLATIONS OR MATERIALS

LIFE PRESERVERS, BALSA WOOD, ADULT AND CHILD (JACKET TYPE) MODELS 42 AND 46

Approval No. 160.004/17/0, Model 42, adult balsa wood life preserver, U. S. C. G. Specification Subpart 160.004, manufactured by The Peoples Co., 712 Buffington Street, Huntington 2, W. Va.

Approval No. 160.004/18/0, Model 46, child balsa wood life preserver, U. S. C. G. Specification Subpart 160.004, manufactured by The Peoples Co., 712 Buffington Street, Huntington 2, W. Va.

BUOYANT APPARATUS

Approval No. 160.010/25/0, 6.0' x 4.0' x 0.83' buoyant apparatus, wood decking with expanded polystyrene foam core, 20-person capacity, dwg. No. G–490 dated June 1957, manufactured by C. C. Galbraith & Son, Inc., 99 Park Place, New York 7, N. Y.

GAS MASKS, SELF-CONTAINED BREATHING APPARATUS, AND SUPPLIED-AIR RESPIRATORS

Approval No. 160.011/25/0, Davis Universal Gas Mask No. BM–1448, Bureau of Mines Approval No. BM–1448, consisting of BM–1448 canister, BM–1448 timer, BM–1448 canister harness, and BM–1408F facepiece, manufactured by Davis Emergency Equipment Co., Inc., 45 Halleck Street, Newark 4, N. J. (Extension of the approval published in FEDERAL REGISTER February 18, 1953, effective February 18, 1958.)

WINCHES, LIFEBOAT

Approval No. 160.015/70/0, Type H–68RA lifeboat winch for use with mechanical davits, fitted with wire rope not more than ½ inch in diameter and with not more than 7 wraps of the falls on the drums, approved for a maximum working load of 6,800 pounds pull at the drums (3,400 pounds per fall), identified by general arrangement dwg. No. 80115 dated September 15, 1956, and revised January 21, 1958, manufactured by Welin Davit and Boat Division of Continental Copper & Steel Industries, Inc., Perth Amboy, N. J.

Approval No. 160.015/72/0, Type B–135–H lifeboat winch with wire ropes having horizontal lead from bottom drum, approval is limited to mechanical components only and for a maximum working load of 13,500 pounds pull at the drums (6,750 pounds per fall), identified by general arrangement dwg. No. 2105–16 dated August 3, 1956, and revised November 12, 1957, manufactured by Welin Davit and Boat Division of Continental Copper & Steel Industries, Inc., Perth Amboy, N. J.

Approval No. 160.015/74/0, Type B–135–H–E lifeboat winch for use with emergency lifeboat and with wire ropes having horizontal lead from bottom drum, approval is limited to mechanical components only and for a maximum working load of 9,000 pounds pull at the drums (4,500 pounds per fall), identified by general arrangement dwg. No. 80189 dated August 3, 1956, and revised November 15, 1957, manufactured by Welin Davit and Boat Division of Continental Copper & Steel Industries, Inc., Perth Amboy, N. J.

DAVITS, LIFEBOAT

Approval No. 160.032/136/0, mechanical davit, straight boom sheath screw, size B–7–0, approved for maximum working load of 5,000 pounds per set (2,500 pound per arm) using 4-part falls, identified by general arrangement dwg. No. 618 dated October 12, 1950, manufactured by C. C. Galbraith & Son, Inc., 99 Park Place, New York 7, N. Y. (Extension of the approval published in FEDERAL REGISTER February 18, 1953, effective February 18, 1958.)

Approval No. 160.032/152/0, Gravity davit, Type G–195–S, approved for a maximum working load of 19,500 pounds per set (9,750 pounds per arm) using 2-part falls, identified by sectional view dwg. No. 3630A dated October 24, 1957, manufactured by Welin Davit and Boat Division of Continental Copper & Steel Industries, Inc., Perth Amboy, N. J.

MECHANICAL DISENGAGING APPARATUS, LIFEBOAT

Approval No. 160.033/4/2, Rottmer type size C releasing gear, approved for maximum working load of 18,300 pounds per set (9,150 pounds per hook), identified by general arrangement dwg. No. 1498–5 dated January 8, 1951, and revised September 16, 1957, manufactured by C. C. Galbraith & Son, Inc., 99 Park Place, New York 7, N. Y. (Reinstates and supersedes Approval No. 160.033/4/1 terminated in FEDERAL REGISTER November 1, 1957.)

Approval No. 160.033/26/2, Rottmer type size 297 releasing gear, approved for a maximum working load of 40,570 pounds per set (20,285 pounds per hook), identified by assembly dwg. No. 60049 dated July 8, 1957, and revised December 2, 1957, manufactured by Welin Davit and Boat Division of Continental Copper & Steel Industries, Inc., Perth Amboy, N. J. (Reinstates and supersedes Approval No. 160.033/26/1 terminated in FEDERAL REGISTER November 1, 1957.)

LIFEBOATS

Approval No. 160.035/35/2, 18.0' x 5.83' x 2.58' steel, oar-propelled lifeboat, 16-person capacity, identified by construction and arrangement dwg. No. 2940 dated July 21, 1952, and revised February 7, 1958, manufactured by Welin Davit and Boat Division of Continental

Copper & Steel Industries, Inc., Perth Amboy, N. J. (Supersedes Approval No. 160.035/35/1 published in FEDERAL REGISTER February 18, 1953.)

Approval No. 160.035/213/2, 12.0' x 4.4' x 1.9' steel, oar-propelled lifeboat, 6-person capacity, identified by general arrangement dwg. No. G-1206-S dated November 29, 1957, manufactured by C. C. Galbraith & Sons, Inc., 99 Park Place, New York 7, N. Y. (Reinstates and supersedes Approval No. 160.035/213/1 terminated in FEDERAL REGISTER November 1, 1957.)

Approval No. 160.035/236/1, 16.0' x 5.8' x 2.42' steel, oar-propelled lifeboat, 13-person capacity, identified by general arrangement dwg. No. G-1613 dated April 28, 1952, and revised January 30, 1958, manufactured by C. C. Galbraith & Son, Inc., 99 Park Place, New York 7, N. Y. (Reinstates and supersedes Approval No. 160.035/236/0 terminated in FEDERAL REGISTER November 1, 1957.)

Approval No. 160.035/285/1, 18.0' x 5.75' x 2.42' aluminum, oar-propelled lifeboat, 16-person capacity, identified by construction and arrangement dwg. No. 18-4 dated October 24, 1951, revised September 25, 1957, manufactured by Marine Safety Equipment Corp., Point Pleasant, N. J. (Reinstates and supersedes Approval No. 160.035/285/0 terminated in FEDERAL REGISTER November 1, 1957.)

Approval No. 160.035/306/0, 16.0' x 5.7' x 2.3' aluminum, oar-propelled lifeboat, 12-person capacity, identified by general arrangement and construction dwg. No. 53-1612 dated February 3, 1953, and revised January 30, 1958, manufactured by Lane Lifeboat and Davit Corp., 8920 26th Avenue, Brooklyn 14, N. Y.

Approval No. 160.035/365/0, 37.0' x 13.0' x 5.33' steel, hand-propelled lifeboat, 150-person capacity, identified by construction and arrangement dwg. No. 80136 dated March 22, 1957, and revised January 8, 1958, manufactured by Welin Davit and Boat Division of Continental Copper & Steel Industries, Inc., Perth Amboy, N. J.

Approval No. 160.035/367/0, 24.0' x 7.0' x 3.0' aluminum, oar-propelled lifeboat, 30-person capacity, identified by construction and arrangement dwg. No. 80137 dated December 5, 1956, and revised December 27, 1957, manufactured by Welin Davit and Boat Division of Continental Copper & Steel Industries, Inc., Perth Amboy, N. J.

KITS, FIRST-AID

Approval No. 160.041/5/0, First-aid Kit, Model G-12, assembly dwg. No. B-12596 dated September 9, 1952, manufactured by Mine Safety Appliances Co., 201 North Braddock Avenue, Pittsburgh 8, Pa. (Extension of the approval published in FEDERAL REGISTER February 18, 1953, effective February 18, 1958.)

BUOYANT VESTS, KAPOK OR FIBROUS GLASS, ADULT AND CHILD MODELS AK, CKM, CKS, AF, CFM, AND CFS

NOTE: Approved for use on motorboats of Classes A, 1, or 2 not carrying passengers for hire.

Approval No. 160.047/73/0, Model AK, adult kapok buoyant vest, U. S. C. G. Specification Subpart 160.047, manufactured by Karbin Products, 715-17 Pulaski Road, Chicago 24, Ill.

Approval No. 160.047/74/0, Model CKM, child kapok buoyant vest, U. S. C. G. Specification Subpart 160.047, manufactured by Karbin Products, 715-17 Pulaski Road, Chicago 24, Ill.

Approval No. 160.047/75/0, Model CKS, child kapok buoyant vest, U. S. C. G. Specification Subpart 160.047, manufactured by Karbin Products, 715-17 Pulaski Road, Chicago 24, Ill.

Approval No. 160.047/159/0, Model AK, adult kapok buoyant vest, U. S. C. G. Specification Subpart 160.047, manufactured by Merit Manufacturing Corp., 92-15 172d Street, Jamaica 3, N. Y., for Empire Athletic Supply Co., Inc., 443-445 Broadway, New York 13, N. Y.

Approval No. 160.047/160/0, Model CKM, child kapok buoyant vest, U. S. C. G. Specification Subpart 160.047, manufactured by Merit Manufacturing Corp., 92-15 172d Street, Jamaica 3, N. Y., for Empire Athletic Supply Co., Inc., 443-445 Broadway, New York 13, N. Y.

Approval No. 160.047/161/0, Model CKS, child kapok buoyant vest, U. S. C. G. Specification Subpart 160.047, manufactured by Merit Manufacturing Corp., 92-15 172d Street, Jamaica 3, N. Y., for Empire Athletic Supply Co., Inc., 443-445 Broadway, New York 13, N. Y.

Approval No. 160.047/162/0, Model AK, adult kapok buoyant vest, U. S. C. G. Specification Subpart 160.047, manufactured by Liberty Cork Co., Inc., 123 Whitehead Avenue, South River, N. J.

Approval No. 160.047/163/0, Model CKM, child kapok buoyant vest, U. S. C. G. Specification Subpart 160.047, manufactured by Liberty Cork Co., Inc., 123 Whitehead Avenue, South River, N. J.

Approval No. 160.047/164/0, Model CKS, child kapok buoyant vest, U. S. C. G. Specification Subpart 160.047, manufactured by Liberty Cork Co., Inc., 123 Whitehead Avenue, South River, N. J.

Approval No. 160.047/165/0, Model AK, adult kapok buoyant vest, U. S. C. G. Specification Subpart 160.047, manufactured by Ben-Sun Products Corp., 527 North Eighth Street, Philadelphia 23, Pa., for Flote-Rite Corp., Eighth and Spring Garden Streets, Philadelphia 23, Pa.

Approval No. 160.047/166/0, Model CKM, child kapok buoyant vest, U. S. C. G. Specification Subpart 160.047, manufactured by Ben-Sun Products Corp., 527 North Eighth Street, Philadelphia 23, Pa., for Flote-Rite Corp., Eighth and Spring Garden Streets, Philadelphia 23, Pa.

Approval No. 160.047/167/0, Model CKS, child kapok buoyant vest, U. S. C. G. Specification Subpart 160.047, manufactured by Ben-Sun Products Corp., 527 North Eighth Street, Philadelphia 23, Pa., for Flote-Rite Corp., Eighth and Spring Garden Streets, Philadelphia 23, Pa.

Approval No. 160.047/168/0, Model AK, adult kapok buoyant vest, U. S. C. G. Specification Subpart 160.047, manufactured by the Howard Zink Corp., 5550 Paramount Boulevard, Long Beach 5, Calif.

Approval No. 160.047/169/0, Model CKM, child kapok buoyant vest, U. S. C. G. Specification Subpart 160.047, manufactured by the Howard Zink Corp., 5550 Paramount Boulevard, Long Beach 5, Calif.

Approval No. 160.047/170/0, Model CKS, child kapok buoyant vest, U. S. C. G. Specification Subpart 160.047, manufactured by the Howard Zink Corp., 5550 Paramount Boulevard, Long Beach 5, Calif.

Approval No. 160.047/171/0, Model AK, adult kapok buoyant vest, U. S. C. G. Specification Subpart 160.047, manufactured by Merit Manufacturing Corp., 92-15 172d Street, Jamaica 3, N. Y., for Revere Supply Co., Inc., 30 Front Street, New York 4, N. Y.

Approval No. 160.047/172/0, Model CKM, child kapok buoyant vest, U. S. C. G. Specification Subpart 160.047, manufactured by Merit Manufacturing Corp., 92-15 172d Street, Jamaica 3, N. Y., for Revere Supply Co., Inc., 30 Front Street, New York 4, N. Y.

Approval No. 160.047/173/0, Model CKS, child kapok buoyant vest, U. S. C. G. Specification Subpart 160.047, manufactured by Merit Manufacturing Corp., 92-15 172d Street, Jamaica 3, N. Y., for Revere Supply Co., Inc., 30 Front Street, New York 4, N. Y.

Approval No. 160.047/174/0, Model AK, adult kapok buoyant vest, U. S. C. G. Specification Subpart 160.047, manufactured by Protection Products Co., Division of Ero Manufacturing Co., 2637 West Polk Street, Chicago, Ill.

Approval No. 160.047/175/0, Model CKM, child kapok bouyant vest, U. S. C. G. Specification Subpart 160.047, manufactured by Protection Products Co., Division of Ero Manufacturing Co., 2637 West Polk Street, Chicago, Ill.

Approval No. 160.047/176/0, Model CKS, child kapok buoyant vest, U. S. C. G. Specification Subpart 160.047, manufactured by Protection Products Co., Division of Ero Manufacturing Co., 2637 West Polk Street, Chicago, Ill.

Approval No. 160.047/181/0, Model AK, adult kapok buoyant vest, U. S. C. G. Specification Subpart 160.047, manufactured by the Safegard Corp., P. O. Box 66, Station B, Cincinnati 22, Ohio, for Harry Miller Co., 244 Atlantic Avenue, Boston, Mass.

Approval No. 160.047/182/0, Model CKM, child kapok buoyant vest, U. S. C. G. Specification Subpart 160.047, manufactured by the Safegard Corp., P. O. Box 66, Station B, Cincinnati 22, Ohio, for Harry Miller Co., 244 Atlantic Avenue, Boston, Mass.

Approval No. 160.047/183/0, Model CKS, child kapok buoyant vest, U. S. C./G. Specification Subpart 160.047, manufactured by the Safegard Corp., P. O. Box 66, Station B, Cincinnati 22, Ohio, for Harry Miller Co., 244 Atlantic Avenue, Boston, Mass.

Approval No. 160.047/187/0, Model AK, adult kapok buoyant vest, U. S. C. G. Specification Subpart 160.047, manufactured by Swan Products Co., Inc., 145-92 228th Street, Springfield Gardens 13, N. Y., for Boston Camping Distributor Co., Inc., 150 Oliver Street, Boston, Mass.

Approval No. 160.047/188/0, Model CKM, child kapok buoyant vest, U. S. C. G. Specification Subpart 160.047, manufactured by Swan Products Co.,

Inc., 145–92 228th Street, Springfield Gardens 13, N. Y., for Boston Camping Distributor Co., Inc., 150 Oliver Street, Boston, Mass.

Approval No. 160.047/189/0, Model CKS, child kapok buoyant vest, U. S. C. G. Specification Subpart 160.047, manufactured by Swan Products Co., Inc., 145–92 228th Street, Springfield Gardens 13, N. Y., for Boston Camping Distributor Co., Inc., 150 Oliver Street, Boston, Mass.

BUOYANT CUSHIONS, KAPOK OR FIBROUS GLASS

NOTE: Approved for use on motorboats of Classes A, 1, or 2 not carrying passengers for hire.

Approval No. 160.048/109/0, special approval for 15" x 15" x 2" rectangular kapok buoyant cushion, 20 oz. kapok, U. S. C. G. Specification Subpart 160.048, manufactured by Red Head Brand Co., 4311 Belmont Avenue, Chicago 41, Ill., for Southern Tackle Distributors, Inc., 4027 Northwest 24th Street, Miami 48, Fla.

Approval No. 160.048/110/0, group approval for rectangular or trapezoidal kapok buoyant cushions, U. S. C. G. Specification Subpart 160.048, sizes and weights of kapok filling to be as per Table 160.048–4 (c) (1) (i), manufactured by Merit Manufacturing Corp., 92–15 172d Street, Jamaica 3, N. Y., for Empire Athletic Supply Co., Inc., 443–445 Broadway, New York 13, N. Y.

Approval No. 160.048/111/0, special approval for 15" x 15" x 2" rectangular kapok buoyant cushion, 20 oz. kapok, U. S. C. G. Specification Subpart 160.048, manufactured by Ben-Sun Products Corp., 527 North Eighth Street, Philadelphia 23, Pa., for Flote-Rite Corp., Eighth and Spring Garden Streets, Philadelphia 23, Pa.

Approval No. 160.048/112/0, special approval for 15" x 15" x 2" rectangular kapok buoyant cushion, 20 oz. kapok, U. S. C. G. Specification Subpart 160.048, manufactured by Elvin Salow Co., 273–285 Congress Street, Boston 10, Mass., for Henry H. Smith & Co., 356 East Jefferson Avenue, Detroit 26, Mich.

Approval No. 160.048/113/0, group approval for rectangular or trapezoidal kapok buoyant cushions, U. S. C. G. Specification Subpart 160.048, sizes and weights of kapok filling to be as per Table 160.048–4 (c) (1) (i), manufactured by the Howard Zink Corp., 5550 Paramount Boulevard, Long Beach 5, Calif.

Approval No. 160.048/114/0, group approval for rectangular or trapezoidal kapok buoyant cushions, U. S. C. G. Specification Subpart 160.048, sizes and weights of kapok filling to be as per Table 160.048–4 (c) (1) (i), manufactured by Merit Manufacturing Corp., 92–15 172d Street, Jamaica 3, N. Y., for Revere Supply Co., Inc., 30 Front Street, New York 4, N. Y.

Approval No. 160.048/115/0, group approval for rectangular or trapezoidal kapok buoyant cushions, U. S. C. G. Specification Subpart 160.048, sizes and weights of kapok filling to be as per Table 160.048–4 (c) (1) (i), manufactured by B. T. Crump Co., Inc., 1310–1334 East Franklin Street, Richmond 13, Va.

Approval No. 160.048/116/0, special approval for 15" x 15" x 2" rectangular kapok buoyant cushion, 20 oz. kapok, U. S. C. G. Specification Subpart 160.048, manufactured by Elvin Salow Co., 273–285 Congress Street, Boston 10, Mass., for Harry Miller Co., 244 Atlantic Avenue, Boston, Mass.

Approval No. 160.048/117/0, group approval for rectangular or trapezoidal kapok buoyant cushions, U. S. C. G. Specification Subpart 160.048, sizes and weights of kapok filling to be as per Table 160.048–4 (c) (1) (i), manufactured by Protection Products Co., Division of Ero Manufacturing Co., 2637 West Polk Street, Chicago, Ill.

Approval No. 160.048/118/0, group approval for rectangular and trapezoidal kapok buoyant cushions, U. S. C. G. Specification Subpart 160.048, sizes and weights of kepok filling to be as per Table 160.048–4 (c) (1) (i), manufactured by Billy Boy Products, Inc., Quincy, Mich., for Sears, Roebuck & Co., 925 South Homan Avenue, Chicago 7, Ill.

Approval No. 160.048/120/0, group approval for rectangular and trapezoidal kapok buoyant cushions, U. S. C. G. Specification Subpart 160.048, sizes and weights of kapok filling to be as per Table 160.048–4 (c) (1) (i), manufactured by the Safegard Corp., P. O. Box 66, Station B, Cincinnati 22, Ohio, for Harry Miller Co., 244 Atlantic Avenue, Boston, Mass.

Approval No. 160.048/122/0, group approval for rectangular or trapezoidal kapok buoyant cushions, U. S. C. G. Specification Subpart 160.048, sizes and weights of kapok filling to be as per Table 160.048–4 (c) (1) (i), manufactured by Liberty Cork Co., Inc., 123 Whitehead Avenue, South River, N. J., for Max Mermelstein Distributing Co., 515 Main Street, Childs, Pa.

Approval No. 160.048/123/0, group approval for rectangular or trapezoidal kapok buoyant cushions, U. S. C. G. Specification Subpart 160.048, sizes and weights of kapok filling to be as per Table 160.048–4 (c) (1) (i), manufactured by Swan Products Co., Inc., 145–92 228th Street, Springfield Gardens 13, N. Y., for Boston Camping Distributor Co., Inc., 150 Oliver Street, Boston, Mass.

BUOYANT CUSHIONS, UNICELLULAR PLASTIC FOAM

NOTE: Approved for use on motorboats of Classes A, 1, or 2 not carrying passengers for hire.

Approval No. 160.049/19/0, group approval for rectangular and trapezoidal unicellular plastic foam buoyant cushions, U. S. C. G. Specification Subpart 160.049, sizes to be as per Table 160.049–4 (c) (1), manufactured by Crawford Manufacturing Co., Inc., Third and Decatur Streets, Richmond 12, Va.

Approval No. 160.049/20/0, group approval for rectangular and trapezoidal unicellular plastic foam buoyant cushions, U. S. C. G. Specification Subpart 160.049, sizes to be as per Table 160.049–4 (c) (1), manufactured by Goshen Cushion and Body Co., Goshen, Ind.

BUOYS, LIFE, RING, UNICELLULAR PLASTIC

Approval No. 160.050/7/0, 20-inch plastic ring life buoy, expanded polystyrene foam core with fibrous glass reinforced resin shell, specification dated December 6, 1957, and dwg. dated October 4, 1957, manufactured by The Plasti-Kraft Corp., 175 Peters Street SW., Atlanta 3, Ga. (Plant: Oldsmar, Fla.)

VALVES, SAFETY (POWER BOILERS)

Approval No. 162.001/71/1, Type 2399 carbon steel body pop safety valve, 300 p. s. i. maximum pressure, 650° F. maximum temperature, dwg. No. 2694–B–CG, dated April 25, 1946, approved for sizes 1½", 2", 2½", 3" and 4", manufactured by Farris Engineering Corp., Palisades Park, N. J. (Extension of the approval published in FEDERAL REGISTER February 18, 1953, effective February 18, 1958.)

Approval No. 162.001/72/1, Type 2575A carbon steel body pop safety valve, 300 p. s. i. maximum pressure for all sizes except 4" P 6", 250 p. s. i. for size 4" P 6", 650° F. maximum temperature, dwg. No. 1983–B–CG dated September 10, 1945, and revised November 7, 1952, approved for sizes 1½", 2" 2½", 3" and 4", manufactured by Farris Engineering Corp., Palisades Park, N. J. (Extension of the approval published in FEDERAL REGISTER February 18, 1953, effective February 18, 1958.)

Approval No. 162.001/73/1, Type 2575B carbon steel body pop safety valve, 300 p. s. i. maximum pressure for all sizes except 4" P 6", 250 p. s. i. for size 4" P 6", 750° F. maximum temperature, dwg. No. 1983–B–CG dated September 10, 1945, and revised November 7, 1952, approved for sizes 1½", 2", 2½", 3" and 4", manufactured by Farris Engineering Corp., Palisades Park, N. J. (Extension of the approval published in FEDERAL REGISTER February 18, 1953, effective February 18, 1958.)

Approval No. 162.001/74/1, Type 2575C alloy steel body pop safety valve, 300 p. s. i. maximum pressure for all sizes except 4" P 6", 250 p. s. i. for size 4" P 6", 900° F. maximum temperature, dwg. No. 1983–B–CG dated September 10, 1945, and revised November 7, 1952, approved for sizes 1½", 2", 2½", 3" and 4", manufactured by Farris Engineering Corp., Palisades Park, N. J. (Extension of the approval published in FEDERAL REGISTER February 18, 1953, effective February 18, 1958.)

Approval No. 162.001/75/1, Type 2576A carbon steel body pop safety valve, 450 p. s. i. maximum pressure for all sizes except 4" P 6", 350 p. s. i. for size 4" P 6", 650° F. maximum temperature, dwg. No. 1983–B–CG dated September 10, 1945, and revised November 7, 1952, approved for sizes 1½", 2", 2½", 3" and 4", manufactured by Farris Engineering Corp., Palisades Park, N. J. (Extension of the approval published in FEDERAL REGISTER February 18, 1953; effective February 18, 1958.)

Approval No. 162.001/76/1, Type 2576B carbon steel body pop safety valve, 450 p. s. i. maximum pressure for all sizes except 4" P 6", 350 p. s. i. for size 4" P 6", 750° F. maximum temperature, dwg. No. 1983–B–CG dated September 10,

1945, and revised November 7, 1952, approved for sizes 1½", 2", 2½", 3" and 4", manufactured by Farris Engineering Corp., Palisades Park, N. J. (Extension of the approval published in FEDERAL REGISTER February 18, 1953, effective February 18, 1958.)

Approval No. 162.001/77/1, Type 2576C alloy steel body pop safety valve, 450 p. s. i. maximum pressure for all sizes except 4" P 6", 350 p. s. i. for size 4" P 6", 900° F. maximum temperature, dwg. No. 1983-B-CG dated September 10, 1945, and revised November 7, 1952, approved for sizes 1½", 2", 2½", 3" and 4", manufactured by Farris Engineering Corp., Palisades Park, N. J. (Extension of the approval published in FEDERAL REGISTER February 18, 1953, effective February 18, 1958.)

Approval No. 162.001/78/1, Type 2577A carbon steel body pop safety valve, 600 p. s. i. maximum pressure for all sizes except 4" P 6", 500 p. s. i. for size 4" P 6", 650° F. maximum temperature, dwg. No. 1983-B-CG dated September 10, 1945, and revised November 7, 1952, approved for sizes 1½", 2", 2½", 3" and 4", manufactured by Farris Engineering Corp., Palisades Park, N. J. (Extension of the approval published in FEDERAL REGISTER February 18, 1953, effective February 18, 1958.)

Approval No. 162.001/79/1, Type 2577B carbon steel body pop safety valve, 600 p. s. i. maximum pressure for all sizes except 4" P 6", 500 p. s. i. for size 4" P 6", 750° F. maximum temperature, dwg. No. 1983-B-CG dated September 10, 1945, and revised November 7, 1952, approved for sizes 1½", 2", 2½", 3" and 4", manufactured by Farris Engineering Corp., Palisades Park, N. J. (Extension of the approval published in FEDERAL REGISTER February 18, 1953, effective February 18, 1958.)

Approval No. 162.001/80/1, Type 2577C alloy steel body pop safety valve, 600 p. s. i. maximum pressure for all sizes except 4" P 6", 500 p. s. i. for size 4" P 6", 900° F. maximum temperature, dwg. No. 1983-B-CG dated September 10, 1945, and revised November 7, 1952, approved for sizes 1½", 2", 2½", 3" and 4", manufactured by Farris Engineering Corp., Palisades, N. J. (Extension of the approval published in FEDERAL REGISTER February 18, 1953, effective February 18, 1958.)

Approval No. 162.001/81/1, Type 2578A carbon steel body pop safety valve, 750 p. s. i. maximum pressure for all sizes except 4" P 6", 700 p. s. i. for size 4" P 6", 650° F. maximum temperature, dwg. No. 1983-B-CG dated September 10, 1945, and revised November 7, 1952, approved for sizes 1½", 2", 2½", 3" and 4", manufactured by Farris Engineering Corp., Palisades Park, N. J. (Extension of the approval published in FEDERAL REGISTER February 18, 1953, effective February 18, 1958.)

Approval No. 162.001/82/1, Type 2578B carbon steel body pop safety valve, 750 p. s. i. maximum pressure for all sizes except 4" P 6", 700 p. s. i. for size 4" P 6", 750° F. maximum temperature, dwg. No. 1983-B-CG dated September 10, 1945, and revised November 7, 1952, approved for sizes 1½", 2", 2½", and 3" and 4", manufactured by Farris Engineering Corp., Palisades Park, N. J. (Extension of the approval published in FEDERAL REGISTER February 18, 1953, effective February 18, 1958.)

Approval No. 162.001/83/1, Type 2578C alloy steel body pop safety valve, 750 p. s. i. maximum pressure for all sizes except 4" P 6", 700 p. s. i. for size 4" P 6", 900° F. maximum temperature, dwg. No. 1983-B-CG dated September 10, 1945, and revised November 7, 1952, approved for sizes 1½", 2", 2½", 3" and 4", manufactured by Farris Engineering Corp., Palisades Park, N. J. (Extension of the approval published in FEDERAL REGISTER February 18, 1953, effective February 18, 1958.)

FIRE EXTINGUISHERS, PORTABLE, HAND, VAPORIZING LIQUID TYPE

Approval No. 162.004/21/4, General Quick Aid Model 85HD (Symbol GE, GEC, GEN, or GEP), 1-qt. carbon tetrachloride pump type hand portable fire extinguisher, assembly dwg. No. 1500, Rev. D dated February 3, 1958, name plate dwg. No. 85HD-3379 dated October 22, 1957 (Coast Guard classification: Type B, Size I; and Type C, Size I), manufactured by the General Fire Extinguisher Co., Detroit 32, Mich., and Culver City, Calif. (Supersedes Approval Nos. 162.004/21/3 and 162.004/23/4 published in FEDERAL REGISTER April 1, 1955.)

Approval No. 162.004/22/4, General Quick Aid Model 95HD (Symbol GE, GEC, GEN, or GEP), 1½-qt. carbon tetrachloride pump type hand portable fire extinguisher, assembly dwg. No. 1575, Rev. D dated October 22, 1957, name plate dwg. No. 95HD-3387 dated October 22, 1957 (Coast Guard classification: Type B, Size I; and Type C, Size I), manufactured by the General Fire Extinguisher Co., Detroit 32, Mich., and Culver City, Calif. (Supersedes Approval Nos. 162.004/22/3 and 162.004/54/2 published in FEDERAL REGISTER April 1, 1955.)

Approval No. 162.004/63/1, Stop-Fire Model P-10, 1-qt. carbon-tetrachloride type hand portable fire extinguisher, assembly dwg. No. P10-0-49 dated February 15, 1950, name plate dwg. No. P10-36-49 revised October 19, 1956 (Coast Guard classification: Type B, Size I; and Type C, Size I), manufactured by Stop-Fire, Inc., P. O. Box No. 9, Monmouth Junction, N. J. (Supersedes Approval No. 162.004/63/0 published in FEDERAL REGISTER February 18, 1953.)

Approval No. 162.004/64/1, Stop-Fire Model P-15, 1½-qt. carbon-tetrachloride type hand portable fire extinguisher, assembly dwg. No. P15-0-49 dated January 11, 1952, name plate dwg. No. P15-37-49 revised October 19, 1956 (Coast Guard classification: Type B, Size I; and Type C, Size I), manufactured by Stop-Fire, Inc., P. O. Box No. 9, Monmouth Junction, N. J. (Supersedes Approval No. 162.004/64/0 published in FEDERAL REGISTER February 18, 1953.)

Approval No. 162.004/96/0, General Quick Aid Model VL-15 (Symbol GE, GEC, GEP, or GEN), 1-qt. carbon tetrachloride vaporizing liquid stored pressure type hand portable fire extinguisher, assembly dwg. No. VL-15-2498 dated October 9, 1956, name plate dwg. No. VL-15-3383 dated October 22, 1957 (Coast Guard classification: Type B, Size I; and Type C, Size I), manufactured by the General Fire Extinguisher Corp., 25631 Little Mack Avenue, St. Clair Shores, Mich., and 8740 Washington Boulevard, Culver City, Calif.

Approval No. 162.004/97/0, Fire Guard Model PR-1 (Symbol GE, GEC, GEP, or GEN), 1-qt. carbon tetrachloride vaporizing liquid stored pressure type hand portable fire extinguisher, assembly dwg. No. VL-15-2498 dated October 9, 1956, name plate dwg. No. VL-15-2216, Rev. C dated October 22, 1957 (Coast Guard classification: Type B, Size I; and Type C, Size I), manufactured by the Fire Guard Corp., 1685 Shermer Road, Northbrook, Ill.

Approval No. 162.004/98/0, General Quick Aid Model VL-20A (Symbol GE, GEC, GEP, or GEN), 1-qt. chlorobromomethane vaporizing liquid stored pressure type hand portable fire extinguisher, assembly dwg. No. VL-20A-2495 dated October 9, 1956, name plate dwg. No. VL-15-3382, dated October 22, 1957 (Coast Guard classification: Type B, Size I; and Type C, Size I), manufactured by The General Fire Extinguisher Corp., 25631 Little Mack Avenue, St. Clair Shores, Mich., and 8740 Washington Boulevard, Culver City, Calif.

Approval No. 162.004/99/0, Fire Guard Model PRCB-1 (Symbol GE, GEC, GEP, or GEN), 1-qt. chlorobromomethane vaporizing liquid stored pressure type hand portable fire extinguisher, assembly dwg. No. VL-20A-2495 dated October 9, 1956, name plate dwg. No. VL-15-2738, Rev. D dated October 22, 1957 (Coast Guard classification: Type B, Size I; and Type C, Size I), manufactured by the Fire Guard Corp., 1685 Shermer Road, Northbrook, Ill.

Approval No. 162.004/101/0, Fire Guard Model P-1 (Symbol GE, GEN, or GEP), 1-qt. carbon tetrachloride pump type hand portable fire extinguisher, assembly dwg. No. 2622, Rev. D dated February 3, 1958, name plate dwg. No. 85HD-2212, Rev. A dated September 25, 1956 (Coast Guard classification: Type B, Size I; and Type C, Size I), manufactured by the Fire Guard Corp., 1685 Shermer Road, Northbrook, Ill.

Approval No. 162.004/102/0, Fire Guard Model P-1½ (Symbol GE, GEN, or GEP), 1½-qt. carbon tetrachloride pump type hand portable fire extinguisher, assembly dwg. No. 2623, Rev. D dated October 22, 1957, name plate dwg. No. 95HD-2213, Rev. A dated September 26, 1956 (Coast Guard classification: Type B, Size I; and Type C, Size I), manufactured by the Fire Guard Corp., 1685 Shermer Road, Northbrook, Ill.

FIRE EXTINGUISHERS, PORTABLE, HAND, CARBON-DIOXIDE TYPE

Approval No. 162.005/13/2, C-O-Two Type PSA-5, 5-lb. carbon-dioxide type hand portable fire extinguisher, assembly dwg. No. 1102, Rev. 4 dated January 18, 1957, name plate dwg. No. C-1112, Rev. 9 dated December 27, 1957 (Coast Guard classification: Type B, Size I; and Type

C, Size I), manufactured by Pyrene-C-O-Two Division, the Fyr-Fyter Co., P. O. Box 750, Newark 1, N. J. (Supersedes Approval No. 162.005/13/1 published in FEDERAL REGISTER March 25, 1954.)

Approval No. 162.005/50/2, Fyr-Fyter Model No. 33–1, 5-lb. carbon-dioxide type hand portable fire extinguisher, assembly dwg. No. C–5115 dated January 8, 1957, name plate dwg. No. C–4865, Rev. 5 dated December 27, 1957 (Coast Guard classification: Type B, Size I; and Type C, Size I), manufactured by Fyr-Fyter Division, the Fyr-Fyter Co., Dayton 1, Ohio. (Supersedes Approval No. 162.005/50/1 published in FEDERAL REGISTER June 22, 1955.)

Approval No. 162.005/51/2, Fyr-Fyter Model 34–1, 10-lb. carbon-dioxide type hand portable fire extinguisher, assembly dwg. No. D–5116 dated January 8, 1957, name plate dwg. No. D–4897, Rev. 3 dated July 17, 1957 (Coast Guard classification: Type B, Size I; and Type C, Size I), manufactured by Fyr-Fyter Division, the Fyr-Fyter Co., Dayton 1, Ohio. (Supersedes Approval No. 162.005/51/1 published in FEDERAL REGISTER June 22, 1955.)

Approval No. 162.005/52/2, Fyr-Fyter Model 35–1, 15-lb. carbon-dioxide type hand portable fire extinguisher, assembly dwg. No. D–5116 dated January 8, 1957, name plate dwg. No. D–4884, Rev. 4 dated July 31, 1957 (Coast Guard classification: Type B, Size II; and Type C, Size II), manufactured by Fyr-Fyter Division, the Fyr-Fyter Co., Dayton 1, Ohio. (Supersedes Approval No. 162.005/52/1 published in FEDERAL REGISTER June 22, 1955.)

Approval No. 162.005/53/2, Buffalo Model No. 33–2, 5-lb. carbon-dioxide type hand portable fire extinguisher, assembly dwg. No. C–5115 dated January 8, 1957, name plate dwg. No. C–4886, Rev. 4 dated December 27, 1957 (Coast Guard classification: Type B, Size I; and Type C, Size I), manufactured by Buffalo Fire Appliance Corp., Dayton 1, Ohio. (Supersedes Approval No. 162.005/53/1 published in FEDERAL REGISTER June 22, 1955.)

Approval No. 162.005/54/2, Buffalo Better Built Model 34–2, 10-lb. carbon-dioxide type hand portable fire extinguisher, assembly dwg. No. D–5116 dated January 8, 1957, name plate dwg. No. D–5899, Rev. 2 dated March 26, 1957 (Coast Guard classification: Type B, Size I; and Type C, Size I), manufactured by Buffalo Fire Appliance Corp., Dayton 1, Ohio. (Supersedes Approval No. 162.005/54/1 published in FEDERAL REGISTER June 22, 1955.)

Approval No. 162.005/55/2, Buffalo Better Built Model 35–2, 15-lb. carbon-dioxide type hand portable fire extinguisher, assembly dwg. No. D–5116 dated January 8, 1957, name plate dwg. No. D–4882, Rev. 3 dated March 26, 1957 (Coast Guard classification: Type B, Size II; and Type C, Size II), manufactured by Buffalo Fire Appliance Corp., Dayton 1, Ohio. (Supersedes Approval No. 162.005/55/1 published in FEDERAL REGISTER June 22, 1955.)

Approval No. 162.005/98/0, Fire Guard Model FF–5 (Symbol GEN), 5-lb. carbon-dioxide type hand portable fire extinguisher, assembly dwg. No. 5AKR–2328 Rev. A dated January 31, 1955, name plate dwg. No. 5AKR–2220, Rev. A dated August 24, 1956 (Coast Guard classification: Type B, Size I; and Type C, Size I), manufactured by the Fire Guard Corp., 1685 Shermer Road, Northbrook, Ill.

Approval No. 162.005/99/0, Fire Guard Model FF–10 (Symbol GEN), 10-lb. carbon-dioxide type hand portable fire extinguisher, assembly dwg. No. 10AKR–2280, revised April 2, 1956, name plate dwg. No. 10AKR–2221, Rev. B dated September 8, 1956 (Coast Guard classification: Type B. Size I; and Type C, Size I), manufactured by the Fire Guard Corp., 1685 Shermer Road, Northbrook, Ill.

Approval No. 162.005/100/0, Fire Guard Model FF–15 (Symbol GEN), 15-lb. carbon-dioxide type hand portable fire extinguisher, assembly dwg. No. 15AKR–1688, revised April 24, 1956, name plate dwg. No. 15AKR–2222, Rev. C dated September 8, 1956 (Coast Guard classification: Type B, Size II; and Type C, Size II), manufactured by the Fire Guard Corp., 1685 Shermer Road, Northbrook, Ill.

Approval No. 162.005/101/0, General Quick Aid Model 5R (Symbol GE, GEC, GEN, or GEP), 5-lb, carbon-dioxide type hand portable fire extinguisher, assembly dwg. No. 5AKR–2328, Rev. A dated January 31, 1955, name plate dwg. No. 5AKR–3456, Rev. B dated December 6, 1957 (Coast Guard classification: Type B, Size I; and Type C, Size I), manufactured by the General Fire Extinguisher Corp., Detroit 32, Mich., and Culver City, Calif.

Approval No. 162.005/102/0, General Quick Aid Model 10R (Symbol GE, GEC, GEN, or GEP), 10-lb. carbon-dioxide type hand portable fire extinguisher, assembly dwg. No. 10AKR–2280, revised April 2, 1956, name plate dwg. No. 10AKR–3462, Rev. A dated December 6, 1957 (Coast Guard classification: Type B, Size I; and Type C, Size I), manufactured by the General Fire Extinguisher Corp., Detroit 32, Mich., and Culver City, Calif.

Approval No. 162.005/103/0, General Quick Aid Model 15R (Symbol GE, GEC, GEN, or GEP), 15-lb. carbon-dioxide type hand portable fire extinguisher, assembly dwg. No. 15AKR–1688, revised April 24, 1956, name plate dwg. No. 15AKR–3466, Rev. A dated December 7, 1957 (Coast Guard classification: Type B, Size II; and Type C, Size II), manufactured by the General Fire Extinguisher Corp., Detroit 32, Mich., and Culver City, Calif.

FIRE EXTINGUISHERS, PORTABLE, HAND DRY-CHEMICAL TYPE

Approval No. 162.010/7/1, C–O–Two Type PDC–20, 20-lb. pressure-cartridge operated dry-chemical type hand portable fire extinguisher, assembly dwg. No. D–3489, Rev. 1 dated September 1, 1954, name plate dwg. No. D–58580, Rev. 19 dated April 9, 1957 (Coast Guard classification: Type B, Size II; and Type C, Size II), manufactured by Pyrene–C–O–Two Division The Fyr-Fyter Co., P. O. Box 750, Newark 1, N. J. (Supersedes Approval No. 162.010/7/0 published in FEDERAL REGISTER February 18, 1953.)

Approval No. 162.010/52/0, Leeder Marine Model No. 4, 4-lb. dry-chemical stored pressure type hand portable fire extinguisher, assembly dwg. No. G–621–302–2 dated May 23, 1957, parts list dwg. No. B–621–302–3P.L. dated May 23, 1957 (Coast Guard classification: Type B, Size I; and Type C. Size I), manufactured by Leeder Manufacturing Co., Inc., Roselle, N. J.

Approval No. 162.010/53/0, Leeder Marine Model No. 5, 5-lb. dry-chemical stored pressure type hand portable fire extinguisher, assembly dwg. No. D–721–312–2 dated June 20, 1957, parts list dwg. No. B–721–312–3P.L. dated June 21, 1957 (Coast Guard classification: Type B, Size I; and Type C, Size I), manufactured by Leeder Manufacturing Co., Inc., Roselle, N. J.

Approval No. 162.010/54/0, Leeder Marine Model No. 10, 10-lb. dry-chemical stored pressure type hand portable fire extinguisher, assembly dwg. No. D–721–312–2 dated June 20, 1957, parts list dwg. No. B–721–312–3P.L. dated June 21, 1957 (Coast Guard classification: Type B, Size I; and Type C, Size I), manufactured by Leeder Manufacturing Co., Inc., Roselle, N. J.

Approval No. 162.010/55/0, Leeder Marine Model No. 15, 15-lb. dry-chemical stored pressure type hand portable fire extinguisher, assembly dwg. No. D–721–312–2 dated June 20, 1957, parts list dwg. No. B–721–312–3P.L. dated June 21, 1957 (Coast Guard classification: Type B, Size II; and Type C, Size II), manufactured by Leeder Manufacturing Co., Inc., Roselle, N. J.

Approval No. 162.010/56/0, Leeder Marine Model No. 20, 20-lb. dry-chemical stored pressure type hand portable fire extinguisher, assembly dwg. No. D–721–312–2 dated June 20, 1957, parts list dwg. No. B–721–312–3P.L. dated June 21, 1957 (Coast Guard classification: Type B, Size II; and Type C, Size II), manufactured by Leeder Manufacturing Co., Inc., Roselle, N. J.

Approval No. 162.010/57/0, Leeder Marine Model No. 25, 25-lb. dry-chemical stored pressure type hand portable fire extinguisher, assembly dwg. No. D–721–312–2 dated June 20, 1957, parts list dwg. No. B–721–312–3 P. L. dated June 21, 1957 (Coast Guard classification: Type B, Size II; and Type C, Size II), manufactured by Leeder Manufacturing Co., Inc., Roselle, N. J.

Approval No. 162.010/58/0, Leeder Marine Model No. 30, 30-lb. dry-chemical stored pressure type hand portable fire extinguisher, assembly dwg. No. D–721–312–2 dated June 20, 1957, parts list dwg. No. B–721–312–3 P. L. dated June 21, 1957 (Coast Guard classification: Type B, Size II; and Type C, Size II), manufactured by Leeder Manufacturing Co., Inc., Roselle, N. J.

VALVES, SAFETY (STEAM HEATING BOILERS)

Approval No. 162.012/15/0, Style HH–MS–270 bronze body pop safety valve, for steam heating boilers and unfired steam generators, dwg. No. SK, No. 1971–V, issued July 15, 1952, and revised August 22, 1952, manufactured by Crosby

Valve and Gage Co., Wrentham, Mass., approved for a maximum pressure of 30 p. s. i. in the following sizes and relieving capacities:

Size	Capacity (pounds/hour) at 30 p. s. i.
Inches	
¾	132
1	200
1¼	250
1½	377
2	704
2½	1,005

(Extension of the approval published in FEDERAL REGISTER February 18, 1953, effective February 18, 1958.)

Approval No. 162.012/16/0, Style HO–B–MS cast iron body pop safety valve, for steam heating boilers and unfired steam generators, dwg. No. HV–31, issued July 2, 1952, manufactured by Crosby Valve and Gage Co., Wrentham, Mass., approved for a maximum pressure of 30 p. s. i. in the following sizes and relieving capacities:

Size	Bore diameter	Capacity (pounds/hour) at 30 p. s. i.
Inches	*Inches*	
1¼	1¼	630
1½	1½	1,032
2	1¾	1,612
2½	2½	2,641
3	3	3,773
4	4	5,854

(Extension of the approval published in FEDERAL REGISTER February 18, 1953, effective February 18, 1958.)

Approval No. 162.012/17/0, Style HR–B–MS cast iron body pop safety valve, for steam heating boilers and unfired steam generators, dwg. No. HV–32, issued July 2, 1948, manufactured by Crosby Valve and Gage Co., Wrentham, Mass., approved for a maximum pressure of 30 p. s. i. in the following sizes and relieving capacities:

Size	Bore diameter	Capacity (pounds/hour) at 30 p. s. i.
Inches	*Inches*	
2	1½	1,032
2½	1½	1,032
3	1¾	1,612
3½	1¾	1,612
4	2½	2,641

(Extension of the approval published in FEDERAL REGISTER February 18, 1953, effective February 18, 1958.)

Approval No. 162.012/18/0, Style C. I. cast iron pop safety valve, for steam heating boilers and unfired steam generators, dwg. No. 59BC–1, dated October 5, 1926, and revised December 19, 1952, manufactured by the Ashton Valve Co., Wrentham, Mass., approved for a maximum pressure of 30 p. s. i. in the following sizes and relieving capacities:

Size	Capacity (pounds/hour) at 30 p. s. i.
Inches	
2	1,870
2½	2,700
3	3,540
3½	4,210
4	5,300

(Extension of the approval published in FEDERAL REGISTER February 18, 1953, effective February 18, 1958.)

VALVES, RELIEF (HOT WATER HEATING BOILERS)

Approval No. 162.013/35/0, Type No. 174A relief valve for hot water heating boilers, dwg. No. 174A (P. D.), dated January 9, 1957, approved for the following sizes and capacities:

Inlet size (male or female)	Relieving capacity (B. t. u. per hr. at 30 p. s. i.)
Inches	
¾	500,000
1	1,135,000
1¼	1,805,000
1½	2,020,000
2	3,815,000

Manufactured by the Watts Regulator Co., Lawrence, Mass.

INDICATORS, BOILER WATER LEVEL, SECONDARY TYPE

Approval No. 162.025/6/2, Figure 4312, secondary boiler water level indicator, remote reading wall-mounted type, 700 p. s. i. maximum pressure, dwg. No. EL–912–108, revision A, dated February 23, 1952; EL–13021, revision F, dated September 9, 1953; EL–14269, revision A, dated June 3, 1954, manufactured by Yarnall-Waring Co., Chestnut Hill, Philadelphia 18, Pa. (Reinstates and supersedes Approval No. 162.025/6/1 terminated in FEDERAL REGISTER November 1, 1957.)

Approval No. 162.025/30/2, Figure 4314, secondary boiler water level indicator, remote reading panel-mounted type, 700 p. s. i. maximum pressure, dwg. No. EL–912–108, revision A, dated February 23, 1952; EL–13021, revision F, dated September 9, 1953; EL–14269, revision A, dated June 3, 1954, manufactured by Yarnall-Waring Co., Chestnut Hill, Philadelphia 18, Pa. (Reinstates and supersedes Approval No. 162.025/30/1 terminated in FEDERAL REGISTER November 1, 1957.)

Approval No. 162.025/31/2, Figure 4316, secondary water level indicator, remote reading wall-mounted type, 1500 p. s. i. maximum pressure, dwg. No. EL–912–109, revision C, dated January 27, 1958; EL–15231, dated December 4, 1956; EL–12975, revision B, dated January 27, 1958, and EL–14269, revision A, dated June 3, 1954, manufactured by Yarnall-Waring Co., Chestnut Hill, Philadelphia 18, Pa. (Reinstates and supersedes Approval No. 162.025/31/1 terminated in FEDERAL REGISTER November 1, 1957.)

Approval No. 162.025/32/2, Figure 4318, secondary water level indicator, remote reading panel-mounted type, 1500 p. s. i. maximum pressure, dwg. No. EL–912–109, revision C, dated January 27, 1958; EL–15231 dated December 4, 1956; EL–12975, revision B, dated January 27, 1958, and EL–14269, revision A, dated June 3, 1954, manufactured by Yarnall-Waring Co., Chestnut Hill, Philadelphia 18, Pa. (Reinstates and supersedes Approval No. 162.025/32/1 terminated in FEDERAL REGISTER November 1, 1957.)

BULKHEAD PANELS

Approval No. 164.008/38/0, "Marine Board 60–P" asbestos board type bulkhead panel identical to that described in National Bureau of Standards Project No. 1002–30–4876, Report No. 5756, Test No. 397, dated January 27, 1958, approved as meeting Class B–15 requirements in a ⅞-inch thickness, manufactured by Nippon Asbestos Co., Ltd., No. 3, 6-Chome, Ginza-Nishi, Chuo-Ku, Tokyo, Japan.

PART II—TERMINATIONS OF APPROVALS OF EQUIPMENT, INSTALLATIONS, OR MATERIALS

LIFEBOATS

Termination of Approval No. 160.035/41/1, 24.0' x 8.0' x 3.58' steel, oar-propelled lifeboat, 40-person capacity, identified by arrangement and construction dwg. No. 2602 dated June 26, 1952, and revised October 14, 1952, manufactured by Welin Davit and Boat Division of Continental Copper and Steel Industries, Inc., Perth Amboy, N. J. (Approved FEDERAL REGISTER February 18, 1953. Termination of approval effective February 18, 1958.)

Termination of Approval No. 160.035/184/1, 24.0' x 7.75' x 3.33' steel, oar-propelled lifeboat, 37-person capacity, identified by construction and arrangement dwg. No. 245–2 dated January 11, 1944, and revised October 21, 1952, manufactured by Welin Davit and Boat Division of Continental Copper & Steel Industries, Inc., Perth Amboy, N. J. (Approved FEDERAL REGISTER February 18, 1953. Termination of approval effective February 18, 1958.)

BOILERS, HEATING

Termination of Approval No. 162.003/142/0, Model B, water tube hot water heating boiler, 3,600,000 B. t. u. per hour, dwg. No. 1926 (2 sheets) dated August 16, 1952, maximum design pressure 30 p. s. i., approval limited to bare boiler, manufactured by Liberty Welding & Iron Works, 1331–1333 Julia Street, New Orleans 13, La. (Approved FEDERAL REGISTER February 18, 1953. Termination of approval effective February 18, 1958.)

Termination of Approval No. 162.003/143/0, Model I. D. L. No. 8 horizontal return tubular boiler, capacity 530 pounds per hour, dwg. No. 53–52D–1105–1, rev. (1) dated November 24, 1952, maximum design pressure 30 p. s. i., approval limited to bare boiler, manufactured by the International Boiler Works Co., East Stroudsburg, Pa. (Approved FEDERAL REGISTER February 18, 1953. Termination of approval effective February 18, 1958.)

FIRE EXTINGUISHERS, PORTABLE, HAND, VAPORIZING LIQUID TYPE

Termination of Approval No. 162.004/71/0, Stempel Veribest (Symbol GE, GEC or GEP) 1-qt. carbon tetrachloride type hand portable fire extinguisher, assembly dwg. No. BT–185–XJ, Rev. B dated January 21, 1952, name plate dwg. No. AT–185–A4, Rev. C dated January 9, 1952 (Coast Guard classification: Type B, Size I; and Type C, Size I), manufactured for Stempel Fire Extinguisher Manufactur-

ing Co., Jasper and York Streets, Philadelphia 25, Pa., by the General Fire Extinguisher Co., Detroit 32, Mich. (Approved FEDERAL REGISTER February 18, 1953. Termination of approval effective February 18, 1958.)

Termination of Approval No. 162.004/72/0, Stempel Veribest (Symbol GE, GEC or GEP) 1½-qt. carbon-tetrachloride type hand portable fire extinguisher, assembly dwg. No. BT-195-XJ, Rev. C dated July 30, 1952, name plate dwg. No. AT-195-A4, Rev. C dated January 9, 1952 (Coast Guard classification: Type B, Size I; and Type C, Size I), manufactured for Stempel Fire Extinguisher Manufacturing Co., Jasper and York Streets, Philadelphia 25, Pa., by the General Fire Extinguisher Co., Detroit 32, Mich. (Approved FEDERAL REGISTER February 18, 1953. Termination of approval effective February 18, 1958.)

Termination of Approval No. 162.004/73/0, Badger's CTC (Symbol GE, GEC or GEP) 1-qt. carbon-tetrachloride type hand portable fire extinguisher, assembly dwg. No. BT-185-XJ, Rev. C dated August 18, 1952, name plate dwg. No. AT-185-A10 dated April 22, 1952 (Coast Guard classification: Type B, Size I; and Type C, Size I), manufactured for Badger Fire Extinguisher Co., Methuen, Mass., by the General Fire Extinguisher Co., Detroit 32, Mich. (Approved FEDERAL REGISTER February 18, 1953. Termination of approval effective February 18, 1958.)

Termination of Approval No. 162.004/74/0, Badger's CIC (Symbol GE, GEC or GEP) 1½-qt. carbon-tetrachloride type hand portable fire extinguisher, assembly dwg. No. BT-195-XJ, Rev. C dated July 30, 1952, name plate dwg. No. AT-195-A10 dated April 22, 1952 (Coast Guard classification: Type B, Size I; and Type C, Size I), manufactured for Badger Fire Extinguisher Co., Methuen, Mass., by the General Fire Extinguisher Co., Detroit, 32, Mich. (Approved FEDERAL REGISTER February 18, 1953. Termination of approval effective February 18, 1958.)

FIRE EXTINGUISHERS, PORTABLE, HAND, SODA-ACID TYPE

Termination of Approval No. 162.007/40/0, Stop-Fire Soda-Acid 2½-gallon hand portable fire extinguisher, assembly dwg. No. SA50F-0-50 dated December 12, 1951, name plate dwg. No. SA-50-30-50 dated December 12, 1951 (Coast Guard classification: Type A, Size II), manufactured by Stop-Fire, Inc., 125 Ashland Place, Brooklyn 1, N. Y. (Approved FEDERAL REGISTER February 18, 1953. Termination of approval effective February 18, 1958.)

VALVES, SAFETY (STEAM HEATING BOILERS)

Termination of Approval No. 162.012/7/0, Type 1411 cast iron body pop safety valve, for steam heating boilers, and unfired steam generators, dwg. No. 3VJ953 dated July 28, 1952, manufactured by Manning, Maxwell & Moore, Inc., Stratford, Conn., approved for a maximum pressure of 30 p. s. i. in the following sizes and relieving capacities:

Size	Bore diameter	Capacity (pounds/hour) at 30 p. s. i.
Inches	*Inches*	
1½	1¼	628
1½	1⅝	1,610
2	1⅝	1,610
2½	2½	2,650
3	3	3,770
4	4	5,860
4	4½	8,870

(Approved FEDERAL REGISTER February 18, 1953. Termination of approval effective February 18, 1958.)

Termination of Approval No. 162.012/19/0, Model WT cast iron pop safety valve, for steam heating boilers and unfired steam generators, dwg. No. B1667S dated November 14, 1951, manufactured by J. E. Lonergan Co., Second and Race Streets, Philadelphia 6, Pa., approved for a maximum pressure of 30 p. s. i. in the following sizes and discharge capacities:

Size	Capacity (pounds/hour) at 30 p. s. i.
Inches	
1½	1,300
2	1,910
2½	2,470
3	3,220
4	4,900

(Approved FEDERAL REGISTER February 18, 1953. Termination of approval effective February 18, 1958.)

PART III—CHANGE IN ADDRESS OF MANUFACTURER

The address of Associated Plastics, Inc., 312 East 12th Street, Los Angeles 15, Calif., has been changed to Assocated Plastics, Inc., 2315 East Olympic Boulevard, Los Angeles 21, Calif., for Approval Nos. 160.047/127/0, 160.047/128/0, and 160.047/129/0 for kapok buoyant vests published in the FEDERAL REGISTER of May 29, 1957, and for Approval No. 160.048/105/0 for kapok buoyant cushion published in the FEDERAL REGISTER of November 1, 1957.

Dated: March 19, 1958.

[SEAL] A. C. RICHMOND,
Vice Admiral,
U. S. Coast Guard,
Commandant.

[F. R. Doc. 58-2185; Filed, Mar. 24, 1958; 8:48 a. m.]

DEPARTMENT OF THE INTERIOR

Bureau of Land Management

NEW MEXICO

NOTICE OF PROPOSED WITHDRAWAL AND RESERVATION OF LANDS

MARCH 17, 1958.

The United States Department of the Army has filed an application, Serial No. New Mexico 035384, for the withdrawal of lands described below, from all forms of appropriation, including the general mining and the mineral leasing laws.

The applicant desires the land for the purpose of building the Abiquiu Dam and Reservoir, a flood control project.

For a period of 30 days from the date of publication of this notice, persons having cause may present their objections in writing to the undersigned official of the Bureau of Land Management, Department of the Interior, P. O. Box 1251, Santa Fe, New Mexico.

If circumstances warrant it, a public hearing will be held at a convenient time and place, which will be announced.

The determination of the Secretary on the application will be published in the FEDERAL REGISTER. A separate notice will be sent to each interested party of record.

The lands involved in the application are:

NEW MEXICO PRINCIPAL MERIDIAN

Beginning at corner No. 1, which bears S. 27°43' W., a distance of 5,000.61 ft. from the southwest corner of Sec. 18 and the northwest corner of Sec. 19, unsurveyed, T. 24 N., R. 4 E., N. M. P. M.

From corner No. 1, by metes and bounds,
S. 17°45' W., along a boundary line between the Piedra Lumbre Grant on the east and the Santa Fe National Forest on the west, a distance of 924.82 ft. to corner No. 2;
N. 61°59' W., 369.27 ft. to corner No. 3;
N. 715.28 ft. to corner No. 4;
N. 89°54' E., 575.23 ft., to corner No. 1, the place of beginning.

The tract as described contains 0.87 acre, more or less.

Beginning at corner No. 1, which bears N. 57°45' E., a distance of 721.63 ft. from the southwest corner of Sec. 18 and the northwest corner of Sec. 19, Fractional, T. 24 N., R. 4 E., N. M. P. M.

From corner No. 1, by metes and bounds,
S. 7°20' W., 1412.08 ft. to corner No. 2;
S. 49°00' W., along boundary line between the Santa Fe National Forest on the north and the Piedra Lumbre Grant on the south, 1631.97 ft., to corner No. 3;
N. 00°15' W., 1785.74 ft., to corner No. 4;
N. 89°59' W., 2681.06 ft., to corner No. 5;
N. 42°56' W., 1967.82 ft., to corner No. 6;
N. 73°48' W., 3979.58 ft., to corner No. 7;
N. 34°13' W., 1200.00 ft., to corner No. 8;
N. 69°15' E., 211.20 ft. to corner No. 9;
N. 89°58' E., 249.48 ft., to corner No. 10;
Southeasterly direction along the northerly bank of the Rio Chama 1180 ft., to corner No. 11;
N. 388.08 ft., to corner No. 12;
N. 47°15' W., 1287.00 ft., to corner No. 13;
N. 40°00' W., 467.94 ft., to corner No. 14;
Northwesterly direction along the southerly bank of the Rio Chama, 3760 ft., to corner No. 15;
N. 26°00' E., along eastern boundary of the Canon de Chama Grant, 408.54 ft., to corner No. 16;
S. 70°15' E., 1890 ft., to corner No. 17;
S. 80°14' E., 1563.25 ft., to corner No. 18;
S. 24°44' E., 1553.23 ft., to corner No. 19;
S. 81°07' E., 3695.70 ft., to corner No. 20;
S. 28°22' E., 1000.41 ft., to corner No. 21;
S. 56°01' E., 1628.71 ft., to corner No. 22;
S. 82°58' E., 3512.83 ft., to corner No. 1, the place of beginning.

The tract as described contains 326.14 acres, more or less.

Fractional T. 23 N., R. 5 E.,
Sec. 8, Lots 1, 2, 3 and 4, E½SE¼.

The area described contains 180.87 acres, more or less.

E. R. SMITH,
State Supervisor.

[F. R. Doc. 58-2171; Filed, Mar. 24, 1958; 8:46 a. m.]

DEPARTMENT OF AGRICULTURE

Agricultural Marketing Service

List of Licensed Warehouses and Warehousemen

Changes in List

List of warehouses and warehousemen licensed under the U. S. Warehouse Act. Pursuant to section 26 of the United States Warehouse Act (7 U. S. C. 266), notice is hereby given as follows:

As of February 28, 1958, the following changes, additions and deletions should be made to the list of licensed warehouses and warehousemen published in the Federal Register of March 15, 1957 (22 F. R. 1689).

A. For the storage of cotton:

ALABAMA

Delete the following:

Town, Warehouse, and Warehouseman

Childersburg, Farmers Union Warehouse, Farmers Union Warehouse Co.

ARKANSAS

Delete the following:

Russellville, Russellville Warehouse, Planters Compress Company.

Add the following:

Prescott, Pittman Cotton Warehouse, May Pittman, Lil P. Bemis, Pauline Pittman, and Dan Pittman, copartners trading as Prescott Hardware Company.

GEORGIA

Delete the following:

Fitzgerald, The Ben Hill Company's Warehouse, The Ben Hill Company.

LaGrange, Troup Warehouse, Farmers Mutual Warehouse Association of LaGrange.

Lyerly, Chapman Brothers Bonded Warehouse, Seab M. Chapman and Byron N. Chapman, copartners t/a Chapman Brothers.

Pulaski, Pulaski Bonded Warehouse, Pulaski Gin & Warehouse Company.

Quitman, Quitman Bonded Warehouse, H. R. Garrett, H. H. Carmichael and S. A. Phelps, copartners t/a Quitman Bonded Warehouse Co.

Rockmart, Ingram Bonded Warehouse, W. D. Ingram.

Sylvester, Houston Bonded Warehouse, G. L. Houston.

Thomaston, City Warehouse, Thomas F. Reeves.

Thomaston, Reeves Bonded Warehouse, T. J. Reeves.

Tifton, Farmers Gin and Peanut Association Warehouse, Farmers Gin and Peanut Association, Inc.

Winder, Thompson Bonded Warehouse, Winder Oil Mill Company.

Add the following:

Fitzgerald, Ben Hill Bonded Warehouse, Fitzgerald Oil & Fertilizer Company.

Rockmart, J. L. Lester & Son Bonded Warehouse, Raymond Lester, trading as J. L. Lester & Son.

Sylvester, Houston Bonded Warehouse, Houston Gin & Warehouse Co.

MISSISSIPPI

Delete the following:

Kosciusko, Attala Warehouse and Compress Company's Warehouse, Attala Warehouse and Compress Company.

Add the following:

Kosciusko, United Warehouse, United Warehouses, Inc.

NORTH CAROLINA

Delete the following:

Harris, Harris Bonded Warehouse, Warehouse Superintendent of the State of North Carolina.

Monroe, West Monroe Bonded Warehouse, Warehouse Superintendent of the State of North Carolina.

Add the following:

Jackson, Northampton Warehouse, Warehouse Superintendent of the State of North Carolina.

Littleton, Littleton Bonded Warehouse, Warehouse Superintendent of the State of North Carolina.

Rowland, Barrow Warehouse, Warehouse Superintendent of the State of North Carolina.

Weldon, Jenkins Warehouse, Warehouse Superintendent of the State of North Carolina.

TENNESSEE

Delete the following:

Chattanooga, Dixie Bonded Warehouse, Dixie Warehouse, Inc.

Memphis, Navy Yard Compress Warehouse, Navy Yard Compress & Warehouse Co.

Add the following:

Memphis, Navy Yard Compress, Division of the Bayside Warehouse Company, Bayside Warehouse Company.

TEXAS

Delete the following:

Bryan, Porter Brothers Warehouse, Holland Porter, Boswell Porter and Marvin Porter, copartners t/a Porter Brothers.

Add the following:

Fort Stockton, Kermit Dyche Warehouse, Kermit Dyche Warehouse, Inc.

B. For the storage of grain:

ARKANSAS

Delete the following:

Town, Warehouse, and Warehouseman

Stuttgart, Wingmead Dryer, Dixie Dryer, Inc.

West Memphis, Lee Wilson & Company Elevator, R. E. Lee Wilson, Jr. and R. E. Lee Wilson 3rd. Trustees Lee Wilson & Company, Trust Estate.

Add the following:

DeWitt, Farmers Coop. Elevator, The Farmers Co-operative Elevator Company.

Osceola, Osceola Elevator, Osceola Products Company.

West Memphis, Lee Wilson & Company Elevator, Lee Wilson & Company.

CALIFORNIA

Add the following:

Colton, Producers Elevator, Producers Grain Corporation.

French Camp, Continental Elevator, Continental Grain Company.

COLORADO

Add the following:

Bristol, Bristol Elevator, South Eastern Colorado Coop.

IDAHO

Delete the following:

Rupert, F. S. Campbell Co. Warehouse, Frank S. Campbell d/b/a F. S. Campbell Co.

Shoshone, Beacon Elevator, Jos. A. Johnson doing business as Beacon Elevator Co.

Add the following:

Setters, Rockford Grain Growers Warehouse, Rockford Grain Growers, Inc.

Worley, Rockford Grain Growers Warehouse, Rockford Grain Growers, Inc.

ILLINOIS

Delete the following:

Chandlerville, Chandlerville Elevator, Continental Grain Company.

Chicago, Belt Elevator, Vitality Mills, Inc.

Chicago, Irondale Elevator, Illinois Grain Corporation.

Chicago, States Grain Elevator, States Grain Corporation.

Chicago, Dickinson Elevator, Stratton Grain Company.

Easton, Easton Elevator, Continental Grain Company.

Hastings, Hastings Elevator, Samuel N. Maddox, Chester Maddox and Fred F. Current, copartners t/a Sidell Grain Company.

Lacon, Lacon Elevator, Continental Grain Company.

Maizetown (P. O. Sidell), Maizetown Elevator, Samual N. Maddox, Chester Maddox and Fred F. Current, copartners t/a Sidell Grain Company.

Ware, Federal-North Iowa Elevator, Federal-North Iowa Grain Co.

Add the following:

Bloomington, Funk Bros. Seed Co. Elevator, Funk Bros. Seed Co.

Chicago, Rice-Powell Elevator, Rice Grain Corporation.

Chicago, Belt Elevator, Carey Grain Corporation.

Chicago, Irondale Elevator, Louis Dreyfus Corporation.

Chicago, Gateway Elevator, Illinois Grain Corporation.

Chicago, Erie Elevator, Interstate Elevator Corporation.

Chicago, States Grain Elevator, Pittsburgh Grain Elevator Corporation.

Pinckneyville, Federal-North Iowa Elevator, Federal-North Iowa Grain Co.

Tolono (RR #2), Apex Terminal Warehouses, Apex Terminal Warehouses, Inc.

White Heath, Federal-North Iowa Elevator, Federal-North Iowa Grain Co.

INDIANA

Delete the following:

Kentland, Kentland Elevator, Kenworthy Grain Company, Inc.

Oaktown, Co-operative Elevator, Knox County Farm Bureau Co-operative Association, Inc.

Add the following:

Bicknell, Barr Elevator, O. L. Barr Grain Co., Inc.

Onward, Onward-Goodrich Co. Elevator, Acme-Goodrich, Inc.

Thorntown, Sugar Creek Elevator, Allison, Steinhart & Zook, Inc.

Vincennes, Baltic Elevator, Baltic Mills, Inc.

Westphalia, Barr Elevator, O. L. Barr Grain Co., Inc.

IOWA

Delete the following:

Council Bluffs, Pillsbury Elevator, Pillsbury Mills, Inc.

Neola, Dawson Grain Co.'s Elevator, W. F. Dawson d/b/a Dawson Grain Co.

Ralston, Moorhouse Elevator, A. Moorhouse Co.

Underwood, Dawson Grain Co.'s Elevator, W. F. Dawson d/b/a Dawson Grain Co.

Add the following:

Neola, Lakin Grain Elevators, Charles E. Lakin doing business as Lakin Grain Co.

Underwood, Lakin Grain Elevator, Charles E. Lakin doing business as Lakin Grain Co.

Change the following:

From—

Cooper, Milligan Bros. Elevator, F. T. Milligan, R. F. Milligan and Iris T. Milligan, copartners t/a Milligan Bros.

Parlin, Milligan Bros. Elevator, F. T. Milligan, R. P. Milligan and Iris T. Milligan, copartners t/a Milligan Bros.

Jefferson, Milligan Bros. Elevator, F. T. Milligan, R. P. Milligan and Iris T. Milligan, copartners t/a Milligan Bros.

To—

Cooper, Milligan Bros. Elevator, Frank T. Milligan, Robert P. Milligan and Frank T. Milligan and Robert P. Milligan as Executors of the Estate of Iris T. Milligan deceased, Copartners, Trading as Milligan Bros.

Parlin, Milligan Bros. Elevator, Frank T. Milligan, Robert P. Milligan and Frank T. Milligan and Robert P. Milligan as Executors of the Estate of Iris T. Milligan deceased, Copartners, Trading as Milligan Bros.

Jefferson, Milligan Bros. Elevator, Frank T. Milligan, Robert P. Milligan and Frank T. Milligan and Robert P. Milligan as Executors of the Estate of Iris T. Milligan deceased, Copartners, Trading as Milligan Bros.

KANSAS

Delete the following:

Alamota, Midwest Elevator, The Mid-West Grain Co.

Cheney, Mid-West Grain Elevator, The Mid-West Grain Co.

Lindsborg, Lindsborg Mill Elevator, Rodney Milling Company.

Add the following:

Alamota, Dannen Elevator, Dannen Grain and Milling Company.

Belpre, Walsh Elevator, Esther Walsh executrix of the estate of R. F. Walsh deceased, t/a Walsh Grain Company.

Cheney, Dannen Elevator, Dannen Grain and Milling Company.

Delphos, Delphos Coop Elevator, The Delphos Cooperative Association.

Feterita (P. O. Hugoton), Feterita Co-op Elevator, The Stevens County Co-operative Equity Exchange.

Garden City, Lawrence Warehouse No. 8, Lawrence Warehouse Company.

Olmitz, Dannen Elevator, Dannen Grain and Milling Company.

Sharon, Farmers Co-operative Elevators, The Farmers Co-operative Business Association.

Stafford, Independent Coop Elevator, The Independent Co-operative Grain & Mercantile Company.

Tribune, Greeley County Coop Elevator, The Greeley County Cooperative Association.

Trousdale, Walsh Elevator, Esther Walsh executrix of the estate of R. F. Walsh deceased, t/a Walsh Grain Company.

Turon, Dannen Elevator, Dannen Grain and Milling Company.

Change the following:

From—

Wichita, Wichita Flour Mills Elevator, The Wichita Flour Mills Company.

To—

Wichita, Wichita Flour Mills Elevator, Wichita Flour Mills, Inc.

KENTUCKY

Add the following:

Owensboro, Farmers Elevators, Farmers Elevators, Inc.

LOUISIANA

Delete the following:

Roanoke, Roanoke Warehouse, Farmers Warehouse Company.

MASSACHUSETTS

Add the following:

Boston (No. 1 Hoosac Pier), Hoosac Grain Elevator, Interoceanic Commodities Corporation.

MICHIGAN

Delete the following:

Hillsdale, Stock Elevator, F. W. Stock & Sons, Inc.

Add the following:

Quincy, Quincy Elevator, Williams Milling Company, Inc.

MINNESOTA

Add the following:

Minneapolis, Belco Elevators, Northwestern Malt & Grain Co.

Change the following:

From—

Red Wing, Burdick Red Wing Elevator, Burdick Elevator Company.

To—

Red Wing, Central Elevator, Central Grain Company.

MISSOURI

Delete the following:

St. Joseph, Farm Service Center, Farm Service Center of St. Joseph, Inc.

Add the following:

Lamar, M. F. A. Cooperative Elevator, Missouri Farmers Association, Inc.

NEBRASKA

Delete the following:

Aurora, Hord Elevator, T. B. Hord Grain Company.

Dodge, Crowell Elevator, Crowell Elevator Company.

Emerson, Brandt Elevator, William Brandt (or W. H. Brandt) and Mae Brandt joint tenants with right of survivorship trading as Brandt Grain Company.

Gibbon, Gibbon Elevator, T. B. Hord Grain Company.

Lyons, Lyons Grain & Lumber Company's Elevator, Paul E. Christensen, t/a Lyons Grain & Lumber Company.

Ravenna, Nebraska Consolidated Mills Elevator, Nebraska Consolidated Mills Company.

Winnebago, McCluhan Elevator, Neil R. McCluhan, t/a McCluhan Grain Company.

Add the following:

Aurora, Dowd Elevator, Dowd Grain Company, Inc.

Omaha, Allied Mills Elevator, Allied Mills, Inc.

Winnebago, Merry Grain Company Elevator, Holmquist Elevator Company.

Change the following:

From—

Scribner, Scribner Elevator, Lydia C. Weaver, d/b/a Scribner Grain and Lumber Company.

To—

Scribner, Scribner Elevator, Scribner Grain & Lumber Company.

NEVADA

Add the following:

Carlin, Nevada Freeport Storage, A. H. Vogeler trading as Nevada Freeport Storage.

NEW MEXICO

Add the following:

Texico, New Mexico Mill Elevator, New Mexico Mill & Elevator Co. (No Stockholders' Liability).

Tucumcari, Addington Elevator, W. H. Addington, t/a Addington Grain Company.

NORTH CAROLINA

Delete the following:

Washington, Continental Elevator, Continental Grain Company.

Add the following:

Camden, Wood Bonded Warehouse, Warehouse Superintendent of the State of North Carolina.

Elizabeth City, Eastern Carolina Feed and Seed Company, Inc. Elevator, Warehouse Superintendent of the State of North Carolina.

Mooresville, Mooresville Bonded Elevator, Warehouse Superintendent of the State of North Carolina.

OHIO

Add the following:

Fletcher, Russells Terminal, Russells Co.

OKLAHOMA

Delete the following:

Goodwell, Farmers Elevator, Paul L. Wright and H. Gilmore, t/a Farmers Elevator Co.

Kelley, Kelley Elevator, Farmers Cooperative Association.

Add the following:

Goodwell, Farmers Elevator, Paul L. Wright and Joseph D. Gilmore, executor of the estate of H. Gilmore, deceased, copartners trading as Farmers Elevator Co.

OREGON

Delete the following:

Sherwood, Sherwood Elevator, Thomas A. Pfund and Dale V. Boucher, copartners t/a Sherwood Mill and Elevator Company.

Add the following:

Sherwood, Sherwood Elevator, Thomas A. Pfund and Dale V. Boucher, copartners, t/a Cheralem Valley Mills.

PENNSYLVANIA

Add the following:

Erie, Pennsylvania Railroad Elevator, Erie Grain Elevator Corporation.

Pittsburgh, Pittsburgh Grain Elevator, Tidewater Grain Company.

SOUTH CAROLINA

Delete the following:

Anderson, Continental Elevator, Continental Grain Company.

Add the following:

Anderson, Anderson Elevator, Anderson Elevator and Feed Company.

Easley, The Cotton Producers Association Grain Elevator, The Cotton Producers Association.

SOUTH DAKOTA

Delete the following:

Wentworth, Geo. O. Cotton & Son Elevator, Winifred L. Cotton, Eugene Cotton and Vern Tucker, copartners t/a Geo. O. Cotton & Sons.

Add the following:

Ellis, Ellis Elevator, Great Plains Seed Co.

Frankfort, Hartung Elevator Company Elevator, Hartung Elevator Company, Inc.

Huron, Beadle County Grain Company's Elevator, Beadle County Grain Company, Inc.

Lane, Farmers Elevator Company Elevator, Joseph Hartung, I. F. Hartung, Robert J. Flanders and Mary V. Flanders, Copartners trading as Farmers Elevator Company.

Roscoe, Roscoe Grain and Feed Company Elevator, Roscoe Grain and Feed Company, Inc.

Wentworth, Cotton & Company Elevator, Cotton & Company.

Winner, Deaver-Meyer Elevator, Deaver-Meyer Grain Company.

Woonsocket, Flanders Grain Company Elevator, Flanders Grain Company, Inc.

TENNESSEE

Add the following:

Franklin, Lillie Mills Elevator, Webraska Consolidated Mills Company.

TEXAS

Delete the following:

Fort Worth, Bewley Mills Elevator, Bewley Mills.

Add the following:

Allison, Allison Elevator, Allison Producers Corporation of Allison, Texas.
Edmonson, Wheat Growers Elevator, Edmonson Wheat Growers, Inc.
Fort Worth, Bewley Mills Elevator, Flour Mills of America, Inc.

Change the following:

From—

Dimmitt, Dimmitt Gin Elevator, Dimmitt Gin Company, Incorporated.

To—

Dimmitt, Dimmitt Gin Elevator, Dimmitt Gin & Elevator Co., Inc.

UTAH

Delete the following:

Tremonton, Stohl's Warehouse, Ervin Stohl.

Add the following:

Tremonton, Stohl's Warehouse, Vera Stohl d/b/a Ervin Stohl's Warehouse.

WASHINGTON

Delete the following:

Glenwood, Glenwood Farmers Warehouse, Glenwood Farmers Warehouse, Inc.

Add the following:

Freeman, Rockford Grain Growers Warehouse, Rockford Grain Growers, Inc.
Glenwood, Colfax Grain Growers Warehouse, Colfax Grain Growers, Inc.
Houser, Pomeroy Grain Growers Warehouse, Pomeroy Grain Growers, Inc.
Mead, Rockford Grain Growers Warehouse, Rockford Grain Growers, Inc.
Mount Hope, Rockford Grain Growers Warehouse, Rockford Grain Growers, Inc.
Rockford, Rockford Grain Growers Warehouse, Rockford Grain Growers, Inc.

WEST VIRGINIA

Delete the following:

Huntington, Owinn Elevator, Owinn Bros. & Company.

C. For the storage of wool:

KANSAS

Delete the following:

Town, Warehouse, and Warehouseman

Kansas City, Bert Lyon Wool Warehouse, Bert Lyon & Company.

MISSOURI

Delete the following:

Kansas City, Bert Lyon Wool Warehouse, Bert Lyon & Company.

OHIO

Delete the following:

Columbus, Ohio Wool Warehouse, The Ohio Wool Growers Cooperative Association.

E. For the storage of nuts:

VIRGINIA

Delete the following:

Town, Warehouse, and Warehouseman

Emporia, Emporia Bonded Warehouse, E. A. Wright.

F. For the storage of broomcorn:

OKLAHOMA

Delete the following:

Town, Warehouse, and Warehouseman

Boise City, The Denning Warehouse Company Warehouse, The Denning Warehouse Company, Inc.
Lindsay, The Denning Warehouse Company Warehouse, The Denning Warehouse Company, Inc.

G. For the storage of beans:

CALIFORNIA

Delete the following:

Town, Warehouse, and Warehouseman

Stockton, Wilbur-Ellis Warehouse, Wilbur-Ellis Company.

COLORADO

Add the following:

Roggen, Roggen Farmer's Bean Warehouse, Roggen Farmer's Elevator Association.

IDAHO

Delete the following:

Filer, Polson Warehouse, E. P. Polson.
Glenns Ferry, Johnson Warehouse, Jos. A. Johnson.
Rupert, F. S. Campbell Co. Warehouse, Frank S. Campbell, d/b/a F. S. Campbell Co.
Shoshone, Beacon Elevator, Jos. A. Johnson, d/b/a Beakon Elevator Co.
Twin Falls, Intermountain Bean Co. Warehouse, Intermountain Bean Co., Inc.

I. For the storage of canned foods:

INDIANA

Delete the following:

Town, Warehouse, and Warehouseman

Summitville, Summitville Bonded Warehouse, Robert L. DeHority.

J. For the storage of cottonseed:

ARKANSAS

Add the following:

Town, Warehouse, and Warehouseman

Osceola, Osceola Cottonseed Warehouse, Osceola Products Company.

Done at Washington, D. C., this 18th day of March 1958.

[SEAL] GEORGE A. DICE,
Director,
Special Services Division.

[F. R. Doc. 58-2159; Filed, Mar. 24, 1958; 8:45 a. m.]

Commodity Stabilization Service

[Amdt. 6]

MARKETING QUOTA REVIEW COMMITTEES

ESTABLISHMENT OF AREAS OF VENUE

Notice of establishment of areas of venue for marketing quota review committees (22 F. R. 123, 1042, 1937, 2717, 3765, and 23 F. R. 515).

Pursuant to section 3 (a) (1) of the Administrative Procedure Act (60 Stat. 238; 5 U. S. C. 1002) which requires that the field organization be published in the FEDERAL REGISTER, and § 711.11 of the Marketing Quota Review Regulations (21 F. R. 9365 and 9716), which provides for establishment of areas of venue for marketing quota review committees, notice is hereby given that the areas of venue for the following States have been revised and established by the ASC State Committees as follows:

Georgia

County of:
Area V—Correction in spelling: Emanuel.

Montana

Counties of:
Area III—Blaine, Daniels, McCone, Phillips, Richland, Roosevelt, Sheridan, Valley.
Area VII—Carter, Custer, Dawson, Fallon, Powder River, Prairie, Wibaux.

(Sec. 3, 60 Stat. 238; 5 U. S. C. 1002. Interprets or applies secs. 363, 52 Stat. 63, as amended; 7 U. S. C. 1363)

Done at Washington this 19th day of March 1958. Witness my hand and the seal of the Department of Agriculture.

[SEAL] WALTER C. BERGER,
Administrator,
Commodity Stabilization Service.

[F. R. Doc. 58-2193; Filed, Mar. 24, 1958; 8:50 a. m.]

DEPARTMENT OF COMMERCE

Office of the Secretary

AL SERAFIN MINETTI

STATEMENT OF CHANGES IN FINANCIAL INTERESTS

In accordance with the requirements of section 710 (b) (6) of the Defense Production Act of 1950, as amended, and Executive Order 10647 of November 28, 1955, the following changes have taken place in my financial interests as reported in the FEDERAL REGISTER of March 9, 1957, 22 F. R. 1578; September 14, 1957, 22 F. R. 7384.

A. Deletions: No change.
B. Additions: No change.

This statement is made as of March 1, 1958.

Dated: March 2, 1958.

AL SERAFIN MINETTI.

[F. R. Doc. 58-2165; Filed, Mar. 24, 1958; 8:45 a. m.]

WILBUR F. DUERINGER

STATEMENT OF CHANGES IN FINANCIAL INTERESTS

In accordance with the requirements of section 710 (b) (6) of the Defense Production Act of 1950, as amended, and Executive Order 10647 of November 28, 1955, the following changes have taken place in my financial interests as reported in the FEDERAL REGISTER of April 10, 1956, 21 F. R. 2303; October 2, 1956, 21 F. R. 7553; March 29, 1957, 22 F. R. 2093; September 25, 1957, 22 F. R. 7614-15.

A. Deletions: No change.
B. Additions: No change.

This statement is made as of March 12, 1958.

Dated: March 12, 1958.

WILBUR F. DUERINGER.

[F. R. Doc. 58-2166; Filed, Mar. 24, 1958; 8:45 a. m.]

EUBERT F. TAGGERT

STATEMENT OF CHANGES IN FINANCIAL INTERESTS

In accordance with the requirements of section 710 (b) (6) of the Defense Production Act of 1950, as amended, and Executive Order 10647 of November 28, 1955, the following changes have taken place in my financial interests as reported in the FEDERAL REGISTER of March 29, 1957, 22 F. R. 2092; September 25, 1957, 22 F. R. 7615.

A. Deletions: No change.
B. Additions: No change.

This statement is made as of March 15, 1958.

Dated: March 15, 1958.

EUBERT F. TAGGERT.

[F. R. Doc. 58-2167; Filed, Mar. 24, 1958; 8:45 a. m.]

HAROLD J. VORZIMER

STATEMENT OF CHANGES IN FINANCIAL INTERESTS

In accordance with the requirements of Section 710 (b) (6) of the Defense Production Act of 1950, as amended, and Executive Order 10647 of November 28, 1955, the following changes have taken place in my financial interests as reported in the FEDERAL REGISTER of October 3, 1956, 21 F. R. 7581; March 29, 1957, 22 F. R. 2093; October 10, 1957, 22 F. R. 8072.

A. Deletions: No change.
B. Additions: No change.

This statement is made as of March 12, 1958.

Dated: March 12, 1958.

HAROLD J. VORZIMER.

[F. R. Doc. 58-2168; Filed, Mar. 24, 1958; 8:45 a. m.]

FEDERAL POWER COMMISSION

[Docket No. G-14662]

EDWIN L. COX

ORDER FOR HEARING AND SUSPENDING PROPOSED CHANGE IN RATE

MARCH 19, 1958.

Edwin L. Cox (Cox), on February 17, 1958, tendered for filing a proposed change in his presently effective rate schedule [1] for the sale of natural gas subject to the jurisdiction of the Commission. The proposed change, which constitutes an increased rate and charge, is contained in the following designated filing:

Description: Notice of Change, dated February 12, 1958.
Purchaser: Natural Gas Pipeline Company of America.
Rate schedule designation: Supplement No. 3 to Cox's FPC Gas Rate Schedule No. 10.
Effective date: May 10, 1958 (effective date is the effective date proposed by Cox).

In support of the proposed rate increase, Cox quotes the pricing provisions of the contract, states that it represents the negotiated contract price and that the proposed increase is an integral part of the initial rate schedule or, in the alternative, merely the mechanical operation of a contract provision.

The increased rate and charge so proposed has not been shown to be justified, and may be unjust, unreasonable, unduly discriminatory, or preferential, or otherwise unlawful.

The Commission finds: It is necessary and proper in the public interest and to aid in the enforcement of the provisions of the Natural Gas Act that the Commission enter upon a hearing concerning the lawfulness of the said proposed change, and that Supplement No. 3 to Cox's FPC Gas Rate Schedule No. 10 be suspended and the use thereof deferred as hereinafter ordered.

The Commission orders:

(A) Pursuant to the authority of the Natural Gas Act, particularly sections 4 and 15 thereof, the Commission's rules of practice and procedure, and the regulations under the Natural Gas Act (18 CFR Ch. I), a public hearing be held upon a date to be fixed by notice from the Secretary concerning the lawfulness of the proposed increased rate and charge contained in Supplement No. 3 to Cox's FPC Gas Rate Schedule No. 10.

(B) Pending such hearing and decision thereon, said supplement be and it hereby is suspended and the use thereof deferred until October 10, 1958, and until such further time as it is made effective in the manner prescribed by the Natural Gas Act.

(C) Neither the supplement hereby suspended nor the rate schedule sought to be altered thereby shall be changed until this proceeding has been disposed of or until the period of suspension has expired, unless otherwise ordered by the Commission.

(D) Interested State commissions may participate as provided by §§ 1.8 and 1.37 (f) of the Commission's rules of practice and procedure (18 CFR 1.8 and 1.37 (f)).

By the Commission (Commissioners Digby and Kline dissenting).

[SEAL] JOSEPH H. GUTRIDE, *Secretary.*

[F. R. Doc. 58-2172; Filed, Mar. 24, 1958; 8:46 a. m.]

[1] Present rate previously suspended and is in effect subject to refund in Docket No. G-12540.

[Docket No. G-14663]

KERR-MCGEE OIL INDUSTRIES, INC.

ORDER FOR HEARING AND SUSPENDING PROPOSED CHANGE IN RATE

MARCH 19, 1958.

Kerr-McGee Oil Industries, Inc. (Kerr-McGee), on February 17, 1958, tendered for filing a proposed change in its presently effective rate [1] schedule for the sale of natural gas subject to the jurisdiction of the Commission. The proposed change, which constitutes an increased rate and charge, is contained in the following designated filing:

Description: Notice of Change, dated February 13, 1957.
Purchaser: Natural Gas Pipeline Company of America.
Rate schedule designation: Supplement No. 3 to Kerr-McGee's FPC Gas Rate Schedule No. 46.
Effective date: March 21, 1958 (effective date is the date proposed by Kerr-McGee).

In support of the proposed rate increase, Kerr-McGee states that the contract was negotiated in good faith at arm's length, that periodic price increase provisions are necessary in the gas producing industry because neither buyer nor seller can anticipate the additional capital expenditures and expenses required, and that the proposed rate is fair and reasonable and no higher than necessary to encourage further exploration.

The increased rate and charge so proposed has not been shown to be justified, and may be unjust, unreasonable, unduly discriminatory, or preferential, or otherwise unlawful.

The Commission finds: It is necessary and proper in the public interest and to aid in the enforcement of the provisions of the Natural Gas Act that the Commission enter upon a hearing concerning the lawfulness of the said proposed change, and that Supplement No. 3 to Kerr-McGee's FPC Gas Rate Schedule No. 46 be suspended and the use thereof deferred as hereinafter ordered.

The Commission orders:

(A) Pursuant to the authority of the Natural Gas Act, particularly sections 4 and 15 thereof, the Commission's rules of practice and procedure, and the regulations under the Natural Gas Act (18 CFR Ch. I), a public hearing be held upon a date to be fixed by notice from the Secretary concerning the lawfulness of the proposed increased rate and charge contained in Supplement No. 3 to Kerr-McGee's FPC Gas Rate Schedule No. 46.

(B) Pending such hearing and decision thereon, said supplement be and it hereby is suspended and the use thereof deferred until August 21, 1958, and until such further time as it is made effective in the manner prescribed by the Natural Gas Act.

(C) Neither the supplement hereby suspended nor the rate schedule sought to be altered thereby shall be changed until this proceeding has been disposed of or until the period of suspension has expired, unless otherwise ordered by the Commission.

(D) Interested State commissions may participate as provided by §§ 1.8 and 1.37 (f) of the Commission's rules of practice and procedure (18 CFR 1.8 and 1.37 (f)).

[1] Present rate previously suspended is in effect subject to refund in Docket No. G-12206.

By the Commission (Commissioners Digby and Kline dissenting).

[SEAL] JOSEPH H. GUTRIDE, *Secretary.*

[F. R. Doc. 58-2173; Filed, Mar. 24, 1958; 8:46 a. m.]

[Docket No. G-14664]

JOHN W. COYLE, JR., ET AL.

ORDER FOR HEARING AND SUSPENDING PROPOSED CHANGE IN RATE

MARCH 19, 1958.

John W. Coyle, Jr. (Operator) et al., (Coyle), on February 17, 1958, tendered for filing a proposed change in his presently effective rate schedule for the sale of natural gas subject to the jurisdiction of the Commission. The proposed change, which constitutes an increased rate and charge, is contained in the following designated filing:

Description: Notice of Change, dated February 3, 1958.
Purchaser: Consolidated Gas Utilities Corporation.
Rate schedule designation: Supplement No. 1 to Coyle's FPC Gas Rate Schedule No. 1.
Effective date: March 26, 1958 (effective date is the date proposed by Coyle).

In support of the proposed rate increase, Coyle states that he has been informed by the buyer that commencing March 26, 1958, the price will increase to 11.0 cents per Mcf. Coyle also states, among other things, that the increase is a matter of contractual obligation and failure of the Commission to approve the increase would be inequitable and confiscatory.

The increased rate and charge so proposed has not been shown to be justified, and may be unjust, unreasonable, unduly discriminatory, or preferential, or otherwise unlawful.

The Commission finds: It is necessary and proper in the public interest and to aid in the enforcement of the provisions of the Natural Gas Act that the Commission enter upon a hearing concerning the lawfulness of the said proposed change, and that Supplement No. 1 to Coyle's FPC Gas Rate Schedule No. 1 be suspended and the use thereof deferred as hereinafter ordered.

The Commission orders:

(A) Pursuant to the authority of the Natural Gas Act, particularly sections 4 and 15 thereof, the Commission's rules of practice and procedure, and the regulations under the Natural Gas Act (18 CFR, Ch. I), a public hearing be held upon a date to be fixed by notice from the Secretary concerning the lawfulness of the proposed increased rate and charge contained in Supplement No. 1 to Coyle's FPC Gas Rate Schedule No. 1.

(B) Pending such hearing and decision thereon, said supplement be and it hereby is suspended and the use thereof deferred until August 26, 1958, and until such further time as it is made effective in the manner prescribed by the Natural Gas Act.

(C) Neither the supplement hereby suspended nor the rate schedule sought to be altered thereby shall be changed until this proceeding has been disposed of or until the period of suspension has expired, unless otherwise ordered by the Commission.

(D) Interested State commissions may participate as provided by §§ 1.8 and 1.37 (f) of the Commission's rules of practice and procedure (18 CFR 1.8 and 1.37 (f)).

By the Commission (Commissioner Kline dissenting).

[SEAL] JOSEPH H. GUTRIDE, *Secretary.*

[F. R. Doc. 58-2174; Filed, Mar. 24, 1958; 8:46 a. m.]

[Docket No. G-14668]

LELAND DAVISON ET AL.

ORDER FOR HEARING AND SUSPENDING PROPOSED CHANGE IN RATE

MARCH 19, 1958.

Leland Davison et al. (Davison) on February 17, 1958, tendered for filing a proposed change in his presently effective rate schedule for the sale of natural gas subject to the jurisdiction of the Commission. The proposed change, which constitutes an increased rate and charge, is contained in the following designated filing:

Description: Notice of Change, undated.
Purchaser: El Paso Natural Gas Company.
Rate schedule designation: Supplement No. 2 to Davison's FPC Gas Rate Schedule No. 1.
Effective date: March 20, 1958 (effective date is the first day after expiration of the required thirty days' notice).

In support of the proposed rate increase Davison submits a copy of a letter from El Paso notifying him that the price will increase to 11.0 cents effective January 1, 1958, dependent upon Commission action. In addition, Davison states that the proposed price is just and reasonable and not in excess of other prices for similar gas.

The increased rate and charge so proposed has not been shown to be justified and may be unjust, unreasonable, unduly discriminatory, or preferential, or otherwise unlawful.

The Commission finds: It is necessary and proper in the public interest and to aid in the enforcement of the provisions of the Natural Gas Act that the Commission enter upon a hearing concerning the lawfulness of the said proposed change, and that Supplement No. 2 to Davison's FPC Gas Rate Schedule No. 1 be suspended and the use thereof deferred as hereinafter ordered.

The Commission orders:

(A) Pursuant to the authority of the Natural Gas Act, particularly sections 4 and 15 thereof, the Commission's rules of practice and procedure, and the regulations under the Natural Gas Act (18 CFR Ch. I), a public hearing be held upon a date to be fixed by notice from the Secretary concerning the lawfulness of the proposed increased rate and charge contained in Supplement No. 2 to Davison's FPC Gas Rate Schedule No. 1.

(B) Pending such hearing and decision thereon, said supplement be and it hereby is suspended and the use thereof deferred until August 20, 1958, and until such further time as it is made effective in the manner prescribed by the Natural Gas Act.

(C) Neither the supplement hereby suspended nor the rate schedule sought to be altered thereby shall be changed until this proceeding has been disposed of or until the period of suspension has expired, unless otherwise ordered by the Commission.

(D) Interested State commissions may participate as provided by §§ 1.8 and 1.37 (f) of the Commission's rules of practice and procedure (18 CFR 1.8 and 1.37 (f)).

By the Commission (Commissioner Kline dissenting).

[SEAL] JOSEPH H. GUTRIDE, *Secretary.*

[F. R. Doc. 58-2175; Filed, Mar. 24, 1958; 8:47 a. m.]

SECURITIES AND EXCHANGE COMMISSION

[Files Nos. 24SF-2164, 2-12409]

LEWISOHN COPPER CORP.

ORDER PERMANENTLY SUSPENDING EXEMPTION UNDER REGULATION A AND SUSPENDING EFFECTIVENESS OF REGISTRATION STATEMENT

MARCH 18, 1958.

Lewisohn Copper Corp. having filed with the Commission on September 22, 1955, a notification and offering circular for the purpose of obtaining an exemption from the registration provisions of the Securities Act of 1933, pursuant to section 3 (b) thereof and Regulation A thereunder, with respect to a public offering of 200,000 shares of its common stock at $1.50 a share;

The Commission having by order dated June 15, 1956, pursuant to Rule 223 (a) of Regulation A, temporarily suspended the aforesaid exemption and having ordered hearings to determine whether to vacate such order or to enter an order permanently suspending the exemption;

Lewisohn Copper Corp. having filed with the Commission on March 30, 1956, a registration statement covering a proposed offering of 100,000 shares of its common stock and the Commission having instituted proceedings pursuant to section 8 (d) of the Securities Act of 1933 to determine whether a stop order should issue suspending the effectiveness of such registration statement;

Lewisohn Copper Corp. having filed a request for leave to withdraw such registration statement;

Consolidated hearings having been held and the hearing examiner having filed a recommended decision;

The Commission having this day issued its findings and opinion; on the basis of said findings and opinion

It is ordered, Pursuant to Rule 223 of Regulation A under the Securities Act of 1933, that an exemption from registration of the above mentioned offering of securities of Lewisohn Copper Corp. under that Regulation be, and it hereby is, permanently suspended; and

It is further ordered, That the request of Lewisohn Copper Corp. for leave to withdraw the above mentioned registration statement be, and it hereby is, denied, and that pursuant to section 8 (d) of the Securities Act of 1933, the effectiveness of the above mentioned registration statement of Lewisohn Copper Corp. be, and it hereby is, suspended.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 58-2180; Filed, Mar. 24, 1958; 8:47 a. m.]

TARIFF COMMISSION

[Investigation 61]

STAINLESS STEEL TABLE FLATWARE

NOTICE OF SUPPLEMENTAL INVESTIGATION

Investigation supplemental to Investigation No. 61 under section 7, Trade Agreements Extension Act of 1951, as amended.

On March 7, 1958, the President announced that action at this time on the recommendations of the United States Tariff Commission for "escape clause" action with respect to stainless steel table flatware was inadvisable, and sent a letter to the Tariff Commission reading as follows:

For the reasons set forth in the enclosed copy of my letter of today to the Chairmen of the Senate Finance and the House Ways and Means Committees, I have concluded that action at this time is inadvisable on the Tariff Commission's recommendation of January 10, 1958 concerning stainless steel table flatware.

I request the Commission, however, to keep this matter under review and to report to me as soon as practicable after December thirty-first with particular reference to the experience of the domestic industry in 1958 during which the Japanese limitations on exports to the United States will have been in effect.

In the event that unusual circumstances require, I shall call upon the Commission for a report on an earlier date.

The letter to the Chairmen of the Senate Finance Committee and the House Ways and Means Committee, referred to in the President's letter to the Commission, was published in a White House release of March 7, 1958. Copies of such letter are available from the Tariff Commission upon request from any interested party.

Under the authority of section 332 of the Tariff Act of 1930 the Commission has instituted an investigation supplemental to Investigation No. 61 under section 7 of the Trade Agreements Extension Act of 1951, as amended, for the purpose of carrying out the request of the President. An announcement regarding a hearing in connection with this supplemental investigation will be made at a future date.

Issued: March 19, 1958.

By order of the Commission.

[SEAL] DONN N. BENT, *Secretary.*

[F. R. Doc. 58-2181; Filed, Mar. 24, 1958; 8:48 a. m.]

[Investigation 62]

UMBRELLA FRAMES

NOTICE OF SUPPLEMENTAL INVESTIGATION

Investigation supplemental to Investigation No. 62 under section 7, Trade Agreements Extension Act of 1951, as amended.

On March 12, 1958 the President announced that he was postponing final decision on the recommendations of the United States Tariff Commission for "escape clause" action with respect to umbrella frames, and sent a letter to the Tariff Commission reading as follows:

I have carefully studied the Tariff Commission's report of January 14, 1958 concerning umbrella frames.

As set forth in the enclosed copy of my letter of today to the Chairmen of the Senate Finance and House Ways and Means Committees, I have concluded that it would be useful to have additional data on the industry's financial experience and the import pattern during recent months.

I request the Commission, therefore, to submit a supplemental report including data on the period ending March thirty-first and also including such other material as the Commissioners deem appropriate.

The letter to the Chairmen of the Senate Finance Committee and the House Ways and Means Committee referred to in the President's letter to the Commission was published in a White House release of March 12, 1958. Copies of such letter are available from the Tariff Commission upon the request of any interested party.

Under the authority of section 332 of the Tariff Act of 1930, the Commission has instituted an investigation supplemental to Investigation No. 62 under section 7 of the Trade Agreements Extension Act of 1951, as amended, for the purpose of carrying out the request of the President. An announcement regarding a hearing in this supplemental investigation will be made at a future date.

Issued: March 19, 1958.

By order of the Commission.

[SEAL] DONN N. BENT, *Secretary.*

[F. R. Doc. 58-2182; Filed, Mar. 24, 1958; 8:48 a. m.]

[Investigation 32]

MERCURY (QUICKSILVER)

NOTICE OF INVESTIGATION

Investigation No. 32 under section 332, Tariff Act of 1930.

Pursuant to a resolution adopted March 17, 1958 by the Committee on Finance, United States Senate, the United States Tariff Commission, on the 19th day of March 1958, instituted an investigation under the provisions of section 332 of the Tariff Act of 1930, as amended, of the conditions of competition in the United States between mercury (quicksilver) produced in the United States and in foreign countries.

The Committee resolution provides that in its report to the Committee of the results of the investigation the Commission shall set forth a summary of the facts obtained in the investigation, including a description of the domestic industry, domestic production, foreign production, comparative costs of domestic and foreign production including labor costs, imports, consumption, channels and methods of distribution, prices including comparative London and New York prices quoted by foreign producers, United States exports, United States customs treatment since 1930, the impact of the government purchase program authorized under Title III of the Defense Production Act of 1950 on domestic production and the possible effect of the termination of that program on world prices and domestic production, and other factors affecting the competition between domestic and imported mercury.

The Committee resolution requires the Tariff Commission to hold hearings in connection with the investigation and to give adequate opportunity to interested parties to appear and to be heard. Announcement regarding hearings in connection with this investigation will be made at a future date.

Issued: March 19, 1958.

By order of the Commission.

[SEAL] DONN N. BENT, *Secretary.*

[F. R. Doc. 58-2183; Filed, Mar. 24, 1958; 8:48 a. m.]

INTERSTATE COMMERCE COMMISSION

FOURTH SECTION APPLICATIONS FOR RELIEF

MARCH 20, 1958.

Protests to the granting of an application must be prepared in accordance with Rule 40 of the general rules of practice (49 CFR 1.40) and filed within 15 days from the date of publication of this notice in the FEDERAL REGISTER.

LONG-AND-SHORT HAUL

FSA No. 34549: *Various commodities between points in Texas.* Filed by J. F. Brown, Agent (No. 317), for interested carriers. Rates on building boards, candy or confectionery, iron sulphate (ferric sulphate), papermill products, carloads, as described in the application between and from and to points in Texas, as described in the application.

Grounds for relief: Texas intrastate competition.

Tariff: Supplement 56 to Agent Brown's tariff I. C. C. 865.

FSA No. 34551: *Substituted service—Motor-and-rail—CRI&P and Confrt-ways.* Filed by Middlewest Motor Freight Bureau, Agent (No. 104), for interested rail and motor carriers. Rates on freight of various kinds loaded in highway trailers and transported on railroad flat cars between Chicago, Ill., and Inver Grove, Minn.

Grounds for relief: Motor-truck competition.

Tariff: Supplement 71 to Middlewest Motor Freight Bureau, Agent, tariff MF-I. C. C. No. 223.

FSA No. 34552: *Superphosphate—Florida mines to Arkansas and Missouri points.* Filed by O. W. South, Agent (SFA No. A3608) for interested rail carriers. Rates on superphosphate (acid phosphate), other than ammoniated or defluorinated, in bulk, carloads from Bartow, Fla., and other specified southern Florida points grouped with and taking Bartow rates to Walport and Blytheville, Ark., and Sikeston, Mo.

Grounds for relief: Rail-barge-truck competition.

Tariff: Supplement 45 to Agent C. A. Spaninger's tariff I. C. C. 1522.

FSA No. 34553: *Superphosphate—South Florida points to Hartsdale, Ind.* Filed by O. W. South, Jr., Agent (SFA No. A3609), for interested rail carriers. Rates on superphosphate (acid phosphate), other than defluorinated, in bulk, carloads from specified south Florida points to Hartsdale, Ind.

Grounds for relief: Rail-barge-truck competition.

Tariff: Supplement 28 to Agent C. A. Spaninger's tariff I. C. C. 1568.

FSA No. 34554: *Superphosphate—South Florida points to Calumet City, Ill.* Filed by O. W. South, Jr., Agent (SFA No. A3610) for interested rail carriers. Rates on superphosphate (acid phosphate), other than defluorinated, in bulk, carloads from specified south Florida points to Calumet City, Ill.

Grounds for relief: Rail-barge-truck competition.

Tariff: Supplement 28 to Agent Spaninger's tariff I. C. C. 1568.

FSA No. 34555: *Superphosphate—South Florida points to St. Louis, Mo., group.* Filed by O. W. South, Jr., Agent (SFA No. A3611), for interested rail carriers. Rates on superphosphate (acid phosphate), other than defluorinated, in bulk, carloads from specified points in south Florida to St. Louis, Mo., and East St. Louis, Ill.

Grounds for relief: Rail-barge-truck competition.

Tariff: Supplement 28 to Agent Spaninger's tariff I. C. C. 1568.

AGGREGATE-OF-INTERMEDIATES

FSA No. 34550: *Various commodities between points in Texas.* Filed by J. F. Brown, Agent (No. 316), for interested carriers. Rates on building boards, candy or confectionery, iron sulphate (ferric sulphate), papermill products, as described in the application between, and from and to points in Texas.

Grounds for relief: Maintenance of through one-factor rates from or to points beyond the involved points in Texas without observing depressed rates as factors to obtain lower combination rates.

Tariff: Supplement 56 to Agent Brown's tariff I. C. C. 865.

By the Commission.

[SEAL] HAROLD D. McCOY, *Secretary.*

[F. R. Doc. 58-2176; Filed, Mar. 24, 1958; 8:47 a. m.]

FOURTH SECTION APPLICATIONS FOR RELIEF

MARCH 19, 1958.

Protests to the granting of an application must be prepared in accordance with Rule 40 of the general rules of practice (49 CFR 1.40) and filed within 15 days from the date of publication of this notice in the FEDERAL REGISTER.

LONG-AND-SHORT HAUL

FSA No. 34547: *Less carload class rates between Illinois, Kansas, and Missouri.* Filed by F. C. Kratzmeir, Agent (SWFB No. B-7245), for interested rail carriers. Rates on various commodities, rated at less-than-carload ratings in uniform freight classification, (a) between points in Illinois, on the one hand, and points in Kansas and Missouri, on the other; and (b) between points in Kansas and Missouri, on the one hand, and points in Missouri, on the other.

Grounds for relief: Short-line distance formula and grouping.

Tariff: Agent Kratzmeir's tariff I. C. C. 4281.

FSA No. 34548—*Sand and gravel—Indiana points to Hoopeston, Ill.* Filed by R. G. Raasch, Agent (No. 645), for interested rail carriers. Rates on sand and gravel, carloads, as described in the application from Dickason Pit, Standard Pit, and La Fayette, Ind., to Hoopeston, Ill.

Grounds for relief: Competition of motor trucks from wayside pits to jobsite.

Tariffs: Supplement 96 to Chicago and Eastern Illinois Railroad tariff I. C. C. 144. Supplement 50 to New York, Chicago and St. Louis Railroad tariff I. C. C. 6210.

By the Commission.

[SEAL] HAROLD D. McCOY, *Secretary.*

[F. R. Doc. 58-2142; Filed, Mar. 21, 1958; 8:51 a. m.]

[Rev. S. O. 562, Amdt. 4 to Taylor's I. C. C. Order 81]

NEW YORK, ONTARIO AND WESTERN RAILWAY

DIVISION OR REROUTING OF TRAFFIC

Upon further consideration of Taylor's I. C. C. Order No. 81 and good cause appearing therefor:

It is ordered, That:

Taylor's I. C. C. Order No. 81 be, and it is hereby, amended by substituting the following paragraph (g) for paragraph (g) thereof:

(g) Expiration date: This order shall expire at 11:59 p. m., September 30, 1958, unless otherwise modified, changed, suspended or annulled.

It is further ordered, That this amendment shall become effective at 11:59 p. m., March 31, 1958, and that this order shall be served upon the Association of American Railroads, Car Service Division, as agent of all railroads subscribing to the car service and per diem agreement under the terms of that agreement, and by filing it with the Director, Division of the Federal Register.

Issued at Washington, D. C., March 18, 1958.

INTERSTATE COMMERCE COMMISSION, CHARLES W. TAYLOR, *Agent.*

[F. R. Doc. 58-2179; Filed, Mar. 24, 1958; 8:47 a. m.]